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TITLE 6—AGRICULTURAL CREDIT

Chapter IV—Commodity Stabilization Service and Commodity Credit Corporation, Department of Agriculture

Subchapter B—Loans, Purchases, and Other Operations

[1957 C. C. C. Flaxseed Bulletin 1]

PART 421—GRAINS AND RELATED COMMODITIES

SUBPART—1957 TEXAS FLAXSEED PURCHASE PROGRAM

Sec.

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AUTHORITY: §§ 421.2726 to 421.2740 issued under sec. 4, 62 Stat. 1070, as amended; 15 U. S. C. 714b. Interpret or apply sec. 5, 62 Stat. 1072, secs. 301, 401, 63 Stat. 1053, 1054, as amended; 15 U. S. C. 714c, 7 U. S. C. 1447, 1421.

§ 421.2726 *General.* This subpart states the requirements with respect to the 1957-crop Texas Flaxseed Purchase Program formulated for price support purposes by Commodity Credit Corporation (referred to in this subpart as CCC) and the Commodity Stabilization Service (referred to in this subpart as CSS). CCC, through designated Agricultural Stabilization and Conservation county committees, will stand ready to make direct purchases from eligible producers of eligible flaxseed delivered to authorized dealers from the time of harvest through July 31, 1957. All such purchases shall be made in accordance with this subpart.

§ 421.2727 *Administration.* (a) This program will be administered in the field through the CSS Commodity Office, Dallas, Texas, the Texas Agricultural Stabilization and Conservation State Committee, and designated Agricultural Stabilization and Conservation county committees (referred to in this subpart as county committees). A producer desiring to sell flaxseed under this program must apply to the office of the county committee of the county in which the flaxseed was produced for written delivery instructions on the quantity of flaxseed he wishes to sell to CCC.

(b) Such application must be made sufficiently in advance of the date of the intended delivery to enable the county committee to schedule deliveries in an orderly manner. Delivery instructions issued by the county committee will set forth the approximate quantity of flaxseed and the time and place of delivery for the account of CCC. All flaxseed delivered under such instructions must meet the eligibility requirements specified in § 421.2732. All documents will be approved by the county office manager, or other employee of the county office designated by him to act in his behalf. Such designations shall be on file in the county office. County office managers, State and county committees, and the CSS commodity office do not have authority to modify or waive any of the provisions of this subpart or any amendments or supplements to this subpart.

§ 421.2728 *Period and area of operation.* This program will be available on eligible flaxseed from the time of harvest through July 31, 1957, in the Texas counties indicated in § 421.2729 (a). Deliveries of flaxseed under this program must be completed on or before July 31, 1957.

§ 421.2729 *Basic purchase prices.* (a) The basic purchase price per bushel of flaxseed grading No. 1, delivered under this program for the account of CCC will be at the rate established for the county where the flaxseed is delivered, except as provided in paragraph (b) of this section. Texas counties authorized under this program and basic purchase rates will be announced at a later date, by an amendment to this subpart.

(b) (1) The basic purchase price per bushel for No. 1 flaxseed delivered to authorized dealers at the Corpus Christi and Houston terminal markets will be issued as an amendment to this subpart at a later date.

(2) Such terminal market purchase prices will be for flaxseed delivered in

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FEDERAL REGISTER

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CFR SUPPLEMENTS

(As of January 1, 1957)

The following Supplement is now available:

Title 8 ($0.55)

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carload lots which have been shipped by rail on a domestic interstate freight rate basis, from a country shipping point to the said terminal markets as evidenced by paid freight bills duly registered for transit privileges and other documents as required in this subpart: *Provided*, That in the event the amount of paid-in freight is insufficient to guarantee the minimum proportional freight rate from the aforesaid terminal markets, there shall be deducted from the applicable terminal purchase price the difference between the amount of freight actually paid in and the amount required to be paid in to guarantee outbound movement at the minimum proportional freight rate. The terminal warehouse receipt must be accompanied by a registered freight bill, or by a supplemental certificate signed by the warehouseman, containing data like that on such freight bills, in the form prescribed by the CSS Commodity Office, Dallas, Texas.

(3) The basic purchase price of flaxseed delivered at the aforesaid terminal markets by Rail in carload lots for which neither registered freight bills nor such freight certificates are presented, will be the terminal basic purchase price less 12 cents per bushel. Flaxseed delivered by truck at the designated terminals in the State of Texas will be purchased by CCC under this program on the basis of the terminal rate minus 16½ cents.

(c) The basic purchase price for No. 2 flaxseed shall in all instances be 6 cents per bushel less than the price indicated for No. 1 flaxseed.

(d) To compensate CCC for storage charges on flaxseed acquired under this program, the following deduction per bushel of flaxseed purchased shall be made from the basic purchase prices set forth in this section:

For flaxseed deposited in:	Deduction per bushel (cents)
April 1957	13.5
May 1957	12.0
June 1957	10.5
July 1957	9.0

§ 421.2730 *Basis of purchase.* Eligible flaxseed will be purchased on the basis of weight and grade. The grade shall be determined in accordance with the Official Grain Standards of the United States for flaxseed by a grain inspector licensed by the Secretary of Agriculture, except that wherever the services of such a licensed inspector are not available the CSS Commodity Office shall designate in writing a person qualified to determine the grade of flaxseed in accordance with the Official Grain Standards of the United States for flaxseed. Such designation may be revoked in writing by the CSS Commodity Office at any time.

§ 421.2731 *Eligible producer.* An eligible producer shall be any individual, partnership, association, corporation, estate, trust, or other business enterprise, or legal entity, and whenever applicable, a State, political subdivision of a State, or any agency thereof which (a) has produced flaxseed in 1957 in one of the counties named in § 421.2729 as landowner, landlord, tenant, or sharecropper, and (b) has applied to the appropriate county office for delivery instructions.

§ 421.2732 *Eligible flaxseed.* Eligible flaxseed shall meet the following requirements:

(a) The flaxseed must be produced by an eligible producer in 1957 in one of the counties named in § 421.2729 (a).

(b) (1) The beneficial interest in the flaxseed must be in the eligible producer tendering the flaxseed for purchase, and must always have been in him, or must have been in him and a former producer whom he succeeded before the flaxseed was harvested.

(2) To meet the requirements of succession to a former producer, the rights, responsibilities and interest of the former producer with respect to the farming unit on which the flaxseed was produced shall have been substantially assumed by the person claiming succession. Mere purchase of the crop prior to harvest, without acquisition of any additional interest in the farming unit, shall not constitute succession. The county committee shall determine whether the requirements with respect to succession have been met.

(c) The flaxseed must grade No. 1 or No. 2 and must not contain mercurial compounds or other substances poisonous to man or animals. Sample grade flaxseed will not be purchased under this program.

(d) Flaxseed produced in violation of restrictive leases on Federally-owned land shall not be eligible for purchase by CCC.

§ 421.2733 *Authorized dealer.* An authorized dealer shall be any individual, partnership, association or corporation operating under a 1957 Flaxseed Dealer Agreement with CCC, which authorizes such dealer to accept delivery of eligible flaxseed under this program for the account of CCC. A list of authorized dealers to whom flaxseed may be delivered for the account of CCC under this program may be obtained from the offices indicated in § 421.2727.

§ 421.2734 *Purchase documents.* (a) The purchase documents shall consist of (1) the "Non-Negotiable Flaxseed Dealer's Receipt and Grade Certificate" (or other similar document if approved by CCC) issued to the producer for flaxseed delivered, and in the case of a dealer's receipt issued by a terminal warehouse, the registered freight bill or warehouseman's supplemental certificate, (2) the purchase settlement form, and (3) such other forms and documents as may be prescribed by CCC.

(b) The receipt must be issued in the name of the producer for the account of CCC and must be dated on or before July 31, 1957. Each receipt must show: (1) Gross weight or bushels, (2) grade, (3) test weight, (4) dockage, (5) percentage of damage, when such factor and not test weight determines the grade, and (6) whether the flaxseed arrived by rail, truck or barge. In the case of warehouse receipts issued for flaxseed delivered by rail or barge, the grading factors on the receipt must agree with the inbound inspection certificates for the car or barge.

§ 421.2735 *Determination of quantity.* (a) The number of bushels of flaxseed delivered shall be determined by weight at time of delivery. A bushel shall be 56 pounds of flaxseed free of dockage.

(b) The percentage of dockage shall be determined in accordance with the Official Grain Standards of the United States for Flaxseed, and the weight of said dockage shall be deducted from the gross weight of the flaxseed in determining the net quantity for purchase.

§ 421.2736 *Liens.* The flaxseed must be free and clear of all liens and encumbrances, or if liens and encumbrances exist on the flaxseed, proper waivers must be presented to the county committee at the time of application for delivery instructions even though the liens or encumbrances are satisfied from the purchase proceeds.

§ 421.2737 *Service charge.* A service charge of one-half cent per bushel or a minimum of $1.50, whichever is greater, shall be charged the producer on each purchase of flaxseed made by CCC under this program. The amount of the service charge shall be deducted from the purchase price at the time of settlement.

§ 421.2738 *Setoffs.* If the producer is indebted to CCC on any accrued obligation, or if any installment or installments on any loan made available by CCC on farm-storage facilities or mobile drying equipment are delinquent, or are payable under the provisions of the note evidencing such loan out of the proceeds of the price support purchase, he must designate CCC or the lending agency holding such note as the payee of the proceeds of the price support purchase to the extent of such indebtedness or installments, but not to exceed that portion of the proceeds remaining after deduction of service charges and amounts due prior lienholders. If the producer is indebted to any other agency of the United States and such indebtedness is listed on the county debt register, he must designate such agency as the payee of the proceeds as provided in this section. Indebtedness owing to CCC or to a lending agency as provided in this section shall be given first consideration after claims or prior lienholders. Compliance with the provisions of this section shall not constitute a waiver of any right of the producer to contest the justness of the indebtedness

involved either by administrative appeal or by legal action.

§ 421.2739 *Payment.* Payment to the producer for flaxseed, purchased under this program shall be made by the ASC county office by means of sight draft drawn on CCC, and on the basis of the purchase documents indicated in § 421.2734, subject to the provisions relating to setoffs and service charges.

§ 421.2740 *Personal liability of the producer.* A producer shall be personally liable for any damage resulting from tendering to CCC flaxseed containing mercurial compounds or other substances poisonous to man or animals which is inadvertently accepted by CCC.

Issued this 12th day of April 1957.

[SEAL] PRESTON RICHARDS,
Acting Executive Vice President, Commodity Credit Corporation.

[F. R. Doc. 57-3086; Filed, Apr. 16, 1957; 8:53 a. m.]

TITLE 7—AGRICULTURE

Chapter III—Agricultural Research Service, Department of Agriculture

ALTERATIONS IN NOMENCLATURE WITHIN CHAPTER

Pursuant to Administrative Memorandum 101.1 of the Administrator of the Agricultural Research Service,[1] dated February 21, 1957, and the authorities under which such administrative memorandum was issued, the provisions in Chapter III of Title 7, Code of Federal Regulations, are hereby amended as follows:

1. Wherever, in the subparts "Black Stem Rust", "Gypsy Moth and Brown-Tail Moth", "Japanese Beetle", "Pink Bollworm", "White-Pine Blister Rust", "Mexican Fruit Fly", "White-Fringed Beetle", "Khapra Beetle", "European Chafer", and "Mediterranean Fruit Fly" of Part 301 and Parts 362 and 363, the designations "Plant Pest Control Branch", "Branch", and "Chief" appear, they are deleted and the designations "Plant Pest Control Division", "Division", and "Director", respectively, are substituted therefor.

2. Wherever, in the subparts of Part 301 other than those referred to in paragraph 1, and in Parts 302, 319, 320, 321, 324, 351, 352, 353, and 354, the designations "Plant Quarantine Branch", "Branch", and "Chief" appear, they are deleted and the designations "Plant Quarantine Division", "Division", and "Director", respectively, are substituted therefor.

3. In §§ 301.47-4, 319.8-20, and 319.37-23, the designations "Section of Plant Exploration and Introduction of the Horticultural Crops Research Branch" and "Plant Introduction Section of the Horticultural Crops Research Branch, Agricultural Research Service" are deleted and the designation "Plant Introduction Section of the Crops Research Division" is substituted therefor.

The foregoing amendments shall become effective upon issuance.

Done at Washington, D. C., this 11th day of April 1957.

[SEAL] B. T. SHAW,
Administrator, Agricultural Research Service.

[F. R. Doc. 57-3083; Filed, Apr. 16, 1957; 8:53 a. m.]

[1] See F. R. Doc. 57-3084, under Department of Agriculture, Agricultural Research Service, in Notices Section, *infra.*

Chapter IX—Agricultural Marketing Service (Marketing Agreements and Orders), Department of Agriculture

[Navel Orange Reg. 113, Amdt. 1]

PART 914—NAVEL ORANGES GROWN IN ARIZONA AND DESIGNATED PART OF CALIFORNIA

LIMITATION OF HANDLING

(a) *Findings.* (1) Pursuant to the marketing agreement, as amended, and Order No. 14, as amended (7 CFR Part 914; 21 F. R. 4707), regulating the handling of navel oranges grown in Arizona and designated part of California, effective September 22, 1953, under the applicable provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.; 68 Stat. 906, 1047), and upon the basis of the recommendation and information submitted by the Navel Orange Administrative Committee, established under the said amended marketing agreement and order, and upon other available information, it is hereby found that the limitation of handling of such navel oranges, as hereinafter provided, will tend to effectuate the declared policy of the act.

(2) It is hereby further found that it is impracticable and contrary to the public interest to give preliminary notice, engage in public rule-making procedure, and postpone the effective date of this amendment until 30 days after publication thereof in the FEDERAL REGISTER (60 Stat. 237; 5 U. S. C. 1001 et seq.) because the time intervening between the date when information upon which this amendment is based became available and the time when this amendment must become effective in order to effectuate the declared policy of the act is insufficient, and this amendment relieves restrictions on the handling of navel oranges grown in Arizona and designated part of California.

(b) *Order, as amended.* The provisions in paragraph (b) (1) (ii) of § 914.413 (Navel Orange Regulation 113, 22 F. R. 2310) are hereby amended to read as follows:

(ii) District 2: 877,800 cartons.

(Sec. 5, 49 Stat. 753, as amended; 7 U. S. C. 608c)

Dated: April 12, 1957.

[SEAL] S. R. SMITH,
Director, Fruit and Vegetable Division, Agricultural Marketing Service.

[F. R. Doc. 57-3080; Filed, Apr. 16, 1957; 8:52 a. m.]

TITLE 8—ALIENS AND NATIONALITY

Chapter II—Office of Alien Property, Department of Justice

PART 502—RULES OF PROCEDURE FOR CLAIMS

DEFINITIONS

Part 502 of this chapter sets forth the rules of procedure of the Office of Alien Property applicable to claims under sections 9 (a), 32 and 34 of the Trading with the Enemy Act, as amended (50 U. S. C. App. 9 (a), 32 and 34). It has been determined that these rules of procedure shall no longer be applicable to claims under section 9 (a) filed less than two years after the date of vesting and upon which suit may be brought under the provisions of the act. Accordingly, Part 502 requires amendment to provide for this change. Since the amendment is one of procedure, neither notice nor hearing thereon is required by statute.

1. Section 502.2 (e) is hereby amended to read as follows:

(e) The term "title claim" means a claim under section 9 (a) of the Trading with the Enemy Act, as amended, filed more than two years after the date of vesting in or transfer to the Alien Property Custodian or Attorney General of the property or interest in respect of which the claim is made, or a claim under section 32 of that act, as amended, or under section 207 (b) of the International Claims Settlement Act of 1949, as amended.

2. This amendment shall not apply to any claims docketed for hearing in accordance with the provisions of this chapter on or before March 11, 1957.

(40 Stat. 411, as amended, 69 Stat. 562; 50 U. S. C. App. 1-40. E. O. 9193, July 6, 1942, 7 F. R. 5205, 3 CFR, 1943 Cum. Supp.; E. O. 9725, May 16, 1946, 11 F. R. 5381, 3 CFR, 1946 Supp.; E. O. 9788, Oct. 14, 1946, 11 F. R. 11981, 3 CFR, 1946 Supp.; E. O. 10254, June 15, 1951, 16 F. R. 5829, 3 CFR, 1951 Supp.; E. O. 10644, Nov. 7, 1955, 20 F. R. 8363, 3 CFR, 1955 Supp.)

Executed at Washington, D. C., on April 11, 1957.

[SEAL] DALLAS S. TOWNSEND,
Assistant Attorney General, Director, Office of Alien Property.

[F. R. Doc. 57-3060; Filed, Apr. 16, 1957; 8:48 a. m.]

TITLE 9—ANIMALS AND ANIMAL PRODUCTS

Chapter I—Agricultural Research Service, Department of Agriculture

ALTERATIONS IN NOMENCLATURE WITHIN CHAPTER

Pursuant to Administrative Memorandum 101.1 of the Administrator of the Agricultural Research Service,[1] dated February 21, 1957, and the authorities under which such administrative memorandum was issued, the provisions in

[1] See F. R. Doc. 57-3084, under Department of Agriculture, Agricultural Research Service, in Notices Section, *infra.*

Chapter I of Title 9, Code of Federal Regulations, are hereby amended as follows:

1. Wherever, in Parts 1 through 29, 40, 51 through 55, 71 through 81, 91, 92, 94 through 97, 101 through 123, 132, 151, 155, 156, and 171, as amended, the designation "Branch" or "branch" appears, it is deleted and the designation "Division" is substituted therefor.

2. Wherever, in Parts 1 through 29, 40, 51 through 55, 71 through 81, 91, 92, 94 through 97, 101 through 123, 132, 151, 155, 156, and 171, as amended, the designation "Chief" appears, it is deleted and the designation "Director" is substituted therefor.

3. In paragraph (b) of § 11.1 of Part 11, the phrase "pathological laboratories of the Animal Disease and Parasites Research Branch of the Service" is deleted and the phrase "Laboratories of the Biological Control Section of the Division" is substituted therefor.

4. Wherever, in Parts 145, 146, and 147, as amended, the designation "APH Branch" appears, it is deleted and the designation "AH Division" is substituted therefor.

5. Wherever, in Parts 145, 146, and 147, as amended, the designation "Animal and Poultry Husbandry Research Branch" appears, it is deleted and the designation "Animal Husbandry Research Division" is substituted therefor.

The foregoing amendments shall become effective upon issuance.

Done at Washington, D. C., this 11th day of April 1957.

[SEAL] B. T. SHAW,
Administrator,
Agricultural Research Service.

[F. R. Doc. 57-3085; Filed, Apr. 16, 1957; 8:53 a. m.]

TITLE 14—CIVIL AVIATION

Chapter I—Civil Aeronautics Board

[Civil Air Regs., Amdt. 20-3]

PART 20—PILOT AND INSTRUCTOR CERTIFICATES

MISCELLANEOUS AMENDMENTS

Adopted by the Civil Aeronautics Board at its office in Washington, D. C., on the 11th day of April 1957.

Several sections in the recently adopted Part 20 of the Civil Air Regulations contain provisions which duplicate certain provisions in currently effective Part 43 of the Civil Air Regulations. The purpose of this amendment is to eliminate this duplication and to effect certain editorial changes in the interest of clarity.

Parts 20 and 43 both contain sections entitled "Logging of flight time." However, the section in Part 43 explains what flight time may be logged and credited for a higher pilot certificate while the section in Part 20 prescribes the manner in which flight time will be recorded in order to produce a reliable record of flight time. Since the material in both sections is necessary and pertinent to the certification requirements of Part 20, the substance of § 43.44, "Logging of flight time," in Part 43 is being transferred to Part 20 as a new § 20.17 to follow § 20.16, the title of which is being changed to "Pilot Logbooks" in order to eliminate duplication of titles and more clearly describe the contents of this section.

The language of the new § 20.17 differs from § 43.44 mainly to the extent necessary to provide for the logging of solo flight time, consistent with the aeronautical experience requirements for pilot certificates. In addition, the present § 20.17, "Change of address," is being renumbered as § 20.18.

Accordingly, an appropriate amendment deleting § 43.44 from Part 43 is being adopted concurrently with this amendment.[1]

Section 20.25, which limits a student pilot to operating the type of aircraft that is endorsed on his student certificate, is duplicated in § 43.55. As this requirement is operational in nature, it is more appropriately included in only Part 43 and is, therefore, being deleted from Part 20 to eliminate duplication.

Paragraph (c) of § 20.136, which provides for the instructors' endorsement of student pilot certificates for solo flight or flight outside the local designated areas, is operational in nature and is duplicated in § 43.64 (c) of Part 43. Accordingly, this duplication is being eliminated by retaining this provision in Part 43 and deleting the subject paragraph (c) from § 20.136.

The language in the following sections is being changed in order to more clearly express the intended meaning of provisions within these sections:

(A) Section 20.5: A definition of "copilot" is being added to other definitions in § 20.5. The new § 20.17 discussed above introduces the term "copilot" into Part 20. In addition, since the definition of "Second pilot" is no longer appropriate, it is being deleted from this section.

(B) Section 20.16 (a) (3): The words "Cross-country distance and destination" are being changed to read "Points of departure and arrival."

(C) Section 20.16 (b) (1): The words "or solo" are being added after "pilot in command." The right to log solo flight time is consistent with the solo flight time aeronautical experience requirements for pilot certificates.

(D) Section 20.16 (b) (2): The term "Second pilot" is being changed to "Copilot." Copilot is more descriptive of the type of piloting time which is appropriate to Part 20.

(E) Sections 20.34 (a) and 20.64 (a): The word "total" is being changed to "dual instruction and solo."

(F) Sections 20.44, 20.74, and 20.104: The phrase "credited in accordance with § 20.17" is being inserted after the words "flight time" in each of these three sections.

(G) Sections 20.83 (c) and 20.84 (c): The phrase "or a commercial pilot with a glider rating" is being added after the phrase "an appropriately rated flight instructor." It was intended that the phrase "appropriately rated flight instructor" would include a commercial pilot with a glider rating who is authorized by § 43.61 of Part 43 to give flight instructions in gliders.

(H) Section 20.111 (b): The phrase "taken a flight test" is being changed to "passed an appropriate CAA or military flight test."

(I) Section 20.137: The title "Aviation Safety Agent" is being changed to "CAA Inspector." The title "Aviation Safety Agent" has been changed by the CAA and the section is being reworded accordingly.

The word "airplane" was inadvertently omitted from the title of paragraph (b) of § 20.120 in the recent revision. This amendment corrects the omission by changing the title of § 20.120 (b) to read "Airplane class ratings." Also the word "glider" was inadvertently omitted in § 20.94 (a) in the phrase "or 10 hours of flight time." This omission is being corrected by changing this phrase to read "or 10 hours of glider flight time."

The words "and certificates" at the end of the title of § 20.138 are not applicable to the subject matter of this paragraph and therefore are being deleted.

Since the changes effected by this amendment are minor in nature and impose no additional burden on any person, notice and public procedure hereon are unnecessary, and they may be made effective on less than 30 days' notice.

In consideration of the foregoing, the Civil Aeronautics Board hereby amends Part 20 of the Civil Air Regulations (14 CFR Part 20, as amended) effective April 11, 1957.

1. By amending § 20.5 by deleting the definition "Second pilot" and by adding in proper alphabetical order a new definition "Copilot" to read as follows:

§ 20.5 *Definitions.* * * *

Copilot. A copilot is a pilot serving in any piloting capacity other than as pilot in command on aircraft requiring two pilots for normal operations, but excluding a pilot who is on board the aircraft for the sole purpose of receiving dual instruction.

2. By amending the title of § 20.16 to read "Pilot logbooks" and by amending paragraphs (a) (3), (b) (1), and (b) (2) to read as follows:

§ 20.16 *Pilot logbooks.* * * *

(a) *General.* * * *

(3) Points of departure and arrival,

* * * * *

(b) *Type of piloting time.* (1) Pilot in command or solo,

(2) Copilot,

* * * * *

3. By redesignating present § 20.17 as § 20.18 and by adding a new § 20.17 to read as follows:

§ 20.17 *Logging of flight time*—(a) *Student.* A student pilot may log as solo only that flight time during which he is the sole occupant of the aircraft.

(b) *Private and commercial*—(1) *Pilot in command and solo.* A private or commercial pilot may log as pilot in command only that flight time during which he is the sole manipulator of the controls of an aircraft for which he is rated or that flight time during which

[1] See F. R. Doc. 57-3077, *infra.*

he is the sole occupant of the aircraft. He may log as solo only that pilot-in-command time during which he is the sole occupant of the aircraft. A flight instructor may log as pilot in command that flight time during which he is serving as flight instructor. All flight time so logged may be credited toward the total flight time required for a higher pilot certificate.

(2) *Copilot.* A private or commercial pilot may log as copilot that flight time during which he is performing the duties of a copilot. Such pilot shall be entitled to credit not more than 50 percent of such flight time toward the total flight time required for a higher grade of pilot certificate, but in no event shall a private pilot be entitled to credit more than 50 hours of such flight time.

(3) *Dual instruction.* A private or commercial pilot may log as dual instruction that flight time during which he is receiving flight instruction from a certificated flight instructor on board the aircraft.

(c) *Instrument time.* Instrument flight time may be logged as such by the pilot actually manipulating the controls only when the aircraft is flown solely by reference to instruments either under actual or simulated instrument flight conditions.

4. By deleting § 20.25.

5. By amending § 20.34 (a) by deleting the word "total" and inserting in lieu thereof the words "dual instruction and solo".

6. By amending § 20.44 by inserting the words "credited in accordance with § 20.17" following the phrase "at least 200 hours of flight time" in the introductory paragraph.

7. By amending § 20.64 (a) by deleting the word "total" and inserting in lieu thereof the words "dual instruction and solo".

8. By amending § 20.74 by inserting the words "credited in accordance with § 20.17" following the phrase "at least 150 hours of flight time" in the introductory paragraph.

9. By amending § 20.83 (c) by inserting between the words "instructor" and "who" the words "or a commercial pilot with a glider rating".

10. By amending § 20.84 (c) by inserting between the words "instructor" and "who" the words "or a commercial pilot with a glider rating".

11. By amending § 20.94 (a) by inserting the word "glider" between the words "of" and "flight" in the phrase "or 10 hours of flight time".

12. By amending § 20.104 by inserting the words "credited in accordance with § 20.17" following the phrase "25 hours of flight time" in the introductory paragraph.

13. By amending § 20.111 (b) by deleting the words "taken a flight test" and inserting in lieu thereof the words "passed an appropriate CAA or military flight test".

14. By amending the title of § 20.120 (b) to read "Airplane class ratings."

15. By amending § 20.136 by deleting paragraph (c).

16. By amending § 20.137 by deleting the words "Aviation Safety Agent" and inserting in lieu thereof the words "CAA Inspector".

17. By amending the title of § 20.138 by deleting the words "and certificates".

(Sec. 205, 52 Stat. 984; 49 U. S. C. 425. Interpret or apply secs. 601, 602, 52 Stat. 1007, 1008; 49 U. S. C. 551, 552)

By the Civil Aeronautics Board.

[SEAL] M. C. MULLIGAN,
Secretary.

[F. R. Doc. 57-3076; Filed, Apr. 16, 1957; 8:51 a. m.]

[Civil Air Regs., Amdt. 43-6]

PART 43—GENERAL OPERATING RULES

MISCELLANEOUS AMENDMENTS

Adopted by the Civil Aeronautics Board at its office in Washington, D. C., on the 11th day of April 1957.

Several sections in the recently revised Part 20 of the Civil Air Regulations duplicate certain provisions in the currently effective Part 43. The purpose of this amendment is to eliminate duplication and conflict between the two parts.

The subject matter of § 43.43, "Pilot logbooks," is now contained in Part 20; and, concurrently with this amendment, the related subject matter contained in § 43.44, "Logging of flight time," is being added to Part 20. Accordingly, in order to eliminate duplication, both of these sections are being deleted from Part 43.

The provisions in §§ 43.53 and 43.54, "Requirements for first solo" and "Flight area limitations," are now contained in the revised Part 20. As these requirements are more appropriately contained in Part 20, they are being deleted from Part 43.

Section 43.66, "Instrument flight instruction," is in conflict with the provision in § 20.127 which requires an applicant for an instrument rating to have received 10 hours of instrument flight instruction given by a rated instrument flight instructor. This conflict is being remedied by deleting § 43.66.

Since the changes effected by this amendment are minor in nature and impose no additional burden on any person, notice and public procedure hereon are unnecessary, and they may be made effective on less than 30 days' notice.

In consideration of the foregoing, the Civil Aeronautics Board hereby amends Part 43 of the Civil Air Regulations (14 CFR Part 43, as amended) effective April 11, 1957.

By deleting §§ 43.43, 43.44, 43.53, 43.54, and 43.66.

(Sec. 205, 52 Stat. 984; 49 U. S. C. 425. Interpret or apply secs. 601, 602, 52 Stat. 1007, 1008; 49 U. S. C. 551, 552)

By the Civil Aeronautics Board.

[SEAL] M. C. MULLIGAN,
Secretary.

[F. R. Doc. 57-3077; Filed, Apr. 16, 1957; 8:51 a. m.]

Chapter II—Civil Aeronautics Administration, Department of Commerce

[Amdt. 5]

PART 600—DESIGNATION OF CIVIL AIRWAYS

ALTERATIONS

The civil airway alterations appearing hereinafter have been coordinated with the civil operators involved, the Army, the Navy and the Air Force, through the Air Coordinating Committee, Airspace Panel, and are adopted to become effective when indicated in order to promote safety. Compliance with the notice procedures, and effective date provisions of section 4 of the Administrative Procedure Act would be impracticable and contrary to public interest and therefore is not required.

Part 600 is amended as follows:

1. Section 600.106 *Amber civil airway No. 6 (Jacksonville, Fla., to United States-Canadian Border)* is amended by deleting the portion which reads: "Bowling Green, Ky., radio range station; the intersection of the northeast course of the Bowling Green, Ky., radio range and the south course of the Louisville, Ky., radio range; Louisville, Ky., radio range station; Cincinnati, Ohio, radio range station to the intersection of the northeast course of the Cincinnati, Ohio, radio range and the west course of the Columbus, Ohio, radio range." and by adding the following portion in lieu thereof: "Bowling Green, Ky., radio range station; Lexington, Ky., nondirectional radio beacon; Cincinnati, Ohio, radio range station to the intersection of the northeast course of the Cincinnati, Ohio, radio range and the west course of the Columbus, Ohio, radio range."

2. Section 600.211 *Red civil airway No. 11 (Enid, Okla., to Boston, Mass.)* is amended by deleting the portion which reads: "From the intersection of the south course of the Indianapolis, Ind., radio range and the west course of the Louisville, Ky., radio range via the Louisville, Ky., radio range station to the intersection of the east course of the Louisville, Ky., radio range and a line bearing 358° True from the Lexington, Ky., nondirectional radio beacon."

3. Section 600.214 is amended to read:

§ 600.214 *Red civil airway No. 14 (Lone Rock, Wis., to Indianapolis, Ind.).* From the intersection of the southeast course of the La Crosse, Wis., radio range and the west course of the Madison, Wis., radio range via the Rockford, Ill., radio range station; the intersection of the southeast course of the Rockford, Ill., radio range and the west course of the Chicago, Ill., radio range; Chicago, Ill., radio range station to the Indianapolis, Ind., radio range station.

4. Section 600.227 *Red civil airway No. 27 (Atlanta, Ga., to Detroit, Mich.)* is revoked.

5. Section 600.229 *Red civil airway No. 29 (Elmira, N. Y., to Baltimore, Md.)* is revoked.

6. Section 600.302 is amended to read:

§ 600.302 *Red civil airway No. 102 (Lexington, Ky., to Huntington, W. Va.).*

From the Lexington, Ky., nondirectional radio beacon to the Huntington, W. Va., nondirectional radio beacon.

7. Section 600.612 is added to read:

§ 600.612 *Blue civil airway No. 12 (McGrath, Alaska to Galena, Alaska).* From the McGrath, Alaska, radio range station to the Galena, Alaska, radio range station.

8. Section 600.621 is added to read:

§ 600.621 *Blue civil airway No. 21 (Coles Point, Va., to Elmira, N. Y.).* From the intersection of the southeast course of the Andrews, Md., radio range and the south course of the Baltimore, Md., radio range to the Baltimore, Md., radio range station, excluding the portions which overlap restricted areas and excluding that portion which lies more than two miles east of the south course of the Baltimore radio range between the intersection of the south course of the Baltimore range with the southeast course of the Washington, D. C., radio range and the intersection of the south course of the Baltimore radio range with the southern boundary of Red civil airway No. 45. From the intersection of the south course of the Harrisburg, Pa., radio range and the west course of the Baltimore, Md., radio range via the Harrisburg, Pa., radio range; Williamsport, Pa., radio range station to the intersection of the north course of the Williamsport, Pa., radio range and the southwest course of the Elmira, N. Y., radio range.

9. Section 600.687 is amended to read:

§ 600.687 *Blue civil airway No. 87 (Atlanta, Ga., to Detroit, Mich.).* From the intersection of the south course of the Atlanta, Ga., NAS radio range and the northeast course of the Atlanta, Ga., radio range via the Atlanta NAS radio range station; the intersection of the north course of the Atlanta NAS radio range and the south course of the Knoxville, Tenn., radio range; Knoxville, Tenn., radio range station; Corbin, Ky., VHF VAR radio range station; the intersection of the north course of the Corbin, Ky., VHF VAR radio range and a line bearing 150° True from the Lexington, Ky., nondirectional radio beacon; Lexington, Ky., nondirectional radio beacon; Cincinnati, Ohio, radio range station; the intersection of the northeast course of the Cincinnati, Ohio, radio range and the south course of the Wright-Patterson AFB radio range; Wright-Patterson AFB, Dayton, Ohio, radio range station to the intersection of the north course of the Wright-Patterson AFB radio range and the west course of the Columbus, Ohio, radio range. From the Findlay, Ohio, nondirectional radio beacon via the Toledo, Ohio, radio range station to the intersection of the north course of the Toledo, Ohio, radio range and the west course of the Detroit, Mich., radio range.

10. Section 600.6002 *VOR civil airway No. 2 (Seattle, Wash., to Boston, Mass.)* is amended by changing the portion which reads: "Gardner, Mass., omnirange station; to the Boston, Mass., omnirange station." to read: "Gardner, Mass, omnirange station; intersection of the Gardner omnirange 098° True radial and the Boston-Bedford Airport ILS localizer front course; Boston-Bedford, Mass., Airport ILS localizer; intersection of the Boston-Bedford Airport ILS localizer back course and the Boston omnirange 014° True radial; to the Boston, Mass., omnirange station."

11. Section 600.6005 is amended by changing the caption to read: *"VOR civil airway No. 5 (Jacksonville, Fla., to London, Ont.)"*, by changing all before the Macon, Ga., omnirange station to read: "That airspace over United States territory from the Jacksonville, Fla., omnirange station via the intersection of the Jacksonville omnirange 319° True and the Alma omnirange 148° True radials; Alma, Ga., omnirange station, including an east alternate and also a west alternate from the Jacksonville omnirange station to the Alma omnirange station; Macon, Ga., omnirange station;" and by revoking the last sentence which reads: "Those portions of this airway which overlap the Jacksonville restricted area (R–161), the Lake George restricted area (R–176) and the Sterling restricted areas (R–169 and R–170) are excluded."

12. Section 600.6012 *VOR civil airway No. 12 (Santa Barbara, Calif., to Philadelphia, Pa.)* is amended by changing the portion which reads: "Pittsburgh, Pa., omnirange station, including a north alternate via the intersection of the Pittsburgh omnirange 067° True and the Johnstown omnirange 290° True radials; Johnstown, Pa., omnirange station;" to read: "Pittsburgh, Pa., omnirange station; Johnstown, Pa., omnirange station, including a north alternate via the intersection of the Pittsburgh omnirange 067° True and the Johnstown omnirange 290° True radials;".

13. Section 600.6013 *VOR civil airway No. 13 (Houston, Tex., to Duluth, Minn.)* is amended by changing the portion which reads: "to the Texarkana, Ark., omnirange station, including a west alternate via the intersection of the Shreveport omnirange 275° True and the Texarkana omnirange 188° True radials." to read: "to the Texarkana, Ark., omnirange station, including a west alternate via the intersection of the Shreveport omnirange 275° True and the Texarkana omnirange 184° True radials."

14. Section 600.6014 *VOR civil airway No. 14 (Roswell, N. Mex., to Boston, Mass.)* is amended by changing the portion which reads: "Tulsa, Okla., omnirange station, including a north alternate via the intersection of the Oklahoma City omnirange 040° True and the Tulsa omnirange 257° True radials, and also a south alternate via the intersection of the Oklahoma City omnirange 107° True and the Tulsa omnirange 222° True radials; Neosho, Mo., omnirange station, including a north alternate via the intersection of the Tulsa omnirange 050° True and the Neosho omnirange 260° True radials and also a south alternate via the intersection of the Tulsa omnirange 091° True and the Neoshio omnirange 228° True radials;" to read: "Tulsa, Okla., omnirange station, including a north alternate via the intersection of the Oklahoma City omnirange 040° True and the Tulsa omnirange 260° True radials, and also a south alternate via the intersection of the Oklahoma City omnirange 107° True and the Tulsa omnirange 228° True radials; Neosho, Mo., omnirange station, including a north alternate and also a south alternate via the intersection of the Tulsa omnirange 088° True and the Neosho omnirange 223° True radials;".

15. Section 600.6015 *VOR civil airway No. 15 (Galveston, Tex., to Minot, N. Dak.)* is amended by changing the portion which reads: "intersection of the Dallas omnirange 345° True and the Ardmore omnirange 161° True radial;" to read: "intersection of the Dallas omnirange 357° True and the Ardmore omnirange 159° True radials;" and by changing the portion which reads: "to the Tulsa, Okla., omnirange station, including an east alternate and also a west alternate via the point of intersection of the Oklahoma City, Okla., omnirange 107° True and the Tulsa omnirange 222° True radials." to read: "to the Tulsa, Okla., omnirange station, including an east alternate and also a west alternate via the point of intersection of the Oklahoma City, Okla., omnirange 107° True and the Tulsa omnirange 228° True radials."

16. Section 600.6054 *VOR civil airway No. 54 (Quitman, Tex., to Charlotte, N. C.)* is amended by changing the portion which reads: "Little Rock, Ark., omnirange station, including a north alternate via the intersection of the Texarkana omnirange 031° True and the Little Rock omnirange 255° True radials" to read: "Intersection of the Texarkana omnirange 052° True and the Little Rock omnirange 235° True radials; Little Rock, Ark., omnirange station, including a north alternate via the intersection of the Texarkana omnirange 033° True and the Little Rock omnirange 255° True radials;".

17. Section 600.6066 *VOR civil airway No. 66 (San Diego, Calif., to Sulphur Springs, Tex.)* is amended by changing the portion which reads: "El Paso, Tex., omnirange station, including a north alternate; Hudspeth, Tex., omnirange station;" to read: "El Paso, Tex., omnirange station, including a north alternate; intersection of the El Paso omnirange 132° True and the Hudspeth omnirange 272° True radials; Hudspeth, Tex., omnirange station;".

18. Section 600.6074 *VOR civil airway No. 74 (Dodge City, Kans., to Little Rock, Ark.)* is amended by changing the portion which reads: "Tulsa, Okla., omnirange station, including a south alternate; Fort Smith, Ark., omnirange station, including a north alternate from the Tulsa omnirange station to the Fort Smith omnirange station via the point of intersection of the Tulsa omnirange 091° True and the Neosho, Mo., omnirange 227° True radials;" to read: "Tulsa, Okla., omnirange station, including a south alternate via the intersection of the Ponca City omnirange 132° True and the Tulsa omnirange 260° True radials; Fort Smith, Ark., omnirange station, including a north alternate from the Tulsa omnirange station to the Fort Smith omnirange station via the point of intersection of the Tulsa omnirange 088°

True and the Neosho, Mo., omnirange 223° True radials;".

19. Section 600.6088 *VOR civil airway No. 88 (Tulsa, Okla., to Vichy, Mo.)* is amended by changing the portion which reads: "From the Tulsa, Okla., omnirange station via the intersection of the Tulsa omnirange 050° True and the Springfield omnirange 261° True radials;" to read: "From the Tulsa, Okla., omnirange station via the intersection of the Tulsa omnirange 044° True and the Springfield omnirange 261° True radials;".

20. Section 600.6100 is amended to read:

§ 600.6100 *VOR civil airway No. 100 (North Platte, Nebr., to Detroit, Mich.)*. From the North Platte, Nebr., omnirange station via the Sioux City, Iowa, omnirange station; Waterloo, Iowa, omnirange, station; Rockford, Ill., omnirange station; Wheeling, Ill., omnirange station; intersection of the Wheeling omnirange 093° True and the Keeler omnirange 271° True radials; Keeler, Mich., omnirange station; point of intersection of the Litchfield, Mich., omnirange 050° True and the Salem omnirange 257° True radials; to the Salem, Mich., omnirange station. The portion of this airway below 1900 feet above mean sea level which overlaps the Savanna restricted area (R–498) is excluded.

21. Section 600.6106 *VOR civil airway No. 106 (Charleston, W. Va., to Kennebunk, Maine)* is amended by changing the portion which reads: "intersection of the Gardner omnirange 060° True and the Kennebunk, Maine, omnirange 223° True radials;" to read: "point of intersection of the Gardner omnirange 051° True and the Concord, N. H., omnirange 146° True radials;".

22. Section 600.6129 is amended to read:

§600.6129 *VOR civil airway No. 129 (Rockford, Ill., to Eau Claire, Wis.)*. From the Rockford, Ill., omnirange station via the intersection of the Rockford omnirange 278° True and the Lone Rock omnirange 162° True radials; Lone Rock, Wis., omnirange station; La Crosse, Wis., omnirange station; to the Eau Claire, Wis., omnirange station.

23. Section 600.6140 *VOR civil airway No. 140 (Amarillo, Tex., to New York, N. Y.)* is amended by changing the portion which reads: "Fayetteville, Ark., omnirange station, including a north alternate via the intersection of the Tulsa omnirange 065° True and the Fayetteville omnirange 287° True radials;" to read: "Fayetteville, Ark., omnirange station, including a north alternate via the intersection of the Tulsa omnirange 059° True and the Fayetteville omnirange 284° True radials;".

24. Section 600.6158 is added to read:

§ 600.6158 *VOR civil airway No. 158 (Waterloo, Iowa, to Polo, Ill.)*. From the Waterloo, Iowa, omnirange station via the point of intersection of the Waterloo omnirange direct radial to the Rockford, Ill., omnirange station with the Polo omnirange 297° True radial; to the Polo, Ill., omnirange station. The portion of this airway below 1900 feet above mean sea level which overlaps the Savanna Restricted Area (R–498) is excluded.

25. Section 600.6163 *VOR civil airway No. 163 (Brownsville, Tex., to Oklahoma City, Okla.)* is amended by changing the portion which reads: "and also an east alternate from the Ardmore omnirange station to the Oklahoma City omnirange station via the point of intersection of the Oklahoma City omnirange 107° True and the Tulsa, Okla., omnirange 222° True radials." to read: "and also an east alternate from the Ardmore omnirange station to the Oklahoma City omnirange station via the point of intersection of the Oklahoma City omnirange 107° True and the Tulsa, Okla., omnirange 228° True radials."

26. Section 600.6267 is added to read:

§ 600.6267 *VOR civil airway No. 267 (Miami, Fla., to Jacksonville, Fla.)*. From the Miami, Fla., omnirange station via the intersection of the Miami omnirange 338° True and the Orlando omnirange 164° True radials; Orlando Fla., omnirange station; to the Jacksonville, Fla., omnirange station, including an east alternate from the Orlando omnirange station to the Jacksonville omnirange station via the Daytona Beach, Fla., omnirange station and the point of intersection of the Daytona Beach omnirange 311° True with the Jacksonville omnirange direct radial to the Orlando omnirange station. The portions of this airway which overlap the Jacksonville restricted area (R–161), the Lake George restricted area (R–176) and the Sterling restricted areas (R–169 and R–170) are excluded.

(Sec. 205, 52 Stat. 984, as amended; 49 U. S. C. 425. Interpret or apply sec. 302, 52 Stat. 985, as amended; 49 U. S. C. 452)

This amendment shall become effective 0001 e. s. t., May 9, 1957.

[SEAL] JAMES T. PYLE,
Administrator of Civil Aeronautics.

APRIL 10, 1957.

[F. R. Doc. 57-3039; Filed, Apr. 16, 1957; 8:45 a. m.]

[Amdt. 6]

PART 601—DESIGNATION OF CONTROL AREAS, CONTROL ZONES, AND REPORTING POINTS

ALTERATIONS

The control area, control zone, and reporting point alterations appearing hereinafter have been coordinated with the civil operators involved, the Army, the Navy and the Air Force, through the Air Coordinating Committee Airspace Panel, and are adopted to become effective when indicated in order to promote safety. Compliance with the notice procedures, and effective date provisions of section 4 of the Administrative Procedure Act would be impracticable and contrary to public interest and therefore is not required.

Part 601 is amended as follows:

1. Section 601.214 is amended by changing the caption to read: *"Red civil airway No. 14 control areas (Lone Rock, Wis., to Indianapolis, Ind.)."*

2. Section 601.227 *Red civil airway No. 27 control areas (Atlanta, Ga., to Detroit, Mich.)* is revoked.

3. Section 601.229 *Red civil airway No. 29 control areas (Elmira, N. Y., to Baltimore, Md.)* is revoked.

4. Section 601.302 is amended to read:

§ 601.302 *Red civil airway No. 102 control areas (Lexington, Ky., to Huntington, W. Va.)*. All of Red civil airway No. 102.

5. Section 601.612 is added to read:

§ 601.612 *Blue civil airway No. 12 control areas (McGrath, Alaska to Galena, Alaska)*. All of Blue civil airway No. 12.

6. Section 601.621 is added to read:

§ 601.621 *Blue civil airway No. 21 control areas (Coles Point, Va., to Elmira, N. Y.)*. All of Blue civil airway No. 21.

7. Section 601.687 is amended to read:

§ 601.687 *Blue civil airway No. 87 control areas (Atlanta, Ga., to Detroit, Mich.)*. All of Blue civil airway No. 87.

8. Section 601.1016 *Control area extension (Augusta, Ga.)* is amended by adding the following portion: "and within 5 miles either side of the north (back) course of the Augusta ILS localizer extending from the localizer to a point 33 miles north."

9. Section 601.1073 *Control area extension (Fresno, Calif.)* is amended by changing the words which read: "extending to a point at latitude 38°20'00", longitude 120°20'00"," to read: "extending to a point at latitude 38°20'00", longitude 120°00'00",".

10. Section 601.1080 *Control area extension (Louisville, Ky.)* is amended in last portion by changing the words which read: "bounded on the southeast by Amber civil airway No. 6," to read: "bounded on the southeast by VOR civil airway No. 5,".

11. Section 601.1126 *Control area extension (Knoxville, Tenn.)* is amended by changing the words "Red civil airway No. 27" to read: "Blue civil airway No. 87" wherever they appear.

12. Section 601.1129 *Control area extension (Washington, D. C.)* is amended by changing the words which read: "Red civil airway Nos. 29 and 45," to read: "Blue civil airway No. 21 and Red civil airway No. 45,".

13. Section 601.1132 is amended to read:

§ 601.1132 *Control area extension (West Palm Beach, Fla.)*. Within 5 miles either side of the 36° True radial of the West Palm Beach omnirange extending from the omnirange station to its intersection with the 109° True radial of the Orlando, Fla., omnirange thence northwestward within 5 miles either side of the Orlando omnirange 109° True radial to its intersection with the center line of Wilmington, N. C., control area extension No. 1150, excluding the portion below 2000 feet MSL which lies outside the continental limits of the United States.

14. Section 601.1139 *Control area extension (Lexington, Ky.)* is revoked.

15. Section 601.1364 is amended to read:

§ 601.1364 *Control area extension (Texarkana, Ark.).* Within 5 miles either side of the 309° True radial of the Texarkana omnirange extending from the omnirange station to a point 15 miles northwest.

16. Section 601.1228 *Control area extension (Tampa, Fla.)* is amended by adding the following sentence to present control area extension: "The portion of this control area above 20,000 feet mean sea level lying between north latitude 24°50'00" and the southern boundary of the Miami Control area extension No. 1230 is excluded."

17. Section 601.1241 *Control area extension (Tulsa, Okla.)* is amended by changing the last portion to read: "that airspace south of Tulsa bounded on the west and northwest by VOR civil airway No. 15E; on the east and southeast by lines 5 miles east of and parallel to the 008° True radial of the McAlester, Okla., omnirange extending from southern boundary of VOR civil airway No. 74 to the McAlester omnirange station, on the east and southeast by a line 5 miles east of and parallel to a direct line extending between the McAlester omnirange station and the Dallas, Tex., omnirange station, and on the south by the Sherman, Tex., Perrin AFB control area extension No. 1330."

18. Section 601.1260 *Control area extension (Altus, Okla.)* is amended by adding the following portion to present control area extension: "including the airspace north of Altus AFB bounded on the west by Long. 99°38'00", on the northeast by VOR civil airway No. 17 and on the southeast by VOR civil airway No. 14."

19. Section 601.1369 *Control area extension (Myrtle Beach, S. C.)* is amended by adding the following to present control area extension: "and excluding the portion which overlaps restricted area (R-515)."

20. Section 601.1984 *Five-mile radius zones* is amended by changing "Yuma, Ariz.; Yuma County Airport" to read: "Yuma, Ariz.: Vincent AFB."

21. Section 601.2039 *Tulsa, Okla., control zone* is amended by changing the portion which reads: "and within 2 miles either side of the 340° True and 160° True radials of the Tulsa omnirange extending from the Tulsa Municipal Airport to a point 10 miles northwest of the omnirange station." to read: "and within 2 miles either side of the 88° True and 268° True radials of the Tulsa omnirange extending from the Tulsa Municipal Airport to a point 10 miles east of the omnirange station."

22. Section 601.2043 *Casper, Wyo., control zone* is amended by changing the name "Natrona County Airport" to read: "Casper Air Terminal" wherever it appears.

23. Section 601.2111 *Louisville, Ky., control zone* is amended by changing the portion which reads: "extending 2 miles either side of the east course of the Louisville radio range to the Eastwood fan marker" to read: "extending 2 miles either side of a line bearing 87° True from Bowman Field to a point 11 miles east of the field,".

24. Section 601.2354 is amended to read:

§ 601.2354 *Texarkana, Ark., control zone.* Within a 5-mile radius of the Texarkana Municipal Airport, within 2 miles either side of the 129° True and 309° True radials of the Texarkana omnirange extending from the 5-mile radius zone to a point 10 miles northwest of the omnirange station, and within 2 miles either side of the north course of the Texarkana radio range extending from the radio range station to a point 10 miles north.

25. Section 601.2131 *Augusta, Ga., control zone* is amended by adding the following portion to present control zone: "and within 2 miles either side of the Augusta ILS localizer north (back) course extending to a point 8 miles north of the localizer."

26. Section 601.2201 *Williamsport, Pa., control zone* is amended by changing the name "Williamsport Municipal Airport" to read: "Lycoming County Airport."

27. Section 601.2252 *El Toro, Calif., control zone* is amended by deleting the words which read: "Amber civil airway No. 2 and".

28. Section 601.2303 *Great Falls, Mont., control zone* is amended by changing the words "Great Falls Air Force Base" to read: "Malmstrom Air Force Base" wherever they appear.

29. Section 601.2344 is amended to read:

§ 601.2344 *Gulfport, Miss., control zone.* The airspace within a 3-mile radius of the Gulfport Municipal Airport and within 3 miles either side of a direct line extending from the Gulfport Municipal Airport to the Keesler Air Force Base, Biloxi, Miss., excluding the portion which overlaps the Biloxi control zone.

30. Section 601.4012 *Green civil airway No. 2 (Seattle, Wash., to Boston, Mass.)* is amended after "Helena, Mont., radio range station;" by adding the following reporting point: "Bozeman, Mont., radio range station;".

31. Section 601.4106 *Amber civil airway No. 6 (Jacksonville, Fla., to United States-Canadian Border)* is amended by deleting the following reporting point: "Louisville, Ky., radio range station." and by adding the following reporting point in lieu thereof: "Lexington, Ky., nondirectional radio beacon."

32. Section 601.4214 is amended by changing caption to read: *"Red civil airway No. 14 (Lone Rock, Wis., to Indianapolis, Ind.)."*

33. Section 601.4227 *Red civil airway No. 27 (Atlanta, Ga., to Detriot, Mich.)* is revoked.

34. Section 601.4229 *Red civil airway No. 29 (Elmira, N. Y., to Baltimore, Md.)* is revoked.

35. Section 601.4302 is amended to read:

§ 601.4302 *Red civil airway No. 102 (Lexington, Ky., to Huntington, W. Va.).* No reporting point designation.

36. Section 601.4612 is added to read:

§ 601.4612 *Blue civil airway No. 12 (McGrath, Alaska to Galena, Alaska).* No reporting point designation.

37. Section 601.4621 is added to read:

§ 601.4621 *Blue civil airway No. 21 (Coles Point, Va., to Elmira, N. Y.).* No reporting point designation.

38. Section 601.4687 is amended to read:

§ 601.4687 *Blue civil airway No. 87 (Atlanta, Ga., to Detroit, Mich.).* Corbin, Ky., VHF VAR radio range station.

39. Section 601.6005 is amended by changing the caption to read: *"VOR civil airway No. 5 control areas (Jacksonville, Fla., to London, Ont.)."*

40. Section 601.6158 is added to read:

§ 601.6158 *VOR civil airway No. 158 control areas (Waterloo, Iowa, to Polo, Ill.).* All of VOR civil airway No. 158.

41. Section 601.6267 is added to read:

§ 601.6267 *VOR civil airway No. 267 control areas (Miami, Fla., to Jacksonville, Fla.).* All of VOR civil airway No. 267.

42. Section 601.7001 VOR domestic reporting points is amended by adding the following reporting point:

Charlo Intersection: The intersection of the Mullan Pass, Idaho, omnirange 089° True and the Missula, Mont. omnirange 354° True radials.

(Sec. 205, 52 Stat. 984, as amended; 49 U. S. C. 425. Interpret or apply sec. 601, 52 Stat. 1007, as amended; 49 U. S. C. 551)

This amendment shall become effective 0001 e. s. t., May 9, 1957.

[SEAL] JAMES T. PYLE,
Administrator of Civil Aeronautics.

APRIL 10, 1957.

[F. R. Doc. 57-3040; Filed, Apr. 16, 1957; 8:45 a. m.]

TITLE 15—COMMERCE AND FOREIGN TRADE

Chapter III—Bureau of Foreign Commerce, Department of Commerce

Subchapter B—Export Regulations

[8th Gen. Rev. of Export Regs., Amdt. 32]

PART 373—LICENSING POLICIES AND RELATED SPECIAL PROVISIONS

MISCELLANEOUS AMENDMENTS

1. Section 373.41 *Nonferrous commodities, including ores, concentrates, or unrefined products,* paragraph (e) *Selenium metal powder, ferroselenium, and selenium metal* is amended in the following particulars:

a. Subparagraph (1) *General* is amended to read as follows:

(1) *General.* License applications to export selenium metal powder, Schedule B No. 619159, ferroselenium, Schedule B No. 622098, and selenium metal, Schedule B No. 664998, will be considered for approval in accordance with the licensing policy described in subparagraphs (2) and (3) of this paragraph.

b. Subparagraph (4) *Time for submission of applications* is deleted.

2. Section 373.56 *Selenium containing chemical compounds, including pigments* is amended in the following particulars:

a. Paragraph (a) *General* is amended to read as follows:

(a) *General.* License applications to export selenium containing chemical compounds, including pigments, Schedule B Nos. 829810, 830980, 839750, 839900 and 842900, will be considered for approval in accordance with the licensing policy described in paragraphs (b) and (c) of this section.

b. Paragraph (d) *Time for submission of applications* is deleted.

3. Section 373.81 *Supplement 1; Time schedules for submission of applications to export certain Positive List commodities* is amended by deleting the following entries:

Dept. of Commerce Schedule B No.	Commodity	Submission dates
619159	Selenium powder	Mar. 15–Apr. 1, 1957.
622098	Ferroselenium	
664998	Selenium metal, except selenium-bearing scrap materials	
829810	Selenium-containing rubber compounding agents not of coal tar origin; accelerators	
830980	Selenous acid (selenious acid)	
839750	Selenium salts of organic compounds	
839900	Selenium salts and compounds, including selenium dioxide	
842900	Selenium-containing pigments	

This amendment shall become effective as of April 16, 1957.

(Sec. 3, 63 Stat. 7, as amended; 50 U. S. C. App. 2023. E. O. 9630, 10 F. R. 12245, 3 CFR, 1945 Supp., E. O. 9919, 13 F. R. 59, 3 CFR, 1948 Supp.)

REX A. ANDERSON,
Acting Director,
Bureau of Foreign Commerce.

[F. R. Doc. 57-3051; Filed, Apr. 16, 1957; 8:47 a. m.]

TITLE 21—FOOD AND DRUGS

Chapter I—Food and Drug Administration, Department of Health, Education, and Welfare

Subchapter C—Drugs

PART 146e—CERTIFICATION OF BACITRACIN AND BACITRACIN-CONTAINING DRUGS

FEED GRADE ZINC BACITRACIN POWDER ORAL VETERINARY

Under the authority vested in the Secretary of Health, Education, and Welfare by the Federal Food, Drug, and Cosmetic Act (sec. 507, 59 Stat. 463, as amended; 21 U. S. C. 357) and delegated to the Commissioner of Food and Drugs by the Secretary (22 F. R. 1045), § 146e.427 *Feed grade bacitracin powder oral veterinary* * * * (21 CFR, 1956 Supp., 146e.427) is amended in paragraph (b) *Packaging* * * * by changing the words "their expiration date" to read: ", if it is feed grade zinc bacitracin powder oral veterinary its expiration date".

Notice and public procedure are not necessary prerequisities to the promulgation of this order, and I so find, since it was drawn in collaboration with interested members of the affected industry, and since it would be against public interest to delay providing for the amendment set forth herein.

Effective date. This order shall be effective on the date of its publication in the FEDERAL REGISTER.

(Sec. 701, 52 Stat. 1055, as amended; 21 U. S. C. 371. Interprets or applies sec. 507, 59 Stat. 463, as amended; 21 U. S. C. 357)

Dated: April 11, 1957.

[SEAL] GEO. P. LARRICK,
Commisioner of Food and Drugs.

[F. R. Doc. 57-3049; Filed, Apr. 16, 1957; 8:46 a. m.]

TITLE 29—LABOR

Chapter V—Wage and Hour Division, Department of Labor

PART 782—EXEMPTION FROM MAXIMUM HOURS PROVISIONS FOR CERTAIN EMPLOYEES OF MOTOR CARRIERS

STATUTORY PROVISIONS CONSIDERED

In accordance with section 3 (a) of the Administrative Procedure Act and General Order No. 45–A (15 F. R. 3290) of the Secretary of Labor, effective on publication in the FEDERAL REGISTER, § 782.1 (a) of Title 29 of the Code of Federal Regulations is hereby amended to read as follows:

§ 728.1 *Statutory provisions considered.* (a) Section 13 (b) (1) of the Fair Labor Standards Act provides an exemption from the maximum hours and overtime requirements of section 7 of the act, but not from the minimum wage requirements of section 6. The exemption is applicable to:

> Any employee with respect to whom the Interstate Commerce Commission has power to establish qualifications and maximum hours of service pursuant to the provisions of section 204 of the Motor Carrier Act, 1935,[2]

except that the exemption is not applicable to any employee with respect to whom the Interstate Commerce Commission has power to establish qualifications and maximum hours of service solely by virtue of section 204 (a) (3a) of Part II of the Interstate Commerce Act.[2a] The act confers no authority on the administrator to extend or restrict the scope of this exemption. It is settled by decisions of the United States Supreme Court that the applicability of the exemption to an employee otherwise entitled to the benefits of the Fair Labor Standards Act is determined exclusively by the existence of the power of the Interstate Commerce Commission under section 204 of the Motor Carrier Act, to establish qualifications and maximum hours of service with respect to him. It is not material whether such qualifications and maximum hours of service have actually been established by the Commission; the controlling consideration is whether the employee comes within the power of the Commission to do so. The exemption is not operative in the absence of such power, but an employee with respect to whom the Commission has such power is excluded, automatically, from the benefits of section 7 of the Fair Labor Standards Act.[4]

(52 Stat. 1060, as amended; 29 U. S. C. 201–219)

Signed at Washington, D. C., this 12th day of April 1957.

NEWELL BROWN,
Administrator.

[F. R. Doc. 57-3074; Filed, Apr. 16, 1957; 8:51 a. m.]

[2] Part II of the Interstate Commerce Act, 49 Stat. 546, as amended; 49 U. S. C. 304.

[2a] Pub. No. 939, 84th Cong., 2d Sess. (Aug. 3, 1956, secs. 2 and 3).

[4] Southland Gasoline Co. v. Bayley, 319 U. S. 44; Boutell v. Walling, 327 U. S. 463; Levinson v. Spector Motor Service, 330 U. S. 649; Pyramid Motor Freight Corp., v. Ispass, 330 U. S. 695; Morris v. McComb, 332 U. S. 422.

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 1397]

[1327894]

CALIFORNIA

REVOKING EXECUTIVE ORDER NO. 5038 OF FEBRUARY 2, 1929, WHICH WITHDREW LANDS IN CALIFORNIA FOR CLASSIFICATION; CORRECTION

APRIL 11, 1957.

In FEDERAL REGISTER Document 57–2093, appearing as Public Land Order No. 1397 at pages 1843–1844 of the issue for Wednesday, March 20, 1957, the date in paragraphs 7a (2) and (3) and 7b is amended to read July 19, 1957, instead of June 19, 1957.

E. J. THOMAS,
Associate Director.

[F. R. Doc. 57-3070; Filed, Apr. 16, 1957; 8:50 a. m.]

[Public Land Order 1398]

[Colorado 06890 et al.]

COLORADO

REVOKING PUBLIC LAND ORDERS NOS. 1008 AND 1092; PARTIALLY REVOKING PUBLIC LAND ORDERS NOS. 459, 494, 565, 698, AND 779, WHICH RESERVED PUBLIC LANDS AND MINERALS IN PATENTED LANDS FOR USE OF THE ATOMIC ENERGY COMMISSION; CORRECTION

APRIL 11, 1957.

Public Land Order No. 1398 of March 15, 1957, appearing as Federal Register Document 57–2187, at pages 1987–1989 of the issue for March 26, 1957, is hereby corrected as follows:

1. The land description in paragraph 3, so far as such description relates to lands in sec. 33, T. 45 N., R. 18 W., should read: sec. 33, E½, SE¼NW¼, and SE¼SW¼.

2. The land description in paragraph 4, so far as such description relates to lands in sec. 23, T. 44 N., R. 17 W., should read: sec. 23, SW¼NW¼SW¼, W½ SE¼, and SE¼SE¼.

3. Add to paragraph 4, T. 44 N., R. 17 W., the following lands: sec. 24, SW¼SW¼.

4. Correct the duplication in paragraph 5 by deleting the following-described lands where they first appear:

T. 46 N., R. 17 W.,
Sec. 23, E½ and E½NW¼;
Sec. 25, N½NE¼ and E½NW¼.

EDWARD WOOZLEY,
Director.

[F. R. Doc. 57-3071; Filed, Apr. 16, 1957; 8:50 a. m.]

TITLE 49—TRANSPORTATION

Chapter I—Interstate Commerce Commission

Subchapter B—Carriers by Motor Vehicle

[No. MC-C-2078]

PART 211—SCOPE OF OPERATING AUTHORITY: ROUTES

DEVIATION RULES AND REGULATIONS GOVERNING USE OF RELOCATED, RENUMBERED, AND ALTERNATE HIGHWAYS, DEVIATION FROM AUTHORIZED ROUTES, AVOIDANCE OF SPECIFIED POINTS OR GATEWAYS, SERVICE AT MILITARY INSTALLATIONS, AND DEADHEADING OF EMPTY VEHICLES BY MOTOR COMMON AND CONTRACT CARRIERS SUBJECT TO INTERSTATE COMMERCE ACT

Upon consideration of the representations filed in the above-entitled proceeding in response to the notice of proposed rule making dated February 11, 1957, and good cause therefor appearing:

It is ordered, That the effective date of the rules is hereby postponed to June 3, 1957.

Dated at Washington, D. C., this 10th day of April A. D. 1957.

By the Commission.

[SEAL] HAROLD D. McCOY,
Secretary.

[F. R. Doc. 57-3075; Filed, Apr. 16, 1957; 8:51 a. m.]

PROPOSED RULE MAKING

CIVIL AERONAUTICS BOARD

[14 CFR Parts 40, 41, 42]

[Draft Release 57-7]

EMERGENCY EVACUATION EQUIPMENT FOR DC-3 TYPE AIRPLANES

NOTICE OF PROPOSED RULE MAKING

Pursuant to authority delegated by the Civil Aeronautics Board to the Bureau of Safety, notice is hereby given that the Bureau will propose to the Board the adoption of a Special Civil Air Regulation waiving the requirements of Parts 40, 41, and 42 of the Civil Air Regulations as hereinafter set forth.

Interested persons may participate in the making of the proposed rules by submitting such written data, views, or arguments as they may desire. Communications should be submitted in duplicate to the Civil Aeronautics Board, Attention Bureau of Safety, Washington 25, D. C. In order to insure their consideration by the Board before taking further action on the proposed rules, communications must be received by May 13, 1957. Copies of such communications will be available after May 15, 1957, for examination by interested persons at the Docket Section of the Board, Room 5412, Department of Commerce Building, Washington, D. C.

Sections 40.173, 41.23d, and 42.24c effective November 28, 1955, require in part that after May 31, 1957, on all passenger-carrying airplanes, at all emergency exits which are more than 6 feet from the ground with the airplane on the ground and with the landing gear extended, means shall be provided to assist the occupants in descending from the airplane. This requirement was adopted on the basis of experience which had shown that in certain instances, it is essential that some means be provided to assist passengers in evacuating airplanes on the ground.

In considering the application of this emergency evacuation requirement to the DC-3 airplane, however, it became apparent that it would impose a serious economic burden on the operators of this airplane without a commensurate increase in safety. The rear window emergency exit of this airplane is just over six feet from the ground, with the landing gear extended, and accordingly would require the special means of descent prescribed. However, the main passenger door and two emergency window exits which are located over the wings require no such special means of descent and afford an excellent means of emergency evacuation; hence, it is not considered necessary to compel redesign of the rear window emergency exit to meet the new requirements. Furthermore, a study of DC-3 airplane accidents from 1938 through 1955 does not disclose any incident in which the absence of special means to assist passengers descend from the rear emergency window exit adversely affected the emergency evacuation of the passengers. Accordingly, the Bureau is of the view that it is not necessary in the public interest to require that means be provided to assist occupants descend from the rear window emergency exit of a DC-3 airplane. It should be noted, however, that nothing in this proposed regulation will prevent a DC-3 operator from installing a means of assistance for descent should he so desire.

In view of the foregoing, notice is hereby given that the Bureau will recommend to the Board the adoption of a Special Civil Air Regulation to read as follows:

Contrary provisions of Parts 40, 41, and 42 of the Civil Air Regulations notwithstanding, after May 31, 1957, means need not be provided to assist the occupants of a passenger-carrying DC-3 airplane in descending from the airplane by way of the emergency rear window exit: *Provided*, That the authority contained herein shall not apply to DC-3 airplanes which are operated with a seating capacity in excess of the maximum number specified in Special Civil Air Regulations No. SR-389 for DC-3 airplanes with 4 exits authorized for passenger use.

This regulation is proposed under the authority of Title VI of the Civil Aeronautics Act of 1938, as amended. The proposal may be changed in the light of comments received in response to this notice of proposed rule making.

(Sec. 205 (a), 52 Stat. 984; 49 U. S. C. 425 (a). Interpret or apply secs. 601-610, 52 Stat. 1007, 1012, as amended; 49 U. S. C. 551-560)

Dated at Washington, D. C., March 29, 1957.

By the Bureau of Safety.

[SEAL] OSCAR BAKKE,
Director.

[F. R. Doc. 57-3078; Filed, Apr. 16, 1957; 8:52 a. m.]

DEPARTMENT OF AGRICULTURE

Agricultural Marketing Service

[7 CFR Parts 904, 934, 996, 999]

[Docket Nos. AO-14-A25; AO-83-A21; AO-203-A7; AO-204-A7]

MILK IN GREATER BOSTON, MERRIMACK VALLEY, SPRINGFIELD, AND WORCESTER, MASS., MARKETING AREAS

DECISION WITH RESPECT TO PROPOSED MARKETING AGREEMENTS AND PROPOSED AMENDMENTS TO THE ORDERS, AS AMENDED

Pursuant to the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.), and the applicable rules of practice and procedure, as amended, governing proceedings to formulate marketing agreements and marketing orders (7 CFR Part 900), a public hearing was conducted in Montpelier, Vermont, on December 3, and in Boston, Massachusetts, on December 4-7, 1956, pursuant to a notice thereof which was published in the FEDERAL REGISTER on November 1, 1956, (21 F. R. 9069; F. R. Doc. 56-9544) upon proposed amendments to the tentatively approved marketing agreements and to the orders now in effect, regulating the handling of milk in the Greater Boston, Merrimack Valley, Springfield, and Worcester, Massachusetts, marketing areas.

Upon the basis of the evidence introduced at the hearing and the record thereof, the Deputy Administrator, Agricultural Marketing Service, on March 5, 1957 filed with the Hearing Clerk, United States Department of Agriculture, his recommended decision and opportunity to file written exceptions thereto which was published in the FEDERAL REGISTER on March 8, 1957 (22 F. R. 1511; F. R. Doc. 57-1787).

Rulings. Within the period reserved for exceptions, interested parties filed exceptions to certain of the findings, conclusions, and actions recommended by the Deputy Administrator. In arriving at the findings, conclusions, and regulatory provisions of this decision, each of such exceptions was carefully and fully considered in conjunction with the record evidence pertaining thereto. To the extent that the findings, conclusions, and actions decided upon herein are at variance with the exceptions, such exceptions are overruled.

Issues considered. The material issues considered at the hearing were concerned with the following:

1. Limitation of the effect of the supply-demand adjuster of the Class I pricing formula.
2. The level and basis of the Class II price.
3. Elimination of the butter and cheese adjustment and revision of the butterfat differential.
4. Revision of the definition and treatment of producer handlers.
5. Reconsideration of the exempt milk provisions.
6. Revisions of the classification and assignment provisions with reference to milk moving between the four markets.
7. Consideration of an equalization payment under the Boston order on Class I milk received from other Federal order plants.
8. Clarification of pooling status in the case of a plant moving from one regulated market to another.
9. Revision of the distributing plant definition under the Boston order to provide a tolerance to exempt nonpool plants which might accidently dispose of a small volume of milk in the Boston marketing area.
10. Revision of the country plant pooling qualifications under the Merrimack Valley order.
11. Other minor changes.

Findings and conclusions. Upon the evidence adduced at the hearing and the record thereof, it is hereby found and concluded that:

1. *Limitation of the effect of the supply-demand adjuster of the Class I pricing formula.* No change should be made at this time in the Class I pricing formula. Under the present order provisions the Class I price is determined on the basis of an economic type formula which reflects changes in the national commodity price level, in the level of consumer incomes in New England, and in prices which dairy farmers must pay for feed and labor in the conduct of their dairy enterprise. The resulting index is adjusted seasonally and to reflect the current fluid milk supply-demand relationship in the combined markets. All other things remaining equal, the pricing mechanism is geared to lower the price seasonally 20 percent, or about $1.10 at the present level, in four successive steps between December and May and, conversely, to raise the price 20 percent, or about $1.10 a hundredweight, in four successive steps between June and October. The price is further adjusted upward or downward to reflect the current supply-demand relationship.

During 1956 the effect of the supply-demand adjuster was to lower the Class I price as much as 66 cents in the months of January through June and as little as 22 cents in November and December. Two bargaining cooperatives proposed that the supply-demand adjuster be suspended or amended to prevent it from reducing the price by more than 22 cents for the months of January through April 1957. In support of their proposal proponents pointed out that the feed situation in the area is less favorable than in the same period in the previous year, both in terms of quantity and quality. They further maintained that even in normal winters the cost of producing milk in the months of January through March is as high as in the months of November and December.

It is intended that the Class I price shall be a price which will bring forth a necessary but not excessive, volume of milk to supply the Class I needs of the fluid market throughout the year. The seasonal adjustments are included in the pricing formula to encourage a seasonal pattern of receipts from producers more nearly in line with the Class I demands of the market. It is recognized that cows take at least as much care and feed during the barn feeding months of January, February and March as in the months of November and December. However, November and December are normally the shortest months of production. Starting in January production begins an increase which normally continues into June and then falls off through the month of November. In 1956 producer receipts in the Boston market during the month of June were 150 percent of the receipts during the month of November. Stated another way, November receipts from producers were 66.7 percent of June receipts. The pattern of Class I sales in the market is much more uniform than production. Class I sales in November 1956 were 114 percent of sales in the month of June. The seasonality in pricing is intended to provide encouragement to the producer to produce his annual volume of milk in a pattern which more nearly meets the pattern of consumption in the market.

Whenever the supply-demand adjuster acts to reduce the Class I price, the market has a greater volume of supply than is needed. In the period December 1955 through May 1956, the Class I price per hundredweight in the New England Federal order markets fell $1.76. Five-eighths of this drop was the normal seasonality in pricing and three-eighths was the result of the action of the supply-demand adjuster. Notwithstanding this sharp drop in price, the supply of producer milk in October 1956, the last month for which statistics were available at the time of the hearing, was almost identical with that of October 1955. Official notice is taken of the fact that producer receipts in November 1956 were six percent higher than in November 1955. While there also have been substantial increases in the Class I sales, the supply of milk in the Boston market is still significantly more than that necessary for Class I use.

The fact that the Boston and New York milksheds overlap and producers and plants can, and do, shift from one market to the other, emphasizes the need for close price alignment between the two markets. The Class I price, and the blended price particularly, in 1955 and 1956 have strongly favored the Boston market with the result that in recent months there has been a substantial movement of producers and plants out of the New York pool into the Boston pool. Any increase in the annual level of the Boston price at this time, even though temporary, would further increase the disparity of prices between the two markets and would provide even greater encouragement for the New York producers and plants to shift to the Boston market.

It seems likely that producers proposing restriction on the action of the supply-demand adjuster at this time were primarily motivated by a recollection of the pattern of price movements in the first half of 1956 and that they were attempting to prevent a recurrence of this situation in 1957. Analysis of the statistics in the record indicates that the Class I price during the early part of 1957 will be substantially higher than during the same period of 1956. Official notice is taken of the December 26 announcement by the Boston market administrator of a Class I price for January 1957 of $6.07 per hundredweight which is 64 cents above the price for January 1956. It now seems likely that the Class I price in the months of February through June will be 42 cents higher than the price for the same period in 1956. Under these circumstances, there is no reason to believe that the level of price prevailing in the New England markets will not continue to bring forth at least an adequate supply of milk for the market. Accordingly, the request for restricting the action of the supply-demand adjuster should be denied.

2. *The level and basis of the Class II price.* The alternative Class II pricing formula based on the average U. S. manufacturing milk price should be adjusted to provide an approximate 6-cent increase in the resulting price. This alternative pricing formula should continue to provide the effective Class II price in any month in which no Boston weighted average cream price is reported and in any other month when the resulting price is higher than that computed by use of the weighted average cream price. The adjustment of the reported average U. S. manufacturing milk price to a 3.7 basis should be accomplished by the use of a butterfat differential equal to the New York 92-score butter price as reported by the United States Department of Agriculture, plus 25 percent.

The Deputy Administrator in his recommended decision concluded that an increase of 8 cents in the alternative Class II pricing formula based on the average U. S. manufacturing milk price was appropriate. He further concluded that the application of the recommended increase together with the application of the July 1956 amendment to the New York Class III price, retroactively from January 1954, would have provided virtually identical average prices for Boston Class II milk and New York Class III milk during the three-year period 1954–1956. Proprietary handlers and operat-

ing cooperatives excepted to the proposed price increase and reaffirmed their position taken at the hearing to the effect that an increase of three to four cents was all that was necessary to bring about an appropriate level of surplus pricing in Boston.

It is concluded that the basic analysis and the general conclusions arrived at by the Deputy Administrator in his decision on Class II pricing are fundamentally correct. However, as indicated in the recommended decision, the determination of the precise level of surplus pricing which should apply under a given set of circumstances is necessarily a matter of judgment. It is possible that under current supply-demand conditions in the market the manufacturing milk price component of the Class II pricing formula may be the effective price determinant somewhat more frequently than the average over the three-year period 1954–1956. To the extent that this results, the impact of any increase in the manufacturing milk price component will be more fully reflected in the resulting actual annual price level. Under the circumstances it is concluded appropriate to limit the proposed increase to only 6 cents rather than the 8 cents originally recommended.

The appropriate price level for Class II milk is that which will move the milk in an orderly manner into dairy products for which outlets are available in the local market and at the same time return to producers the highest practical prices for such milk.

The use of the U. S. manufacturing milk price series based on current price quotations as an alternative Class II pricing component was adopted in the New England orders effective April 1, 1954 and was intended to establish a minimum Class II price under these orders in line with the current prices for milk used in manufacturing in the country as a whole. At the time of this adoption, consideration was also given to the use of the price series reflecting the price of milk utilized in making salted butter and Cheddar cheese and the midwestern condensery pay price. It was concluded at that time that while it would be possible to apply seasonal adjustment factors to either of these two series, the use of the manufacturing milk price series actually reflected prices paid for all manufactured uses and hence, represented a more logical basis for use in the Boston market.

At the time of its adoption, various interests in the market indicated some reservation regarding its use. It is significant that at the current hearing virtually all of the handlers and the organized producer groups who testified on this issue supported the use of the U. S. manufacturing milk price series as a basis of pricing Class II milk. One cooperative association supported the midwestern condensery pay price series. However, the record fails to show any compelling reasons for shifting away from the manufacturing milk price series which holds the confidence of most producers and handlers in the market. It is concluded that greater price stability is provided in relating the Class II price to a series reflecting prices paid at various types of manufacturing milk plants rather than a single type.

Proponents of the proposal to increase the Class II price support the seasonality which is carried in the pricing formula. They take the position, however, that the basic level of price is too low. In support of its position, one large cooperative which is an operating as well as a bargaining association in these markets indicated that it has made attractive earnings from handling Class II milk at its own plants in the past few years. It further testified that proprietary handlers are actively soliciting new producers and taking over the operation of additional plants. The association maintained that this is a compelling reason to conclude that the current price level is too low. In further support of their position, producer proponents pointed out that the Boston Class II price has historically maintained a favorable relationship with the New York Class III price, that the New York Class III price was raised an average of almost 10 cents per hundredweight effective July 1956, and that this had shifted the balance in favor of the New York Class III price.

The operating cooperative associations in the market joined the bargaining cooperatives in their position that an upward adjustment in the Class II price is needed. However, the bargaining cooperatives would increase the price by 10 cents per hundredweight while the operating cooperatives indicated that 3 cents would be more appropriate.

In appraising the Class II price under the New England orders the experience of the cooperative associations handling Class II milk in the market is necessarily an important criterion. The fact that these cooperatives have found the current price level financially attractive and the fact that proprietary handlers appear to be actively soliciting additional supplies of milk indicates that some upward price adjustment is desirable. Certainly Boston producers located, as they are, close to the large eastern population centers should expect a higher return for Class II milk then the average dairymen distant from markets. At the same time, the juxtaposition of the Boston and New York milksheds necessitates the close alignment of prices between these two markets.

The condensery pay price and the New York Class III price are reported on a 3.5 percent butterfat basis and the comparison of these prices with the Boston price can be made most satisfactorily at this test. Official notice is taken of these reported and announced prices for the months of November and December 1956 which were not available at the time of the hearing. During the years 1954, 1955 and 1956 the Boston Class II price on a 3.5 percent butterfat basis averaged 2 cents, 5 cents, and 7 cents, respectively, over the New York Class III price, not considering the effect of the July 1956 amendment to the New York Class III price. During the same period, the Boston price was 5 cents, 9 cents and 12 cents, respectively, below the midwestern condensery pay price and 9 cents, 8 cents, and 6 cents, respectively, above the U. S. manufacturing milk price.

Under the Class II pricing formula in the New England orders since April 1, 1954, the manufacturing milk price has been the effective Class II pricing component in four of the remaining months of 1954, in seven of the twelve months of 1955, and in nine of the twelve months of 1956. Under such circumstances the role of the manufacturing milk price as a New England pricing mechanism for Class II milk has become increasingly important.

Under the present pricing provisions the adjustment of the reported U. S. manufacturing milk price to a 3.7 percent butterfat basis is accomplished by the direct ratio method. This procedure was adopted because it appeared to approximate most closely the practice followed by the reporting plants. Evidence introduced at this hearing raises some question as to the validity of this position. It appears likely that in actual practice a number of different procedures may be used in adjusting price to a specified fat test. The use of the direct ratio method of adjusting price assigns all of the value to the fat. In this market where skim milk has a significant value, a butterfat differential based on market butter quotations is necessary in order to reflect accurately the separate values of butterfat and skim milk. It is hereinafter proposed that the New York 92-score butter quotation plus 25 percent divided by 10 be used as the butterfat differential in pricing milk to Boston handlers and in the interest of consistency it is concluded that this differential can appropriately be used to adjust the U. S. manufacturing milk price. This differential changes by small amounts the value presently assigned to 3.7 percent milk by using the direct ratio method of adjusting the U. S. manufacturing milk price. On an annual basis it is estimated that the use of the New York butter quotation would raise the Class II price by about one cent, leaving 5 cents of the proposed 6-cent increase to be secured by other means.

The present pricing provisions adjust the U. S. manufacturing price monthly by stated differentials which are intended to encourage handlers to accept the milk in excess of Class I requirements during the months when seasonally excessive supplies normally exist. The seasonality which has existed in the formula has tended to promote the orderly handling of all producer milk and it is not intended that this seasonality should be disturbed. The remaining 5 cents of the proposed increase may best be incorporated in the pricing mechanism by increasing the stated monthly adjustments by that amount.

If the proposed increase in the U. S. manufacturing milk price component of the Boston Class II price and the July 1956 amendment to the New York Class III price were to be applied retroactively from January 1, 1954, the Boston Class II price would have averaged only one and one-half cents under the New York Class III price during the three-year period 1954–1956.

Several witnesses at the hearing presented weighted price comparisons which were intended to show on the one hand that the price should be increased at

least 10 cents and on the other that a three-cent increase is all that is necessary for alignment of prices between New York and Boston. In this connection, however, figures presented by the operating cooperatives indicate that in 1954–1955 the weighted average price of Class II milk of 3.7 percent butterfat content was two cents above the New York Class III price. Consideration of the effect of the July 1956 New York amendment supports the increase of the U. S. manufacturing milk price component of the Boston Class II formula herein proposed.

The 6-cent increase in the U. S. manufacturing milk price component would have provided a Boston Class II price which was above the U. S. manufacturing milk price by from 10 to 12 cents during this period 1954 through 1956, which is concluded to be an appropriate relationship with prices for milk used in manufacturing in the country as a whole.

Certain handlers at the hearing suggested that sounder pricing would prevail if the use of the Boston weighted cream price as a Class II price determinant was discontinued. They suggested that the Class II pricing formula be adjusted to reflect in returns to producers the average benefit which they received by virtue of the use of the weighted cream price over the past several years. The continuation of the weighted average cream price is premised on the principle that producers should have assurance that in those periods when local cream supplies are considerably below market needs, they will receive a price for their Class II milk commensurate with the handlers' average cost of securing supplemental supplies.

3. *Elimination of the butter and cheese adjustment and revision of the butterfat differentials.* The butter and cheese adjustment, which under the present provisions of the Boston order operates to reduce the value of butterfat used in making butter and cheese during the months of April through July, should be eliminated except when the Class II price is based on the weighted average cream price. When the Class II price in such months is based on the weighted average cream price, milk used in butter and cheese should be priced on the basis of the alternative Class II pricing component derived from the U. S. manufacturing milk price.

Under the present order provisions when the Class II price is based on the U. S. manufacturing milk price the butter and cheese differential is the difference between the Chicago 92-score butter quotation plus 22 percent and the New York 92-score butter quotation plus 20 percent. If the Class II price is based on the weighted average cream price the butter and cheese differential is determined by dividing by 3.7 the fat value of such price and subtracting therefrom a value equal to the New York 92-score butter quotation plus 20 percent.

Certain proponents at the hearing questioned the validity of any butter and cheese adjustment in the Boston order while at the same time the operating cooperatives proposed that the butter and cheese adjustment be extended to all months of the year and that there be no increase in Class II price applicable to milk used in butter and cheese.

New England has historically been a deficit cream market and while in recent years the market has become more nearly self-sufficient there is no indication that supplies are at such levels that it is necessary to facilitate the disposition of milk in butter and cheese. The large eastern population centers should normally provide a ready outlet for butterfat in fluid cream, ice cream and frozen cream and its use in the manufacture of butter and Cheddar type cheese should not be encouraged. The manufacture of these products in New England at the same time that fluid cream is imported to the region from outside areas is an inefficient and uneconomic utilization of butterfat as between regions.

The seasonality in the Class II price is provided in the order to assure a market for all producer milk during the flush months of production and at the same time to provide an incentive to handlers to make milk available when needed for Class I use in other months of the year. The U. S. manufacturing milk price is a composite price weighted to reflect the prices paid and the proportionate volumes of milk utilized in the various manufacturing uses and, as such, reflects the prices paid for and the proportionate volumes of milk used in butter and cheese. Under the pricing formula this price is seasonally adjusted so that the resulting Class II price during the flush months is below this average manufacturing price. Hence, there is no reason why further adjustment should be made to provide a still lower price for milk used in butter and cheese. As a practical matter the butter and cheese adjustment as presently calculated is of no consequence in these months when the price is based on the manufacturing milk price. During the past three years the differential per pound of fat, exclusive of July 1955 when the weighted average cream price was the Class II price determinant, has averaged approximately one-half of a cent. In July 1955 the adjustment was slightly over 7 cents.

When the Class II price during any of the months of April through July is based on the weighted average cream price it is likely that such price may be somewhat high for milk going in butter and cheese. The existence of a weighted average cream price, of course, is in itself an indication of a short butterfat market and raises a serious question as to whether any butterfat should be manufactured into butter and cheese during such period. Nevertheless, it is concluded that the price for butterfat utilized in butter and cheese in any such month should not reflect the higher butterfat value resulting from the use of the cream price but should continue to be priced on the basis of the U. S. manufacturing price component. It is believed that manufacturers in this market operating such facilities generally would have difficulty in making short-run shifts in their manufacturing operations.

The basis for computing the butterfat differential under the Boston and secondary market orders be revised to provide for the use of a New York 92-score butter quotation rather than the Chicago 92-score butter quotation whenever there is no Boston weighted average cream price.

A producer association proposed a method of determining the alternative butterfat differential from what might be considered the gross butterfat value reflected in the U. S. average manufacturing price. This method has merit in relating the butterfat differential to the value of butterfat in the Class II price, whether determined from cream and powder values or from the U. S. average manufacturing price. However, the method is exceedingly complex. Generally it would yield a differential a little above the level of Chicago butter plus 25 percent.

The Chicago and New York 92-score butter quotations usually maintain a rather close alignment, with the New York quotation running higher by about three-quarters of a cent. Increased by 25 percent this difference amounts to slightly less than a cent a pound of butterfat, or just under a tenth of a cent in terms of the butterfat differential. On an annual basis, use of the New York butter quotation to determine the alternative butterfat differential would produce approximately the same result as the complex method proposed by the producer association. The New York quotation also is recognized as a sound price from which to calculate butterfat values in eastern markets. As previously concluded, however, the price for producer milk utilized in Class II should reflect the higher value resulting from the use of the weighted average cream price, when such price is determined and produces a Class II price above that computed by use of the U. S. manufacturing milk price. Under such circumstances the producer butterfat differential should also reflect the higher value resulting from the use of the cream price.

4. *Revision of definition and treatment of producer-handlers.* No action should be taken on the basis of this record to restrict qualification under the producer-handler definition by the imposition of a maximum distribution volume. Also no change should be made in the treatment of a handler's own farm production. However, the definition of producer-handler should be changed so as to make clear that such a person must operate a processing and packaging plant from which Class I milk is disposed of in the marketing area. Other order changes should be made to provide that receipts in bulk from producer-handlers by pool handlers and buyer-handlers shall be treated as outside milk rather than as producer milk.

The orders now provide that a producer-handler shall be both a handler and dairy farmer and shall receive no milk other than exempt milk from other dairy farmers except producer-handlers. The Boston order further provides that a producer-handler's farm must be located within 80 miles of Boston.

Producer-handlers were exempt from full regulation under the New England orders primarily on the premise that they represented small business operations which were not a serious competitive factor in the market; that the terms

of the orders would impose an undue burden of record keeping upon them; and administrative effort in regulation of their operations would be difficult and costly.

Proponents for a change in the producer-handler definition at the hearing made no claim that past operations of producer-handlers have contributed to market instability and they suggested that insofar as possible they did not desire to disturb operations of producer-handlers of long standing.

The situation which apparently prompted the proposal for reconsideration of the treatment of producer-handlers under the New England orders was an announcement by a Springfield handler, whose supply consists solely of fully regulated milk, of his intention to create a large producer-handler operation. However, there is no indication that this can be done practicably. Certainly, on the basis of this record it would be inappropriate to change significantly the impact of regulation on the producer-handlers in the Boston, Merrimack Valley, and Worcester markets because of a special situation currently developing in the Springfield market.

The Boston market in particular has a number of producer-handlers of substantial size who have historically been a part of the market. Adoption of any volume distribution limit which would be of value in controlling the operations of a producer-handler would place these producer-handlers in a fully regulated status and would materially affect their business. Consideration of any substantial change in the orders as they apply to producer-handlers should be more complete than would be possible on the basis of this record.

Basically, the problem outlined by proponents appears to be directly associated with the spread between the blend and the Class I price. If dairy farmers are attempting to get into the distribution business as producer-handlers it is being done to take advantage of the margin between the blend and Class I price and/or the spread which handlers enjoy between producer and resale prices. The solution seemingly lies in better alignment of the blend and Class I prices.

Some producer-handlers who testified at the hearing suggested that the privilege now granted to producer-handlers of delivering their excess milk to the market as producer milk constituted an unfair advantage over regular producers. Since a producer-handler does not share his Class I sales with regular producers, he should not be permitted to dilute the pool with his excess milk and share in the market blend. Accordingly, it is concluded that producer-handlers' bulk milk deliveries to other types of handlers, other than exempt milk, should be treated as outside milk.

Clarification of the producer-handler definition should be made to specifically set forth the requirement that a producer-handler must operate a processing and packaging plant. This is the intent of the present provision and represents the distinguishing difference between the producer-handler and the dairy farmer who delivers exempt milk.

5. *Reconsideration of the exempt milk provisions.* The exempt milk provisions of each order should be revised to exclude milk received in bulk at a regulated plant from a plant not regulated under such order, except under emergency conditions resulting from fire, flood, hurricane or similar extraordinary circumstances. No change should be made in the exempt milk provisions of the respective orders as they apply to receipts from a dairy farmer, except to extend the application to include all fluid milk products other than cream.

The exempt milk provisions were first incorporated in the New England orders to recognize relationships of long standing and permit small dairy farmers with a local market for their own farm production to use regulated plants for their processing and packaging without payment obligations under the orders. Such a dairy farmer's operation was considered similar to that of a producer-handler, except that the latter operated his own plant. Later the provisions were extended to include processing and packaging transactions between regulated and unregulated plants. A principal reason for such extension was to meet emergency conditions which might render the unregulated plant temporarily inoperative.

Until recently the volume of exempt milk handled by Boston pool handlers has been inconsequential. It has been more substantial in the secondary markets, primarily because of the larger proportion of dairy farmers located near the market, with opportunities to engage in retail distribution and because of a number of public and private institutions which maintain dairy herds and use the exempt milk provision to have milk processed and packaged for their own use.

The record indicates that in 1956 a multiple-plant handler began to take advantage of the exempt milk provisions to use a regulated plant for processing and packaging unregulated milk sold outside the marketing area. The record also shows that during the latter part of 1956 another multiple-plant handler began to take advantage of the exempt milk provisions to manipulate blend prices between markets and to relieve local situations which had previously made it necessary for the handler to pay premiums.

The use of regulated plants for processing and packaging milk, under the exempt milk provisions, for disposition in nonfederally regulated areas may provide a loophole by which Class I sales are lost for regulated milk. The orders should not promote practices which may lead to such loss of Class I sales. Accordingly, it is concluded that the application of the exempt milk provisions to receipts of bulk milk from nonfederally regulated plants should be discontinued. The unregulated dealer with inadequate facilities, who relies on other persons for his processing and packaging but desires to remain unregulated may do so by finding another unregulated dealer to perform such operations. In a similar manner multiple-plant handlers with both regulated and unregulated plants should not have the privilege of processing and packaging their unregulated milk in their regulated plants. If they desire to maintain Class I operations outside of the scope of regulation they must adjust their business so that the unregulated milk does not get into the regulated plants.

The exempt milk provisions should not provide the medium whereby multiple-plant handlers operating in two or more of the New England Federal order markets may manipulate blended prices as between orders. If in a handler's opinion undesirable price relationships develop between markets, corrective measures should be sought through amendment of the orders and not by price manipulations involving the abuse of the exempt milk provisions.

It is recognized that catastrophic conditions may render a plant temporarily unusable and a dealer may have to devise an emergency program for handling milk during such situations. It is believed that the orders should not deter handling of milk under such circumstances and accordingly it is proposed that the exempt milk definition should continue to cover movements of milk from an unregulated plant to a regulated plant, for processing and packaging, under such catastrophic conditions. However, the provision should not be applicable in the case of ordinary plant breakdowns or work stoppages, involving situations which are clearly the usual risk of any handler. These are readily distinguishable from extraordinary circumstances which are completely beyond the handler's control.

No change is being recommended with reference to the general application of the exempt milk provisions to dairy farmers. At the hearing proponents proposed that volume limitations similar to those proposed for producer-handlers be applied to exempt milk for dairy farmers. The imposition of volume limitations on producer-handlers is not being recommended on the basis of this hearing and hence it appears inappropriate to impose such limitations on dairy farmers who are not producer-handlers.

The exempt milk provisions should be amended to cover the return of all packaged fluid milk products, other than cream. There appears to be no basic reason for permitting the exempt milk provisions to apply to packaged milk but not to other Class I products.

Elsewhere in this recommended decision it is concluded that producer-handlers' bulk deliveries to other types of handlers, other than of exempt milk, should be treated as outside milk. Parallel treatment would seem to require that any excess milk of those dairy farmers who do not operate plants but who make use of the exempt milk provisions in distributing Class I milk in the marketing area should also be treated as outside milk. However, it must be recognized that a dairy farmer without a plant does not have handler status and is not required to keep records and make reports to the market administrator. The market administrator has no satisfactory means of determining that an individual delivering exempt milk as a dairy farmer did not also

deliver additional milk in the status of a producer either to the same handler or to another handler. In any event the volume of milk which might be so delivered is apparently negligible and it is concluded that no change need be made in this regard.

6. *Revision of the classification and assignment provisions with reference to milk moving between the four markets.* The orders should be amended to provide that fluid milk products, other than cream, moved in packaged form from a regulated plant under one of these orders to a regulated plant under another of these orders, or sold directly to consumers in another marketing area regulated under one of these orders, shall be assigned to Class I milk and credited to the market from which it originates.

The several New England orders operating under marketwide pooling arrangement are generally so constructed as to permit free movement of milk between markets. If a handler in one of these markets extends his operations to another federally regulated market such sales should be considered as a part of the fluid milk sales for which producers in his market receive the Class I price. To permit unrestricted competition for sales among handlers, all of whose milk is priced and regulated on a uniform basis, full reciprocity in the movement of packaged milk as between regulated plants in the four markets and on sales direct to consumers in another marketing area should be provided.

The orders should permit free movement of Class I milk in packaged form between regulated markets. Adoption of this principle will permit handlers in the Merrimack Valley, Springfield, or Worcester markets to supply Class I milk in packaged form to Boston regulated plants as well as to regulated plants under the other secondary orders. Such handlers will also be able to make direct sales to consumers in all the other marketing areas and have the Class I sales credited to their own market. Boston handlers already enjoy this privilege in the secondary markets with the exception of sales directly to consumers in the Springfield marketing area. In effect, this amendment will change the emphasis in determining classification of milk moved between regulated markets from sales "directly to consumers" to sales "in packaged form".

Bulk milk will continue to be classified and assigned as heretofore, except that the exempt milk provisions will no longer apply to receipts of such milk from unregulated plants. The classification and assignment provisions of the present orders are clear and well integrated as they relate to bulk milk movements between regulated markets. Packaged milk, on the other hand, will be considered as Class I milk and credited to the market from which it originates.

In view of the recommended difference in treatment between bulk product and packaged product, a definition of the term "packaged fluid milk products" should be included in the order. It is intended that such term include all fluid milk products in any container in which it was delivered to the consumer, regardless of size.

7. *Consideration of an equalization payment under the Boston order on Class I milk received from other Federal order plants.* No provision should be made in the Boston order for equalization payments on milk moved to the Greater Boston marketing area from other federally regulated plants.

It was proposed that a provision similar to that currently provided in each of the secondary market orders be included in the Boston order. Proponents pointed out that Boston milk moving to New York and allocated to Class I under that order may be subject to an equalization payment and accordingly that similar treatment should be provided for New York milk moving to Boston. They further suggested that the procedure for equalizing payments as contained in the secondary market orders seemingly has been effective in offsetting inter-pool zone differential advantages without obstructing free and efficient movement of milk supplies between the several markets.

Under the terms of the various orders, the Secretary establishes prices to reflect the use value of the milk, which prices are intended to bring forth an adequate but not excessive supply of milk for the market. Under usual circumstances the difference in prices as between markets reflects only transportation differentials and the local supply-demand situation. It is intended that milk should move freely between markets in response to price differences due to changing supply-demand relationships.

Accordingly, it is concluded that no provision should be made for equalization payments on New York order milk disposed of in the Boston market.

It seems likely that this same principle would be equally applicable among all the New England orders. While the secondary market orders presently contain provisions for equalization payments between federally regulated markets these provisions were not an issue at the hearing and no change should be made on the basis of this record.

8. *Clarification of pooling status in the case of a plant moving from one regulated market to another.* The pool plant provisions of the secondary market orders should be revised to specify clearly under which secondary market order a plant will be pooled in the event that it meets the pooling requirements under more than one of such orders and to assure pool status during the flush months to a country plant which met all of the pooling requirements during the months of October through February but which was actually a pool plant under one of the other orders during any part of this period. In this regard it is concluded that a plant qualifying for pooling under more than one of the secondary market orders in any month should be pooled under that order for the market in which it does the greater volume of its Class I business.

Under the present provisions of each of the secondary market orders a basic requirement for pool status is that the plant not be operated as a pool plant under either the Boston, New York or the other two secondary market orders. Each order also provides minimum shipping requirements which a county plant must meet to qualify for pooling during the October-February period and a plant qualifying in each of the months of October through February may be pooled during the months of March through September without making shipments to the market. Under these provisions it is possible for a plant to qualify for pooling in any one month under more than one order by virtue of its shipments or direct Class I disposition in the marketing area. In such eventuality the orders give no direction for determining under which order the plant should be permitted pool status. While this has not yet become an actual problem, the emphasis on centralized processing and packaging operations and other efficiencies in transportation and distribution make it a strong possibility.

A country plant which continuously meets all the pooling requirements of a particular order should not lose its pooling status in the market in the months of March through September solely by virtue of the fact that its shipments into one of the other marketing areas in one or more months of October through February were greater than into such market where it normally associates.

The proposal made at the hearing would provide a designated priority of pooling for plants qualifying under more than one order. It is concluded that a plant should more properly be pooled under the order for that market in which it disposes of the greater volume of Class I milk.

While the mileage limitation contained in the city plant definitions makes it unlikely that a city plant might qualify under more than one secondary market order it is concluded that the order should provide a basis for ascertaining under which order a plant should be pooled if such situation should occur. Again, the principle of association with the market in which the greater volume of Class I business is done should be controlling.

The changes proposed herein are not intended in any way to change a plant's pooling status relative to the New York or Boston orders.

9. *Revision of the "distributing plant" definition under the Boston order.* The definition of the term "distributing plant" in the Boston order should be revised to provide a tolerance for casual or accidental Class I distribution to consumers in the Boston marketing area by a regulated secondary market order plant, to avoid unintentional pooling of such secondary market plant under the Boston order. Such tolerance should not be applicable to plants which are not regulated by any of the secondary market orders.

The Boston order contains a provision under which a plant can be designated as a nonpool plant, but this provision applies only to nondistributing plants. A handler who wishes to avoid the pooling of any of his plants under the order can do so by requesting nonpool plant designation of such plants by the market

administrator. This designation cannot be applicable to any plant from which Class I milk, in the form of milk, was disposed of directly to consumers in the marketing area, because the plant thereby would have met the definition of a "distributing plant". No quantity tolerance of any kind, so far as such direct distribution is concerned, is presently contained in the definition of the term "distributing plant."

The proposal for a small tolerance was made by a handler with multiple plant operations which include regulated plants in both the Boston and secondary market orders as well as unregulated plants. To provide greater operating efficiencies this company centralizes certain packaging operations and as a result packaged milk may move from its secondary market plants to its Boston order plants. If a single quart of such milk, through error, should be delivered to a customer in the Boston marketing area without intermediate movement to a Boston plant, the secondary market plant would very probably become subject to pooling under the Boston order. Such unintentional pooling could bring about a substantial difference in blend prices to producers under the several orders and possibly disrupt orderly marketing in the area.

The proponent requested a two percent tolerance but did not limit his request to secondary market plants. It is concluded that this tolerance should not apply to plants which are not regulated under any of these orders but that it would be appropriate and would give ample protection in the case of regulated plants under the secondary market orders, without invalidating the principle that the Boston order shall have prior claim in pooling any plant doing a significant business in the Boston marketing area.

A handler with a single plant operation must dispose of more than 10 percent of his receipts as Class I milk in the marketing area before becoming fully regulated and therefore it is unlikely that accidental sales in the area will have this result. The multiple plant operator has the privilege of pooling part or all of his operation if he meets this 10 percent requirement and also meets the specified shipping requirements for each plant. On the other hand, each of such a handler's plants can much more readily become a pool plant. If such handler does not choose to pool his entire operation he may file a request for nonpool designation of certain plants. Even if he does file such a request a casual disposition of Class I milk directly to consumers in the marketing area from a plant which was ordinarily an unregulated plant might bring such plant under full regulation. A multiple plant operator is given a considerable amount of freedom in deciding whethor or not to pool his entire operation and he must accept the full responsibility for protecting his unregulated plants from regulation. Ordinarily, a handler maintains unregulated plant status for one or more of his plants because of the financial advantages associated with that status. Hence, the pooling of a plant which is normally an unregulated plant would not adversely affect the pool in the great majority of cases, and would continue to assure uniform pricing among handlers. Therefore, no concession should be granted in the case of unregulated distributing plants to protect their status as unregulated plants.

10. *Revise the country receiving plant qualifications under the Merrimack Valley order.* The pooling provisions under the Merrimack Valley order should be amended to permit a country plant which processes and packages Class I milk for sale in the marketing area to qualify as a pool plant in each month in which at least 10 percent of its total receipts of fluid milk products other than cream is disposed of in the marketing area as Class I milk. The permissive deduction of Class I sales made directly to consumers outside the marketing area before determining utilization for pooling requirements should be deleted. There was no proposal in the notice of hearing to change the 30 percent shipping requirements applicable to the usual country plants and no change should be made in that regard.

Under the present provisions of the order, 30 percent of a country plant's total receipts, after deducting Class I sales direct to consumers outside the marketing area, must be disposed of directly to consumers in the marketing area as Class I milk or be shipped as milk to city plants at which more than 50 percent of the total receipts of fluid milk products, other than cream, is disposed of as Class I milk. The order also provides that any country plant which is a pool plant continuously in each of the months of October through February shall be a pool plant continuously for the following months of March through September regardless of the quantity then disposed of in the marketing area. This 30 percent requirement was temporarily reduced by suspension action to 10 percent to protect the pooling status of a plant presently associated with the market, until there could be a review of the pooling requirements at a public hearing.

It was proposed at the hearing that each country receiving plant located within 40 miles of the marketing area, and processing and packaging fluid milk products for distribution direct to consumers and/or through other handlers shall be a pool plant in any month in which the quantity of fluid milk products, other than cream, disposed of in the marketing area as Class I milk, is at least 10 percent of its total receipts of fluid milk products, other than cream. No proposal was made for changing the 30 percent standard as it would apply to the usual type of supply plant. The Manchester Dairy System, proponent of the proposal, is a country plant with processing and packaging facilities. Manchester Dairy System makes substantial Class I sales in packaged form to other regulated handlers in the marketing area. It also makes sales in bulk to such handlers. In addition, it makes sales to unregulated plants and direct sales to consumers outside the marketing area.

The Manchester Dairy System has been continuously associated with the Merrimack Valley market since prior to the inception of Federal regulation of the market. Pooling requirements as they affect Manchester Dairy System have been an issue at several previous hearings and the amendment to the order effective September 1, 1952 which permitted a country plant to deduct Class I sales to consumers outside the marketing area from total receipts prior to the determination of Class I business done in the marketing area was made to facilitate Manchester Dairy System's continued qualification. The suspension order issued September 14, 1956, was also made to assure Manchester continued pooling status pending review of the problem at this hearing.

The difficulties of the Manchester Dairy System in meeting the pooling requirements of the order are primarily centered in the fact that it has no direct distribution in the marketing area but has acted primarily as a servicing agent for other regulated handlers. Business gained in earlier years by acting as a supplier of packaged milk and bulk milk to other regulated handlers has substantially diminished as the distributing handlers have installed their own facilities or have changed to other sources of supply. Up to the present time the Manchester Dairy System has been able to meet the pooling requirements, but its continued ability to do so is problematical.

A country plant, under the definition of that term in the order is any plant which is located beyond 10 miles of the marketing area, and conversely a city plant is a plant located within 10 miles of the marketing area. Under usual circumstances, a country plant is merely a supply plant doing no processing and packaging of milk for fluid distribution whereas a city plant usually does perform such operations and distributes Class I milk in the marketing area. Any country plant, such as that of Manchester Dairy System, whose operations are similar to those of city plants should be permitted to qualify for pooling on a basis similar to that for city plants. However, such a country plant should no longer be permitted to qualify for pooling in the flush months on the basis of its continuous pool plant status during the short season, but should be required to qualify on the basis of Class I distribution in the marketing area in each month in the same manner as city plants.

Question was raised at the hearing as to whether a country plant should be entitled to the zone price differentials applicable to country plants if it is permitted to pool on performance standards similar to those for city plants. The changes herein proposed will in no way affect the cost of transporting milk to the market and the zone price differentials should be equally applicable under the revised standard.

11. *Other changes.* Minor amendments to the Boston order should be made so as to insure that plants, coming under regulation because of the addition of four towns to the marketing area on November 1, 1956, should be eligible for pooling in the 1957 flush season if they

continuously meet all of the pooling requirements from that date. The status as producers of dairy farmers delivering to such plants should also be preserved for the 1957 flush season.

The administration assessment provisions of the Merrimack Valley order should be extended so as to apply to handlers' receipts of exempt milk processed at regulated plants. The administrative cost in the verification of such exempt milk is equally as great as that applicable to other milk to which the assessment applies. The recommended change will also provide uniformity of treatment under the New England orders.

General findings. (a) The proposed marketing agreements and the orders, now in effect, and as hereby proposed to be amended, and all of the terms and conditions thereof will tend to effectuate the declared policy of the act;

(b) The proposed marketing agreements and orders, as amended, and as hereby proposed to be amended, regulate the handling of milk in the same manner as, and are applicable to persons in the respective classes of industrial and commercial activity, specified in a proposed marketing agreement and order upon which a hearing has been held; and

(c) The parity prices of milk as determined pursuant to section 2 of the act are not reasonable in view of the price of feeds, available supplies of feeds, and other economic conditions which affect market supply and demand for milk in the respective marketing areas; and the minimum prices specified in the proposed marketing agreements and in the orders, as amended, and as hereby proposed to be amended, are such prices as will reflect the aforesaid factors, insure a sufficient quantity of pure and wholesome milk in each of said marketing areas, respectively, and be in the public interest.

Order of the Secretary directing that referenda be conducted: determination of representative periods: and designation of agent to conduct such referenda. Pursuant to section 8c (19) of the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 608c (19)), it is hereby directed that referenda be conducted among producers (as defined in the orders, as amended, and as hereby proposed to be further amended, regulating the handling of milk in the Boston, Merrimack Valley, Springfield, and Worcester, Massachusetts, marketing areas) who, during the determined representative periods were engaged in the production of milk for sale in the respective marketing areas specified in the aforesaid orders, as amended, and as hereby proposed to be further amended, to determine whether such producers favor the issuance of the respective orders, amending the orders, as amended, which are filed herewith.

The month of January 1957, is hereby determined to be the representative period for the conduct of such referenda.

Richard D. Aplin is hereby designated agent of the Secretary to conduct such referenda in accordance with the procedure for the conduct of referenda to determine producer approval of milk marketing orders as published in the FEDERAL REGISTER on August 10, 1950 (15 F. R. 5177).

Marketing agreements and orders. Annexed hereto and made a part hereof are separate marketing agreements and orders, amending the orders, regulating the handling of milk in the Greater Boston, Merrimack Valley, Springfield, and Worcester, Massachusetts, marketing areas, which have been decided upon as the detailed and appropriate means of effectuating the foregoing conclusions. These documents shall not become effective unless and until the requirements of § 900.14 of the rules of practice and procedure, as amended, governing proceedings to formulate marketing agreements and orders have been met.

It is hereby ordered that all of this decision, except the marketing agreements, be published in the FEDERAL REGISTER. The regulatory provisions of said marketing agreements are identical with those contained in the respective orders now in effect, and as hereby proposed to be amended respectively by the attached orders which will be published with this decision.

This decision filed at Washington, D. C., this 12th day of April 1957.

[SEAL] EARL L. BUTZ,
Assistant Secretary.

Order[1] Amending the Order, as Amended, Regulating the Handling of Milk in the Greater Boston, Mass., Marketing Area

§ 904.0 *Findings and determinations.* The findings and determinations hereinafter set forth are supplementary and in addition to the findings and determinations previously made in connection with the issuance of the aforesaid order and of each of the previously issued amendments thereto; and all of said previous findings and determinations are hereby ratified and affirmed, except insofar as such findings and determinations may be in conflict with the findings and determinations set forth herein.

(a) *Findings upon the basis of the hearing record.* Pursuant to the provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.), and the applicable rules of practice and procedure, as amended, governing the formulation of the marketing agreements and marketing orders (7 CFR Part 900), a public hearing was held upon the proposed marketing agreement and proposed amendments to the order, as amended, regulating the handling of milk in the Greater Boston, Massachusetts, marketing area. Upon the basis of the evidence introduced at such hearing and the record thereof, it is found that:

(1) The said order, as amended, and as hereby further amended, and all of the terms and conditions thereof, will tend to effectuate the declared policy of the act;

(2) The parity price of milk, as determined pursuant to section 2 of the act, is not reasonable in view of the price of feeds, available supplies of feeds, and other economic conditions which affect market supply and demand for milk in the marketing area, and the minimum prices specified in the order, as amended, and as hereby further amended, are such prices as will reflect the aforesaid factors, insure a sufficient quantity of pure and wholesome milk, and be in the public interest; and

(3) The said order, as amended, and as hereby further amended, regulates the handling of milk in the same manner as and is applicable only to persons in the respective classes of industrial and commercial activity, specified in a marketing agreement upon which a hearing has been held.

Order relative to handling. It is therefore ordered that on and after the effective date hereof, the handling of milk in the Greater Boston, Massachusetts, marketing area shall be in conformity to and in compliance with the terms and conditions of the aforesaid order, as amended, and as hereby further amended, and the aforesaid order is hereby further amended as follows:

1. Add a new sentence at the end of § 904.2 (d) to read as follows: "With respect to the months of April through June 1957, the term shall not include any dairy farmer from whom the handler's receipts of nonpool milk during the months of July through October 1956 consisted only of milk received at a plant which became subject to this order as a result of the extension of the marketing area to include the towns of Framingham, Natick, Wayland, and Weston."

2. Delete the first sentence of § 904.2 (e) and substitute the following: " 'Producer' means any dairy farmer whose milk is delivered from his farm to a pool plant, except a dairy farmer for other markets, a dairy farmer with respect to exempt milk delivered, and a producer-handler."

3. Delete § 904.2 (i) and substitute the following:

(i) "Producer-handler" means any dairy farmer who receives milk of his own production only from farms located within 80 miles of the State House in Boston and operates a processing and packaging plant from which Class I milk is disposed of in the marketing area; and who receives no milk, other than exempt milk, from other dairy farmers except producer-handlers.

4. Delete the period at the end of § 904.3 (g) and add the following: ": *Provided,* That in the case of a plant which would lose its pool plant status under another Federal order by meeting the definition of a distributing plant under this order, the term shall apply only if such Class I disposition to consumers in the marketing area exceeds two percent of its total receipts of fluid milk products other than cream."

5. Delete the semicolon at the end of § 904.4 (g) (1) and add the following: "and any fluid milk product, other than

[1] This order shall not become effective unless and until the requirements of § 900.14 of the rules of practice and procedure, as amended, governing proceedings to formulate marketing agreements and orders have been met.

cream and exempt milk, which are received in bulk from producer-handlers at the regulated plant of a pool handler or a buyer-handler;".

6. In § 904.4 (g) (2) delete the word "and" after the words "emergency milk", and the semicolon (;) after the phrase "pursuant to § 904.27" and add the following: ", and receipts of packaged fluid milk products from any plant which is a regulated plant under the provisions of the Merrimack Valley, Springfield, or Worcester orders;"

7. In § 904.4 (g) (3) insert immediately after the words "Merrimack Valley" the following: ", Springfield"

8. Delete § 904.4 (i) and substitute the following:

(i) "Exempt milk" means:

(1) Milk received at a regulated plant in bulk from the dairy farmer who produced it, for processing and packaging, and for which an equivalent quantity of packaged fluid milk products, other than cream, is returned to the dairy farmer during the same month; or

(2) Milk received at a regulated plant in bulk from an unregulated plant to be processed and packaged, and for which an equivalent quantity of packaged fluid milk products, other than cream, is returned to the operator of the unregulated plant during the same month, if such receipt of bulk milk and return of packaged fluid milk products occurs during an interval in which the facilities of the unregulated plant at which the milk is usually processed and packaged are temporarily unusable because of a fire, flood, storm, or similar extraordinary circumstances completely beyond the dealer's control; or

(3) Packaged fluid milk products, other than cream, received at a regulated plant from an unregulated plant in return for an equivalent quantity of bulk milk moved from a regulated plant for processing and packaging during the same month.

9. In § 904.4 add a new paragraph (k) to read as follows:

(k) "Packaged fluid milk products" means fluid milk products which have been placed in containers for disposition to consumers and have not been removed from those containers prior to such disposition.

10. In § 904.21 (c) delete the word "distributing" as it occurs immediately following the words "each city".

11. In § 904.21 (f) delete the figure "1956" and substitute therefor the figure "1957".

12. Delete § 904.29 (c).

13. In § 904.41 (b) delete the word "solids" following the words "spray process nonfat dry milk".

14. Delete paragraph (d) (1) of § 904.41 and substitute the following:

(1) Adjust the average price for milk for manufacturing purposes, f. o. b. plants United States, as reported on a preliminary basis by the United States Department of Agriculture for the month by subtracting for each one-tenth of 1 percent of average butterfat content above 3.7 percent, or adding for each one-tenth of 1 percent of average butterfat content below 3.7 percent, an amount per hundredweight which shall be calculated by the market administrator by multiplying by 0.125 the average of the daily prices, using the midpoint of any range as one price, for Grade A (92-score) butter at wholesale in the New York market as reported for the period between the 16th day of the preceding month and the 15th day, inclusive, of the current month by the United States Department of Agriculture.

15. Revise the table set forth in § 904.41 (d) (2) to read as follows:

Month:	*Amount (cents)*
January	+13
February	+12
March	−05
April	−09
May	−12
June	−11
July	+08
August	+17
September	+14
October	+16
November	+17
December	+17

16. Delete all of § 904.44 and substitute the following:

§ 904.44 *Butter and cheese adjustment.* For any of the months of April, May, June, and July, in which the Class II price is computed pursuant to § 904.41 (c), the value of a pool handler's milk computed pursuant to § 904.50 shall be reduced by an amount determined as follows:

(a) Subtract from the price computed pursuant to § 904.41 (c) the amount computed pursuant to § 904.41 (d) and divide by 3.7. The result is the butter and cheese differential.

(b) Determine the pounds of butterfat in Class II milk received from producers, which was processed into salted butter, Cheddar cheese, American Cheddar cheese, Colby cheese, washed curd cheese, or part skim Cheddar cheese at a plant of the first handler of such butterfat or at a plant of a second person to which such butterfat was moved.

(c) Subtract, such portion of the quantity determined in paragrah (b) of this section as was made into salted butter and disposed of by the handler or such second person in a form other than salted butter.

(d) Multiply the remaining pounds of butterfat determined pursuant to paragraph (c) of this section by the butter and cheese differential determined pursuant to paragraph (a) of this section.

17. In § 904.63 delete the word "Chicago" as it appears immediately following the words "for Grade A (92-score) butter at wholesale in the" and substitute the word "New York".

18. In § 904.65 (a) (1) insert the words "or producer-handler's plant" immediately after the words "unregulated plant".

19. Delete § 904.65 (a) (2) and substitute the following:

(2) On outside milk received at any regulated plant from an unregulated plant or producer-handler's plant located in Maine, the payment shall be at the difference between the price pursuant § 904.40 applicable at the zone location of the Maine plant and the lesser of either the simple average for the month of the lowest minimum semimonthly prices for Class II milk containing 3.7 percent butterfat which are established by the Maine Milk Commission for the market in which such Maine plant is located or the price determined pursuant to § 904.41 applicable at the zone location of such plant.

20. In § 904.65 (a) (3) insert the words "or producer-handler's plant" immediately after the words "unregulated plant" in both instances in which they appear in the subparagraph.

Order[1] Amending the Order, as Amended, Regulating the Handling of Milk in the Merrimack Valley, Mass., Marketing Area

§ 934.0 *Findings and determinations.* The findings and determinations hereinafter set forth are supplementary and in addition to the findings and determinations previously made in connection with the issuance of the aforesaid order and of each of the previously issued amendments thereto; and all of said previous findings and determinations are hereby ratified and affirmed, except insofar as such findings and determinations may be in conflict with the findings and determinations set forth herein.

(a) *Findings upon the basis of the hearing record.* Pursuant to the provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.), and the applicable rules of practice and procedure, as amended, governing the formulation of the marketing agreements and marketing orders (7 CFR Part 900), a public hearing was held upon the proposed marketing agreement and proposed amendments to the order, as amended, regulating the handling of milk in the Merrimack Valley, Massachusetts, marketing area. Upon the basis of the evidence introduced at such hearing and the record thereof, it is found that:

(1) The said order, as amended, and as hereby further amended, and all of the terms and conditions thereof, will tend to effectuate the declared policy of the act;

(2) The parity price of milk, as determined pursuant to § 2 of the act, is not reasonable in view of the price of feeds, available supplies of feeds, and other economic conditions which affect market supply and demand for milk in the marketing area, and the minimum prices specified in the order, as amended, and is hereby further amended, are such prices as will reflect the aforesaid factors, insure a sufficient quantity of pure and wholesome milk, and be in the public interest; and

(3) The said order, as amended, and as hereby further amended, regulates the handling of milk in the same manner as and is applicable only to persons in the respective classes of industrial and commercial activity, specified in a marketing

[1] This order shall not become effective unless and until the requirements of § 900.14 of the rules of practice and procedure, as amended, governing proceedings to formulate marketing agreements and orders have been met.

agreement upon which a hearing has been held.

Order relative to handling. It is therefore ordered that on and after the effective date hereof, the handling of milk in the Merrimack Valley, Massachusetts, marketing area shall be in conformity to and in compliance with the terms and conditions of the aforesaid order, as amended, and as hereby further amended, and the aforesaid order is hereby further amended as follows:

1. Delete the phrase "under the Boston order," as it appears at the end of § 934.2 (d) and substitute therefor the words "under the Boston, Worcester, or Springfield orders."

2. Delete the first sentence of § 934.2 (e) and substitute therefor the following: " 'Producer' means any dairy farmer whose milk is delivered from his farm to a pool plant, except a dairy farmer for other markets, a dairy farmer with respect to exempt milk delivered, and a producer-handler."

3. Delete § 934.2 (i) and substitute therefor the following:

(i) "Producer-handler" means any dairy farmer who operates a processing and packaging plant from which Class I milk is disposed of in the marketing area, and who receives no milk, other than exempt milk, from other dairy farmers except producer-handlers.

4. In § 934.3 (e) change the section references "934.20, 934.21 and 934.22" to read "934.20, 934.21, 934.22 and 934.23".

5. Delete the semicolon at the end of § 934.4 (g) (1) and add the following: "and any fluid mild products, other than cream and exempt milk, which are received in bulk from producer-handlers at the regulated plant of a pool handler or a buyer-handlers;".

6. In § 934.4 (g) (3) insert a comma (,) immediately following the word "Boston" and add thereafter the word "Springfield".

7. Delete § 934.4 (i) and substitute therefor the following:

(i) "Exempt milk" means:

(1) Milk received at a regulated plant in bulk from the dairy farmer who produced it, for processing and packaging, and for which an equivalent quantity of packaged fluid milk products, other than cream, is returned to the dairy farmer during the same month; or

(2) Milk received at a regulated plant in bulk from an unregulated plant to be processed and packaged, and for which an equivalent quantity of packaged fluid milk products, other than cream, is returned to the operator of the unregulated plant during the same month, if such receipt of bulk milk and return of packaged fluid milk products occurs during an interval in which the facilities of the unregulated plant at which the milk is usually processed and packaged are temporarily unusable because of fire, flood, storm, or similar extraordinary circumstances completely beyond the dealer's control; or

(3) Packaged fluid milk products, other than cream, received at a regulated plant from an unregulated plant in return for an equivalent quantity of bulk milk moved from a regulated plant for processing and packaging during the same month.

8. In § 934.4 insert a new paragraph (j) as follows:

(j) "Packaged fluid milk products" means fluid milk products which have been placed in containers for disposition to consumers and have not been removed from those containers prior to such disposition.

9. Delete § 934.16 (d) and substitute the following:

(d) If moved to a plant subject to the Boston order, or moved in bulk to a plant subject to the Worcester or Springfield orders they shall be classified in the class to which the receipt is assigned under such other order.

10. Renumber § 934.16 (e) as (f) and insert a new paragraph (e) to read as follows:

(e) If moved in packaged form to a plant subject to the Worcester or Springfield orders, they shall be classified as Class I milk.

10a. Change the reference in § 934.16 (f) as renumbered, from "paragraphs (a) through (d)" to "paragraphs (a) through (e)".

11. Delete § 934.20 and substitute therefor the following:

§ 934.20 *Basic requirements for pool plant status.* Subject to the provisions of § 934.23, each receiving plant shall be a pool plant in each month in which it meets the applicable requirements of §§ 934.21 or 934.22, together with the following basic requirements.

(a) A majority of the dairy farmers delivering milk to the plant hold certificates of registration issued pursuant to Chapter 94, sections 16C and 16G, of the Massachusetts General Laws.

(b) The handler operating the plant holds a license which has been issued by the milk inspector of a city or town in the marketing area, pursuant to Chapter 94, section 40, of the Massachusetts General Laws, or a majority of the dairy farmers delivering milk to the plant are approved by such an inspector as sources of supply for milk for sale in his municipality.

12. Delete § 934.22 and substitute therefor a new § 934.22 to read as follows:

§ 934.22 *Additional requirements for country pool plants.* (a) Any country plant at which fluid milk products regularly are processed and packaged for disposition in the marketing area as Class I milk shall be a pool plant in any month in which at least 10 percent of the plant's total receipts of fluid milk products, other than cream, is disposed of in the marketing area as Class I milk.

(b) Any country plant which does not meet the requirements of paragraph (a) of this section shall be a pool plant in any month in which more than 30 percent of its total receipts of fluid milk products, other than cream, is disposed of directly to consumers in the marketing area as Class I milk or is shipped as milk to city plants at which more than 50 percent of the total receipts of fluid milk products, other than cream, is disposed of as Class I milk.

(c) Any country plant which meets the pool plant requirements under this order during each of the months of October through February and which is a pool plant under this order or under the Boston, Worcester, or Springfield orders during each of such months except a plant which is a pool plant under paragraph (a) of this section, shall be a pool plant continuously for the following months of March through September, regardless of the quantity then disposed of in the marketing area, if the handler's request for pool plant status for such seven-month period is received by the market administrator before March 1 of that year. Changes in the identity of the handler operating the plant shall not affect the application of this paragraph.

13. Add a new § 934.23 to read as follows:

§ 934.23 *Conditions resulting in nonpool plant status.* Any plant shall be a nonpool plant in any month in which any of the following conditions apply:

(a) The plant has the status of a pool plant under the provisions of the Boston, New York, or Worcester orders.

(b) The plant is operated by a handler in his capacity as a producer-handler.

(c) The plant also meets all the applicable pooling requirements of the Springfield order and the combined quantity of Class I milk disposed of in the Springfield marketing area directly to consumers, and of milk shipped to Springfield city plants at which more than 50 percent of the total receipts of fluid milk products, other than cream, is disposed of as Class I milk, exceeds the combined quantity of such disposition and shipments in the Merrimack Valley marketing area.

(d) Except as provided in § 934.22 (b) each of a handler's plants which is a nonpool receiving plant during any of the months of October through February shall not be a pool plant in any of the following months of March through September in which it is operated by the same handler, an affiliate of the handler, or any person who controls or is controlled by the handler, unless its operation during October through February was in the handler's capacity as a producer-handler.

14. In § 934.27 (b) insert after the word "Receipts" the phrase "in bulk".

15. Renumber § 934.27 (c) as (d) and insert a new paragraph (c) to read as follows:

(c) Receipts in packaged form of fluid milk products, other than cream, from regulated plants under the Worcester or Springfield orders shall be assigned to Class I milk.

16. Delete § 934.50 (g).

17. In § 934.72 insert after the words "receipts from his own production" the words "receipts of exempt milk processed at a regulated plant,".

Order [1] Amending the Order, as Amended, Regulating the Handling of Milk in the Springfield, Mass., Marketing Area

§ 996.0 *Findings and determinations.* The findings and determinations hereinafter set forth are supplementary and in addition to the findings and determinations previously made in connection with the issuance of the aforesaid order and of each of the previously issued amendments thereto; and all of said previous findings and determinations are hereby ratified and affirmed, except insofar as such findings and determinations may be in conflict with the findings and determinations set forth herein.

(a) *Findings upon the basis of the hearing record.* Pursuant to the provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.), and the applicable rules of practice and procedure, as amended, governing the formulation of the marketing agreements and marketing orders (7 CFR Part 900), a public hearing was held upon the proposed marketing agreement and proposed amendments to the order, as amended, regulating the handling of milk in the Springfield, Massachusetts, marketing area. Upon the basis of the evidence introduced at such hearing and the record thereof, it is found that:

(1) The said order, as amended, and as hereby further amended, and all of the terms and conditions thereof, will tend to effectuate the declared policy of the act;

(2) The parity price of milk, as determined pursuant to § 2 of the act, is not reasonable in view of the price of feeds, available supplies of feeds, and other economic conditions which affect market supply and demand for milk in the marketing area, and the minimum prices specified in the order, as amended, and is hereby further amended, are such prices as will reflect the aforesaid factors, insure a sufficient quantity of pure and wholesome milk, and be in the public interest; and

(3) The said order, as amended, and as hereby further amended, regulates the handling of milk in the same manner as and is applicable only to persons in the respective classes of industrial and commercial activity, specified in a marketing agreement upon which a hearing has been held.

Order relative to handling. It is therefore ordered that on and after the effective date hereof, the handling of milk in the Springfield, Massachusetts, marketing area shall be in conformity to and in compliance with the terms and conditions of the aforesaid order, as amended, and as hereby further amended, and the aforesaid order is hereby further amended as follows:

1. Delete the phrase "under the Boston order" as it appears at the end of § 996.2 (d) and substitute therefor the words "under the Boston, Merrimack Valley, or Worcester orders".

2. Delete the first sentence of § 996.2 (e) and substitute therefor the following: " 'Producer' means any dairy farmer whose milk is delivered from his farm to a pool plant, except a dairy farmer for other markets, a dairy farmer with respect to exempt milk delivered, and a producer-handler."

3. Delete § 996.2 (i) and substitute therefor the following:

(i) "Producer-handler" means any dairy farmer who operates a processing and packaging plant from which Class I milk is disposed of in the marketing area, and who receives no milk, other than exempt milk, from other dairy farmers except producer-handlers.

4. In § 996.3 (e) change the section references "996.20, 996.21, and 996.22" to read "996.20, 996.21, 996.22 and 996.23".

5. Delete the semicolon at the end of § 996.4 (g) (1) and add the following: "and any fluid milk products, other than cream and exempt milk, which are received in bulk from producer-handlers at the regulated plant of a pool handler or a buyer-handler;".

6. In § 996.4 (g) (3) delete the phrase "under the Worcester order" and substitute therefor the words "under the Boston, Merrimack Valley, or Worcester orders".

7. Delete § 996.4 (i) and substitute the following:

(i) "Exempt milk" means:

(1) Milk received at a regulated plant in bulk from the dairy farmer who produced it, for processing and packaging, and for which an equivalent quantity of packaged fluid milk products, other than cream, is returned to the dairy farmer during the same month; or

(2) Milk received at a regulated plant in bulk from an unregulated plant to be processed and packaged, and for which an equivalent quantity of packaged fluid milk products, other than cream, is returned to the operator of the unregulated plant during the same month, if such receipt of bulk milk and return of packaged fluid milk products occurs during an interval in which the facilities of the unregulated plant at which the milk is usually processed and packaged are temporarily unusable because of fire, flood, storm, or similar extraordinary circumstances completely beyond the dealer's control; or

(3) Packaged fluid milk products, other than cream, received at a regulated plant from an unregulated plant in return for an equivalent quantity of bulk milk moved from a regulated plant for processing and packaging during the same month.

8. In § 996.4 insert a new paragraph (j) as follows:

(j) "Packaged fluid milk products" means fluid milk products which have been placed in containers for disposition to consumers and have not been removed from those containers prior to such disposition.

9. Delete § 996.16 (d) and substitute therefor the following:

(d) If moved to a plant subject to the Boston order, or moved in bulk to a plant subject to the Merrimack Valley or Worcester orders, they shall be classified in the class to which the receipt is assigned under the other order.

10. Renumber § 996.16 (e) as (g) and insert new paragraphs (e) and (f) to read as follows:

(e) If moved in packaged form to a plant subject to the Merrimack Valley or Worcester orders, they shall be classified as Class I milk.

(f) If moved to a plant subject to the New York order, they shall be classified as Class I milk if assigned to Classes I–A, I–B, or I–C under that order; otherwise they shall be classified as Class II.

10a. Change the reference in § 996.16 (g), as renumbered, from "paragraphs (a) through (d)" to "paragraphs (a) through (f)".

11. Delete § 996.20 and substitute therefor the following:

§ 996.20 *Basic requirements for pool plant status.* Subject to the provisions of § 996.23, each receiving plant shall be a pool plant in each month in which it meets the applicable requirements of §§ 996.21 or 996.22, together with the following basic requirements:

(a) A majority of the dairy farmers delivering milk to the plant hold certificates of registration issues pursuant to Chapter 94, sections 16C and 16G, of the Massachusetts General Laws.

(b) The handler operating the plant holds a license which has been issued by the milk inspector of a city or town in the marketing area, pursuant to Chapter 94, section 40, of the Massachusetts General Laws, or a majority of the dairy farmers delivering milk to the plant are approved by such an inspector as sources of supply for milk for sale in his municipality.

12. Delete § 996.22 and substitute therefor a new § 996.22 to read as follows:

§ 996.22 *Additional requirements for country pool plants.* (a) Each country receiving plant shall be a pool plant in any month in which more than 30 percent of its total receipts of fluid milk products, other than cream, is disposed of as Class I milk directly to consumers in the marketing area or is shipped as milk to city plants at which more than 50 percent of the total receipts of fluid milk products, other than cream, is disposed of as Class I milk.

(b) Any country plant which meets the pool plant requirements under this order during each of the months of October through February and which is a pool plant under this order or under the Boston, Merrimack Valley, or Worcester orders during each of such months shall be a pool plant continuously for the following months of March through September, regardless of the quantity then disposed of in the marketing area, if the handler's written request for pool plant status for such seven-months' period is received by the market administrator before March 1 of that year. Changes in the identity of the handler operating

[1] This order shall not become effective unless and until the requirements of § 900.14 of the rules of practice and procedure, as amended, governing proceedings to formulate marketing agreements and orders have been met.

the plant shall not affect the application of this paragraph.

13. Add a new § 996.23 to read as follows:

§ 996.23 *Conditions resulting in nonpool plant status.* Any plant shall be a nonpool plant in any month in which any of the following conditions apply:

(a) The plant has the status of a pool plant under the provisions of the Boston, New York, or Worcester orders.

(b) The plant is operated by a handler in his capacity as a producer-handler.

(c) The plant also meets all the applicable pooling requirements of the Merrimack Valley order, and the combined quantity of Class I milk disposed in the Merrimack Valley marketing area directly to consumers, and of milk shipped to Merrimack Valley city plants at which more than 50 percent of the total receipts of fluid milk products other than cream is disposed of as Class I milk, exceeds the combined quantity of such disposition and shipments in the Springfield marketing area.

(d) Each of a handler's plants which is a nonpool receiving plant during any of the months of October through February shall not be a pool plant in any of the following months of March through September in which it is operated by the same handler, an affiliate of the handler, or any person who controls or is controlled by the handler, unless its operation during October through February was in the handler's capacity as a producer-handler.

14. In § 996.27 (b) insert after the word "Receipts" the phrase "in bulk".

15. Renumber § 996.27 (c) as (d) and insert a new paragraph (c) to read as follows:

(c) Receipts in packaged form of fluid milk products, other than cream, from regulated plants under the Merrimack Valley or Worcester orders shall be assigned to Class I milk.

Order[1] *Amending the Order, as Amended, Regulating the Handling of Milk in the Worcester, Mass., Marketing Area.*

§ 999.0 *Findings and determinations.* The findings and determinations hereinafter set forth are supplementary and in addition to the findings and determinations previously made in connection with the issuance of the aforesaid order and of each of the previously issued amendments thereto; and all of said previous findings and determinations are hereby ratified and affirmed, except insofar as such findings and determinations may be in conflict with the findings and determinations set forth herein.

(a) *Findings upon the basis of the hearing record.* Pursuant to the provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.), and the applicable rules of practice and procedure, as amended, governing the formulation of the marketing agreements and marketing orders (7 CFR Part 900), a public hearing was held upon the proposed marketing agreement and proposed amendments to the order, as amended, regulating the handling of milk in the Worcester, Massachusetts, marketing area. Upon the basis of the evidence introduced at such hearing and the record thereof, it is found that:

(1) The said order, as amended, and as hereby further amended, and all of the terms and conditions thereof, will tend to effectuate the declared policy of the act;

(2) The parity price of milk, as determined pursuant to section 2 of the act, is not reasonable in view of the price of feeds, available supplies of feeds, and other economic conditions which affect market supply and demand for milk in the marketing area, and the minimum prices specified in the order, as amended, and is hereby further amended, are such prices as will reflect the aforesaid factors, insure a sufficient quantity of pure and wholesome milk, and be in the public interest; and

(3) The said order, as amended, and as hereby further amended, regulates the handling of milk in the same manner as and is applicable only to persons in the respective classes of industrial and commercial activity, specified in a marketing agreement upon which a hearing has been held.

Order relative to handling. It is therefore ordered that on and after the effective date hereof, the handling of milk in the Worcester, Massachusetts, marketing area shall be in conformity to and in compliance with the terms and conditions of the aforesaid order, as amended, and as hereby further amended, and the aforesaid order is hereby further amended as follows:

1. Delete the first sentence of § 999.2 (e) and substitute the following: " 'Producer' means any dairy farmer whose milk is delivered from his farm to a pool plant, except a dairy farmer for other markets, a dairy farmer with respect to exempt milk delivered, and a producer-handler."

2. Delete § 999.2 (i) and substitute the following:

(i) "Producer-handler" means any dairy farmer who operates a processing and packaging plant from which Class I milk is disposed of in the marketing area, and who receives no milk, other than exempt milk, from other dairy farmers except producer-handlers.

3. In § 999.3 (e) change the section references "999.20, 999.21, and 999.22" to read "999.20, 999.21, 999.22 and 999.23".

4. Delete the semicolon at the end of § 999.4 (g) (1) and add the following: "and any fluid milk product, other than cream and exempt milk, which are received in bulk from producer-handlers at the regulated plant of a pool handler or a buyer-handler;".

5. Delete § 999.4 (i) and substitute the following:

(i) "Exempt milk" means:

(1) Milk received at a regulated plant in bulk from the dairy farmer who produced it, for processing and packaging, and for which an eqivalent quantity of packaged fluid milk products, other than cream, is returned to the dairy farmer during the same month; or

(2) Milk received at a regulated plant in bulk from an unregulated plant to be processed and packaged, and for which an equivalent quantity of packaged fluid milk products, other than cream, is returned to the operator of the unregulated plant during the same month, if such receipt of bulk milk and return of packaged fluid milk products occurs during an interval in which the facilities of the unregulated plant at which the milk is usually processed and packaged are temporarily unusable because of fire, flood, storm, or similar extraordinary circumstances completely beyond the dealer's control; or

(3) Packaged fluid milk products, other than cream, received at a regulated plant from an unregulated plant in return for an equivalent quantity of bulk milk moved from a regulated plant for processing and packaging during the same month.

6. In § 999.4 insert a new paragraph (j) as follows:

(j) "Packaged fluid milk products" means fluid milk products which have been placed in containers for disposition to consumers and have not been removed from those containers prior to such disposition.

7. Delete § 999.16 (d) and substitute the following:

(d) If moved to a plant subject to the Boston order, or moved in bulk to a plant subject to the Merrimack Valley or Springfield orders, they shall be classified in the class to which the receipt is assigned under the other order.

8. Renumber § 999.16 (e) as (g) and insert new paragraphs (e) and (f) to read as follows:

(e) If moved in packaged form to a plant subject to the Merrimack Valley or Springfield orders, they shall be classified as Class I milk.

(f) If moved to a plant subject to the New York order, they shall be classified as Class I milk if assigned to Classes I–A, I–B, or I–C under that order; otherwise they shall be classified as Class II milk.

8a. Change the reference in § 999.16 (g), as renumbered, from "paragraphs (a) through (d)" to "paragraphs (a) through (f)".

9. Delete § 999.20 and substitute therefor the following:

§ 999.20 *Basic requirements for pool plant status.* Subject to the provisions of § 999.23, each receiving plant shall be a pool plant in each month in which it meets the applicable requirements of §§ 999.21 or 999.22, together with the following basic requirements:

(a) A majority of the dairy farmers delivering milk to the plant hold certificates of registration issued pursuant to Chapter 94, sections 16C and 16G, of the Massachusetts General Laws.

(b) The handler operating the plant holds a license which has been issued by

[1] This order shall not become effective unless and until the requirements of § 900.14 of the rules of practice and procedure, as amended, governing proceedings to formulate marketing agreements and orders have been met.

the milk inspector of a city or town in the marketing area, pursuant to Chapter 94, section 40, of the Massachusetts General Laws, or a majority of the dairy farmers delivering milk to the plant are approved by such an inspector as sources of supply for milk for sale in his municipality.

10. Delete § 999.22 and substitute therefor a new § 999.22 to read as follows:

§ 999.22 *Additional requirements for country pool plants.* (a) Each country receiving plant shall be a pool plant in any month in which more than 50 percent of its total receipts of fluid milk products, other than cream, is disposed of as Class I milk directly to consumers in the marketing area or is shipped as milk to city plants at which more than 50 percent of the total receipts of fluid milk products, other than cream, is disposed of as Class I milk.

(b) Any country plant which meets the pool plant requirements under this order during each of the months of October through February and which is a pool plant under this part or under the Boston order during each of such months shall be a pool plant continuously for the following months of March through September, regardless of the quantity then disposed of in the marketing area, if the handler's written request for pool plant status for such seven-months' period is received by the market administrator before March 1 of that year. Changes in the identity of the handler operating the plant shall not affect the application of this paragraph.

11. Add a new § 999.23 to read as follows:

§ 999.23 *Conditions resulting in nonpool plant status.* Any plant shall be a nonpool plant in any month in which the following conditions apply:

(a) The plant has the status of a pool plant under the provisions of the Boston or New York orders.

(b) The plant is operated by a handler in his capacity as a producer-handler.

(c) Except as provided in § 999.22 (b), each of a handler's plants which is a nonpool receiving plant during any of the months of October through February shall not be a pool plant in any of the following months of March through September in which it is operated by the same handler, an affiliate of the handler, or any person who controls or is controlled by the handler, unless its operation during October through February was in the handler's capacity as a producer-handler.

12. In § 999.27 (b) insert after the word "Receipts" the phrase "in bulk".

13. Renumber § 999.27 (c) as (d) and insert a new paragraph (c) to read as follows:

(c) Receipts in packaged form of fluid milk products, other than cream, from regulated plants under the Merrimack Valley or Springfield orders shall be assigned to Class I milk.

[F. R. Doc. 57-3081; Filed, Apr. 16, 1957; 8:52 a. m.]

[7 CFR Part 943]

[Docket No. AO-231-A9]

Milk in North Texas Marketing Area

NOTICE OF RECOMMENDED DECISION AND OPPORTUNITY TO FILE WRITTEN EXCEPTIONS WITH RESPECT TO PROPOSED MARKETING AGREEMENT AND TO PROPOSED ORDER, AS AMENDED

Pursuant to the provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.), and in accordance with the applicable rules of practice and procedure governing the formulation of marketing agreements and marketing orders (7 CFR, Part 900), notice is hereby given of the filing with the Hearing Clerk, of the recommended decision of the Deputy Administrator, Agricultural Marketing Service, United States Department of Agriculture, with respect to a proposed marketing agreement and a proposed order amending the order, as amended, regulating the handling of milk in the North Texas marketing area. Interested parties may file exceptions to this decision with the Hearing Clerk, United States Department of Agriculture, Washington 25, D. C., not later than the close of business on the 5th day after publication of this decision in the Federal Register. Exceptions should be filed in quadruplicate.

Preliminary statement. The hearing on the record of which the proposed marketing agreement and the order amending the order, as amended, were formulated was conducted at Dallas, Texas, on March 19 and 20, 1957 (22 F. R. 1402).

Several material issues were before the hearing. This decision, however, is confined to a consideration of the supply demand adjustment affecting the Class I price. A separate decision will be issued relating to the other material issues of record.

Findings and conclusions. The following findings and conclusions are based on the evidence presented at the hearing and the record thereof.

The present supply-demand adjustment factors in the North Texas order should be revised. An analysis of the history of the present provision indicates that it has been overly sensitive and has reversed direction with great frequency and in substantial amounts due to short time changes in the supply-demand relationship. This frequent change in the price level has made it extremely difficult for producers to adjust their production to the market requirements since it has not, in many instances, been indicative of the long term trend in the relationship of receipts to the market requirements for Class I milk.

One factor which has contributed to this condition is the close interrelationship that exists between the North Texas market and most of the other regulated markets in Texas. Milk moves freely both in packaged form and in bulk among all the regulated markets in Texas with the exception of the Texas Panhandle. Milk is regularly distributed on routes in the Central West Texas and Austin-Waco marketing areas by handlers regulated under the North Texas order. Likewise, milk is disposed of in the North Texas marketing area by handlers regulated under other orders.

The North Texas market also carries much of the reserve supply of milk for other Texas markets. Milk regularly moves in bulk to handlers in other markets for Class I use, and in the season of short supply a substantial volume of milk is moved to Corpus Christi and San Antonio as well as to Central West Texas and Austin-Waco. Thus, the supply and demand picture in North Texas can be affected, not only by the bottling requirements of the handlers regulated under that order, but also by the supply and demand pattern of other Texas markets.

Because of this close interrelationship between these markets and the dependence of these markets on North Texas for supplemental milk it has been necessary to maintain a fixed relationship in price between these markets. This has been accomplished by adjusting the Class I price in each by whatever amount the supply-demand adjustment in North Texas has affected the North Texas price.

Producers allege that this has made is possible for any of the several handlers who operate plants in other Texas markets as well as in North Texas to keep the supply-demand adjustment in North Texas from increasing prices by supplying milk to military installations and similar large users from plants regulated under other orders. They stated that in some instances the volume of milk was such that had it been supplied out of a North Texas regulated plant the Class I price would have been increased 6 cents per hundredweight.

In view of the close interrelationship and interdependence of these markets and the effect that conditions in the smaller markets can have on the supply-demand pattern of the North Texas market, it is concluded that the overall supply-demand picture for the five markets, rather than North Texas alone, should be used as the index for adjusting prices. Accordingly, the index should be based on producer receipts and utilization in North Texas, Austin-Waco, Central West Texas, San Antonio, and Corpus Christi.

Another factor which contributed to the erratic fluctuation in the present supply-demand provisions is the failure of the index to conform to the existing pattern of seasonal production in the North Texas market. Use of the most recent period for which figures are available in establishing the new index will more nearly reflect the seasonality of supply and demand at the present time. Minor adjustments in the average actually computed for the purpose of reflecting definitely established and recognized trends in the production pattern, have been made also for the purpose of eliminating fluctuations due to seasonal changes in supply or demand.

In arriving at the index set forth below the total producer receipts in the five markets were combined as was the Class I utilization in the five markets after adjusting to eliminate inter-han-

dler and inter-market transfers to prevent the same milk from being counted twice. The 24 months from March 1955 to February 1957 were used as the base-period. Use of a 2-year period will afford a broader base, less likely to be influenced by temporary periods of abnormality, than would the use of a single year. Since the Corpus Christi order did not become fully effective until July 1, 1955, reported figures for that market for the months of March through June 1955 were not available and it was necessary to reconstruct the receipts and utilization for that period.

Because the North Texas market is amply supplied with milk while the other markets are in much shorter supply, it was necessary in establishing the index to adjust the averages for the five markets to a level which would have returned approximately the same annual level of prices as the present supply-demand factor.

Two proposals with respect to a revision of the supply-demand adjustment factors were submitted for consideration at the hearing. One would have substituted a twelve-month moving average for the two-month moving average contained in the present order. The other would have provided two adjustments—one based on a 12-month moving average and the other on a two-month moving average.

Use of the 12-month moving average either by itself or in conjunction with the two-month moving average will not provide sufficient response to changing market conditions. A change of as much as 12 percentage points in the supply-demand rates in any one month would affect the 12-month moving average only one percentage point. Thus, it would be several months before a substantial and continuing change in the supply-demand conditions would be reflected in any sizeable adjustment in price. While this would eliminate the month-to-month variations which have occurred in the present supply-demand provisions, it would be so slow to respond to changed conditions of supply and demand that its effectiveness would be materially reduced.

It is concluded that the two-months supply-demand adjuster should be retained but that as a safeguard against erratic movements in the supply-demand adjustment, provision should be made for the rate of adjustment for variations from the standards adopted to be nominal when such variations first appear, but to be increased progressively as a variation of like direction and amount persists through two or three consecutive two-month periods. Such a provision will serve as a brake on the rapidity of price changes and will avoid substantial price increases or decreases based on short-term non-recurring deviations from the established norm. Substantial price adjustments will occur, however, whenever undersupply or oversupply representing a significant variation from the established norm persists for any period of time.

This is accomplished by providing that for each percentage point of deviation from the norm the price shall be adjusted one-cent, plus one cent for each percentage point for which there was a deviation of like extent and character in the percentage computed for the preceding month, plus an additional one-cent for each percentage point for which there was a deviation of like extent and character in the percentage computed for the second preceding month.

The following schedule of standard utilization percentages should be adopted:

Month for which price applies	Months used in computation	Standard utilization percentages	
		Minimum	Maximum
January	October-November	105	107
February	November-December	109	111
March	December-January	111	113
April	January-February	111	113
May	February-March	113	115
June	March-April	120	122
July	April-May	124	126
August	May-June	121	123
September	June-July	117	119
October	July-August	108	110
November	August-September	103	105
December	September-October	103	105

For the 18-month period from November 1955 to April 1957, both the present supply-demand adjuster and that proposed herein would have averaged minus two cents. During that period the present supply-demand adjuster ranged from plus 24 cents to minus 39 cents. Had the proposed adjuster been in effect the range would have been from plus 15 cents to minus 16 cents. The greatest change occurring in any month under the present supply-demand adjuster was 27 cents. Under the proposed adjuster the greatest change would have been nine cents.

It is concluded that the recommended supply-demand adjuster would have provided a much better pattern of pricing during the past 18 months than that now in effect and that it will provide appropriate adjustment of the Class I price under the conditions now prevailing in the market.

General findings. (a) The proposed marketing agreement and the order, as amended, and as hereby proposed to be further amended, and all of the terms and conditions thereof will tend to effectuate the declared policy of the act;

(b) The parity prices of milk as determined pursuant to section 2 of the act are not reasonable in view of the price of feeds, available supplies of feeds, and other economic conditions which affect market supply of and demand for milk in the said marketing area, and the minimum prices specified in the proposed marketing agreement and in the order, as amended, and as hereby proposed to be further amended, are such prices as will reflect the aforesaid factors, insure a sufficient quantity of pure and wholesome milk and be in the public interest; and

(c) The proposed marketing agreement and the order, as amended, and as hereby proposed to be further amended, will regulate the handling of milk in the same manner as and are applicable only to persons in the respective classes of industrial and commercial activity specified in, the said marketing agreement upon which a hearing has been held.

Recommended marketing agreement and order. The following order amending the order, as amended, is recommended as the detailed and appropriate means whereby the foregoing conclusions may be carried out. The recommended marketing agreement is not included in this decision because the regulatory provisions thereof would be identical with those contained in the order as hereby proposed to be amended:

Delete § 943.51 (a) (1) and (2) and substitute therefor the following:

(1) Divide the total receipts of producer milk under Orders Nos. 43, 49, 52, 82 and 98 regulating the handling of milk in the North Texas, San Antonio, Austin-Waco, Central West Texas and Corpus Christi marketing areas, respectively, during the second and third months preceding by the total gross volume of Class I milk (excluding interhandler transfers and any intermarket transfers that would result in the same milk being accounted for a second time as Class I milk) under such orders during the same months, multiply the result by 100 and round to the nearest whole number. The result shall be known as the Class I utilization percentage;

(2) Compute a "net deviation percentage" as follows:

(i) If the Class I utilization percentage is neither less than the minimum standard utilization percentage specified below nor in excess of the maximum standard utilization percentage specified below, the net deviation percentage is zero,

(ii) Any amount by which the Class I utilization percentage is less than the minimum standard utilization percentage specified below is a "minus net deviation percentage", and

(iii) Any amount by which the Class I utilization percentage exceeds the maximum standard utilization percentage specified below is the "plus net deviation percentage":

Month for which price applies	Months used in computation	Standard utilization percentages	
		Minimum	Maximum
January	October-November	105	107
February	November-December	109	111
March	December-January	111	113
April	January-February	111	113
May	February-March	113	115
June	March-April	120	122
July	April-May	124	126
August	May-June	121	123
September	June-July	117	119
October	July-August	108	110
November	August-September	103	105
December	September-October	103	105

(3) For a "minus net deviation percentage" the Class I price shall be increased and for a "plus net deviation percentage" the Class I price shall be decreased as follows:

(i) One cent for each such percentage point of net deviation;

(ii) One cent for the lesser of:

(*a*) Each such percentage point of net deviation, or

(b) Each percentage point of net deviation of like direction (plus or minus, with any net deviation of opposite direction considered to be zero for purposes of computations of this subparagraph) computed pursuant to subparagraph (2) of this paragraph for the month immediately preceding; plus

(iii) One cent for the least of:

(a) Each such percentage point of net deviation;

(b) Each percentage point of net deviation of like direction computed pursuant to subparagraph (2) of this paragraph for the month immediately preceding, or

(c) Each percentage point of net deviation of like direction computed pursuant to subparagraph (2) of this paragraph for the second preceding month.

Filed at Washington, D. C., this 12th day of April 1957.

[SEAL] F. R. BURKE,
Acting Deputy Administrator.

[F. R. Doc. 57-3082; Filed, Apr. 16, 1957; 8:53 a. m.]

DEPARTMENT OF HEALTH, EDUCATION, AND WELFARE

Food and Drug Administration

[21 CFR Part 130]

DRUGS EXEMPTED FROM PRESCRIPTION-DISPENSING REQUIREMENTS OF SECTION 503 (b) (1) (C) OF THE FEDERAL FOOD, DRUG, AND COSMETIC ACT

SODIUM FLUORIDE DENTIFRICES; NOTICE OF PROPOSAL TO AMEND LABELING REQUIREMENT

The Commissioner of Food and Drugs, pursuant to the Federal Food, Drug, and Cosmetic Act (secs. 503 (b) (3), 505 (c), 701 (a); 65 Stat. 649, 52 Stat. 1052, 1055; 21 U. S. C. 353 (b) (3), 355 (c), 371 (a)) and the authority delegated to him by the Secretary of Health, Education, and Welfare (21 CFR, 1956 Supp., 130.101 (a)) has promulgated a regulation (21 CFR, 1956 Supp., 130.102 (a) (10)) exempting from prescription-dispensing requirements certain sodium fluoride dentifrice preparations, provided they comply in all respects with the provisions of that section. One of the provisions of the regulation relates to a warning statement in the labeling against use of the preparation where the water supply contains fluoride, except as directed by a dentist.

It now having been determined that such a warning statement is not required for the protection of the public health, the Commissioner of Food and Drugs, on his own initiative, and under the above-referenced authority, proposes to delete this requirement. This deletion will be effected by changing § 130.102 (a) (10) (vi) to read as follows:

§ 130.102 *Exemption for certain drugs limited by new-drug applications to prescription sale.* (a) * * *

(10) * * *

(vi) The labeling bears, in juxtaposition with the directions for use, a clear warning statement against use by children under 6 years of age.

Any interested person may, within 30 days from the date of publication of this notice in the FEDERAL REGISTER, submit written views and comments with reference to the proposed amendment, addressed to the Hearing Clerk, Department of Health, Education, and Welfare, Room 5440, 330 Independence Avenue SW., Washington 25, D. C. All such views and comments should be submitted in quintuplicate.

Dated: April 11, 1957.

[SEAL] GEO. P. LARRICK,
Commissioner of Food and Drugs.

[F. R. Doc. 57-3050; Filed, Apr. 16, 1957; 8:47 a. m.]

NOTICES

DEPARTMENT OF COMMERCE

Business and Defense Services Administration

WILLIAM M. FIRSHING

STATEMENT OF CHANGES IN FINANCIAL INTERESTS

In accordance with the requirements of section 710 (b) (6) of the Defense Production Act of 1950, as amended, and Executive Order 10647 of November 28, 1955, the following changes have taken place in my financial interests as reported in the FEDERAL REGISTER of May 5, 1956, 21 F. R. 3029 and October 13, 1956, 21 F. R. 7834.

A. Deletions: Holland Furnace Co., 491 Columbia Avenue, Holland, Michigan.; Lorillard (P.) Company, 119 West 40th Street, New York 18, New York.

B. Additions: Westinghouse Air Brake Company, Three Gateway Center, Pittsburgh 22, Pennsylvania.; Intertype Corporation, 368 Furman Street, Brooklyn, New York.

This statement is made as of April 6, 1957.

WILLIAM M. FIRSHING.

APRIL 6, 1957.

[F. R. Doc. 57-3057; Filed, Apr. 16, 1957; 8:48 a.m.]

DEPARTMENT OF THE INTERIOR

Bureau of Land Management

COLORADO

ORDER PROVIDING FOR OPENING OF PUBLIC LANDS

APRIL 8, 1957.

Pursuant to authority delegated to me by Order No. 541, Sec. 2.5 of the Director, Bureau of Land Management, approved April 21, 1954 (19 F. R. 2473) the following described lands reconveyed to the United States in an exchange of land made under the provisions of Sec. 8 of the Act of June 28, 1934 (48 Stat. 1269), as amended, are hereby restored to disposition under the applicable public land laws as hereinafter indicated:

SIXTH PRINCIPAL MERIDIAN, COLORADO

T. 2 S., R. 84 W.,
Sec. 26, NE¼SE¼, W½SE¼, and Lot 1.

The area described totals 158.26 acres of public land.

Information as to any mineral rights reconveyed to the United States is of record in the Land Office, Bureau of Land Management, 357 New Custom House, P. O. Box 1018, Denver 1, Colorado.

The above tract lies at an elevation of approximately 7500 feet, about 5 miles southeast of Burns, Colorado. The shallow soil supports sagebrush and associated plants. The land is not suitable for farming.

No application for these lands will be allowed under the homestead, desert land, small tract or any other non-mineral public land law, unless the lands have already been classified as valuable, or suitable for such type of application, or shall be so classified upon consideration of an application. Any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposition until they have been classified.

Subject to any existing valid rights and the requirements of applicable law, the lands described above are hereby opened to filing of applications, selections, and locations in accordance with the following:

a. Applications and selections under the non-mineral public land laws and applications and offers under the mineral leasing laws may be presented to the Manager mentioned below, beginning on the date of this order. Such applications, selections and offers will be considered as filed on the hour and respective dates shown for the various classes enumerated in the following paragraphs:

(1) Applications by persons having prior existing valid settlement rights, preference rights conferred by existing laws, or equitable claims subject to allowance and confirmation will be adjudicated on the facts presented in support of each claim or right. All applications presented by persons other than those referred to in this paragraph will be subject to the applications and claims mentioned in this paragraph.

(2) All valid applications under the Homestead, Desert Land, and Small Tract Laws by qualified veterans of World War II or of the Korean Conflict, and by others entitled to preference rights under the Act of Sept. 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284), as amended, presented prior to 10:00 a. m. on May 14, 1957, will be considered as simultaneously filed at that hour. Rights under such preference right applications filed after that hour and before 10:00 a. m. on August 13, 1957, will be governed by the time of filing.

(3) All valid applications and selections under the nonmineral public land laws, other than those coming under paragraphs (1) and (2) above, and applications and offers under the mineral leasing laws, presented prior to 10:00 a. m. on August 13, 1957 will be considered as simultaneously filed at that hour. Rights under such applications and selections filed after that hour will be governed by the time of filing.

b. The land will be open to location under the United States mining laws, beginning 10:00 a. m. on August 13, 1957.

Persons claiming veteran's preference rights under Paragraph a (2) above must enclose with their applications proper evidence of military or naval service, preferably a complete photostatic copy of the certificate of honorable discharge. Persons claiming preference rights based upon valid settlement, statutory preference, or equitable claims must enclose properly corroborated statements in support of their applications, setting forth all facts relevant to their claims. Detailed rules and regulations governing applications which may be filed pursuant to this notice can be found in Title 43 of the Code of Federal Regulations.

Inquiries concerning these lands shall be addressed to the Manager, Land Office, Bureau of Land Management, 357 New Custom House, Box 1018, Denver 1, Colorado.

J. ELLIOTT HALL,
Acting State Supervisor.

[F. R. Doc. 57-3044; Filed, Apr. 16, 1957; 8:45 a. m.]

[Serial No. Idaho 07848]

IDAHO

ORDER PROVIDING FOR OPENING OF PUBLIC LANDS

APRIL 9, 1957.

In exchanges of lands made under the provisions of Section 8 of the Act of June 28, 1934 (48 Stat. 1269); as amended June 26, 1936 (49 Stat. 1976; 43 U. S. C. 315g) the following-described lands have been reconveyed to the United States under the exchange number indicated:

Idaho exchange No.	Description of total acreage	Location
	BOISE MERIDIAN, IDAHO	
I-0224	T. 18 N., R. 23 E., Sec. 12, SE¼NE¼; Sec. 19, Lot 2; Sec. 20, SW¼NW¼. Total—120.08 acres.	Lemhi County, Idaho, 3 miles southwest of Tendoy, Idaho.
I-01953	T. 6 S., R. 23 E., Sec. 19, Lots 1, 2, 3, 4, SE¼NW¼, E½SW¼. Total—326.36 acres.	Lincoln County, Idaho, 4 miles north of Kimama, Idaho.
I-02514	T. 12 S., R. 25 E., Sec. 11, E½NW¼, E½SW¼, W½SE¼, SW¼NE¼, NE¼SE¼; Sec. 14, E½NW¼, W½NE¼. Total—480.00 acres.	Cassia County, Idaho, 4 miles southwest of Albion, Idaho.
I-04749	T. 14 N., R. 23 E., Sec. 34, N½SW¼ Total—80.00 acres.	Lemhi County, Idaho, adjacent to Patterson, Idaho.
I-05123	T. 16 S., R. 29 E., Sec. 23, E½, E½W½ Total—480.00 acres.	Cassia County, Idaho, 18 miles west, 1 mile north of Snowville, Utah.

The above lands are generally accessible by state and county roads. They are situated in elevations ranging from 4200 to 5900 feet, with soils varying from lava ash and silt loam to sandy and gravelly deposits. In some areas rock outcropping or float rock occur. Vegetation is generally perennial grassland or sagebrush grassland type, with some annual weeds. Rainfall in the area is low, varying between 9 and 12 inches annually.

No application for these lands will be allowed under the homestead, desert land, small tract, or any other nonmineral public land law, unless the lands have already been classified as valuable or suitable for such type of application, or shall be so classified upon consideration of an application. Any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposition until they have been classified.

Subject to any valid existing rights and the requirements of applicable laws, the lands described herein are hereby opened to filing of applications, selections and locations, in accordance with the following:

a. Applications and selections under the nonmineral public land laws and applications and offers under the mineral leasing laws may be presented to the Manager mentioned below, beginning on the date of this order. Such applications, selections, and offers will be considered as filed on the hour and respective dates shown for the various classes enumerated in the following paragraphs:

(1) Applications by persons having prior existing valid settlement rights, preference rights conferred by existing laws, or equitable claims, subject to allowance and confirmation will be adjudicated on the facts presented in support of each claim or right. All applications presented by persons other than those referred to in this paragraph will be subject to the application and claims mentioned in this paragraph.

(2) All valid applications under the homestead, desert land and small tract laws by qualified veterans of World War II and, or, the Korean conflict, and by others entitled to preference rights under the Act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279 through 284, as amended), presented prior to 10:00 a. m. on May 15, 1957, will be considered as simultaneously filed at that hour. Rights under such preference right applications filed after that hour and before 10:00 a. m. on August 14, 1957, will be governed by the time of filing.

(3) All valid applications and selections under the nonmineral public land laws other than those coming under paragraphs (1) and (2) above, and applications and offers under the mineral leasing laws, presented prior to 10:00 a. m. on August 14, 1957, will be considered as simultaneously filed at that hour. Rights under such applications and selections filed after that hour will be governed by the time of filing.

(b) The lands will be opened to location under the United States mining laws, beginning 10:00 a. m. on August 14, 1957.

Persons claiming veteran's preference rights under Paragraph a (2) above, must enclose with their applications proper evidence of military or naval service, preferably a complete photostatic copy of the certificate of honorable discharge. Persons claiming preference rights based upon valid settlement, statutory preference, or equitable claims must enclose properly corroborated statements in support of their applications, setting forth all facts relevant to their claims. Detailed rules and regulations governing applications which may be filed pursuant to this notice can be found in Title 43 of the Code of Federal Regulations.

Inquiries concerning these lands shall be addressed to the Manager, Land Office, Bureau of Land Management, P. O. Box 2237, Boise, Idaho.

J. R. PENNY,
State Supervisor.

[F. R. Doc. 57-3043; Filed, Apr. 16, 1957; 8:45 a. m.]

Bureau of Reclamation

MILK RIVER PROJECT, MONTANA

ORDER OF REVOCATION

NOVEMBER 6, 1956.

Pursuant to the authority delegated by Departmental Order No. 2765 of July 30, 1954, I hereby revoke Departmental Orders of April 5, 1902, and October 15, 1904, insofar as said orders affect the following-described lands; provided, however, that such revocation shall not affect the withdrawal of any other lands by said orders or affect any other orders withdrawing or reserving the land hereinafter described:

PRINCIPAL MERIDIAN, MONTANA

T. 29 N., R. 12 E.,
Sec. 28, W½E½.

The above area aggregates 160 acres.

W. A. DEXHEIMER,
Commissioner.

[73530]

APRIL 11, 1957.

I concur.

The released land is proposed for exchange under the provisions of section 8 of the act of June 28, 1934 (48 Stat. 1272; 49 Stat. 1976; 43 U. S. C. 315g) as amended, by which the offered land will benefit a Federal land program. The land, therefore, is not subject to the provisions contained in the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279-284) as amended, granting preference rights to veterans of World War II, the Korean Conflict, and others.

E. J. THOMAS,
Associate Director,
Bureau of Land Management.

[F. R. Doc. 57-3072; Filed, Apr. 16, 1957; 8:50 a. m.]

SUN RIVER PROJECT, MONTANA

ORDER OF REVOCATION

APRIL 3, 1956.

Pursuant to the authority delegated by Departmental Order No. 2765 of July 30, 1954 (19 F. R. 5004), I hereby revoke Departmental Orders of September 20, 1904, April 30, 1908, and February 19, 1927, insofar as said orders affect the following described lands; provided, however, that such revocation shall not affect the withdrawal of any other lands by said orders or affect any other orders withdrawing or reserving the lands hereinafter described:

PRINCIPAL MERIDIAN, MONTANA

T. 20 N., R. 2 W.,
Sec. 13, N½NW¼NW¼.

The above area aggregates 20 acres.

E. G. NIELSEN,
Assistant Commissioner.

[71547]

APRIL 11, 1957.

I concur.

The lands have been classified for disposal pursuant to the act of June 14, 1926, as amended by the act of June 4, 1954 (44 Stat. 741; 68 Stat. 173; 43 U. S. C. 869).

E. J. THOMAS,
Associate Director,
Bureau of Land Management.

[F. R. Doc. 57-3073; Filed, Apr. 16, 1957; 8:50 a. m.]

DEPARTMENT OF AGRICULTURE

Agricultural Research Service

[Administrative Memorandum 101.1]

ORGANIZATION, FUNCTIONS AND AUTHORITIES

I. *Purpose.* This memorandum outlines the basic functions, authorities and organizational structure of the Agricultural Research Service (ARS) established under Secretary's Order of December 24, 1953 (19 F. R. 74), and assigns overall responsibilities and authorities. Provisions of this memorandum become effective February 21, 1957, and supersede the "Notice of Organization, Functions and Authorities of the Agricultural Research Service" effective January 2, 1954 (19 F. R. 514).

II. *Functions of the Agricultural Research Service—A. Assignment of functions.* The Agricultural Research Service is responsible for:

1. Coordination of all research activities of the Department, including examination and analysis of all such activities current and contemplated, review and approval of all projects or proposals prior to initiation, advice and consultation on planning with heads of agencies, and reports and recommendations to the Secretary.

2. The following research programs: Production and utilization (except forestry) research, including research under Title I of the Research and Marketing Act of 1946 (7 U. S. C. 427 et seq.); farm management and costs, land economics, and agricultural finance; production aspects of farm labor, ordinarily associated with farm management problems; soil conservation, except the national soil survey; grass, and control of undesirable plants; range management, except on forest and related ranges (the term "forest" includes woodlands, and brush-covered wildlands in mountainous areas); cotton ginning and processing; under section 7 (b) of the Strategic and Critical Materials Stock Piling Act (50 U. S. C. 98F); under the Housing Act of 1949 (42 U. S. C. 1471 et seq.).

3. The research, investigations, inspections, experimentations, demonstrations, development work, service and regulatory work, and control and eradication of insects, plant and animal pests and diseases provided for under the heading "Agricultural Research Administration" in the Department of Agriculture Appropriation Act of 1954 (except forest pests and diseases, and research on off-farm handling, transportation and storage of agricultural products, including investigations of insect infestations of off-farm stored products), inspection and certification service, and standardization incidental thereto, for foods for dogs, cats, and other Carnivora, and for animal byproducts not capable of use as human food, and the identification of federally inspected meat, meat byproducts, and meat food products.

4. Administration of the Federal Insecticide, Fungicide, and Rodenticide Act (7 U. S. C. 135–135k).

5. The program of payments to States, Territories and Puerto Rico under the Hatch Act of March 2, 1887, as amended, and supplemental and related acts, and payments to State Experiment Stations under section 204 (b) of the Agricultural Marketing Act of 1946 (7 U. S. C. 1623 (b)).

6. Eradication of foot-and-mouth and other contagious diseases of animals and poultry.

7. Hog Cholera Serum and Virus Marketing Agreement Act (7 U. S. C. 851–855).

8. Administration of Title III of the Research and Marketing Act (7 U. S. C. 1628–1629).

9. All administrative functions on behalf of the Secretary relating to the acquisition and administration of patent rights.

10. Administration of the provisions of section 408 (*l*) of the Federal Food, Drug and Cosmetic Act, as added by section 3 of the Miller Act of 7–22–54 (21 U. S. C. 321) providing for certification with respect to certain pesticide chemicals for which tolerances or exemptions are sought.

11. Administration of responsibilities delegated to the Secretary, effective 9–8–54, pursuant to section 201 (b) of the Federal Civil Defense Act of 1950 (64 Stat. 1248), by the Federal Civil Defense Administrator (19 F. R. 5921) which involve planning a national program and directing Federal activities concerned with research, diagnosis, strengthening of defensive barriers, and control and eradication of diseases, pests, or chemicals introduced as agents of biological or chemical warfare against animals or crops.

12. The use, administration and disposition under Title III of the Bankhead-Jones Farm Tenant Act (7 U. S. C. 1010–1012) and the related provisions of Title IV thereof of lands which have heretofore been transferred or which hereafter may be transferred by agreement between the interested parties with the approval of the Assistant Secretary.

B. *Reservations.* Final action in proceedings pursuant to sections 7 and 8 of the Administrative Procedure Act, except orders in rule-making proceedings under the Hog Cholera Serum and Virus Marketing Agreement Act, are reserved to the Judicial Officer. The following are reserved to the Secretary:

1. Final action on regulations under the Hog Cholera Serum and Virus Marketing Agreement Act, previously requiring approval of the President.

2. The issuance, amendment, termination or suspension of any marketing agreement or order or any provision thereof.

3. Designation of members of advisory committees under Title III of the Research and Marketing Act (7 U. S. C. 1628–1629).

4. Determination as to the measure and character of cooperation with Mexico in the foot-and-mouth disease program pursuant to section 1 of the Act of 2–28–47 (21 U. S. C. 114b), the designation of members of advisory committees, and the appointment of Commissioners on any joint commission with the Government of Mexico set up under such program.

5. Approval of requests for apportionment of reserves for emergency outbreaks of insect pests and plant diseases.

6. Determination of emergencies in connection with the eradication of foot-and-mouth disease and other contagious diseases of animals and poultry.

III. *Assignment of functions, responsibilities and authorities—A Administrator—1. Functions and responsibilities.* The Administrator is responsible for the programs and activities of ARS. He reports to the Assistant Secretary for Federal-States Relations.

2. *Authorities.* Subject to the reservations of authority contained in IIB above, authority has been delegated to the Administrator to take any action including the authority to execute any document, authorize any expenditure, and promulgate any rule, regulation, order or instruction required by law or deemed by him to be necessary and proper to the discharge of the functions assigned to the Agricultural Research Service, and to delegate and provide for the redelegation of his authority to appropriate officers and employees consistent with and with due regard to his personal responsibilities for the proper discharge of the functions assigned to the Service.

3. *Redelegation of authorities.* There are hereby redelegated to Deputy Administrators; Executive Assistant Administrator; Director, Institute of Home Economics; Division Directors; and to those officers specifically designated to act for them, the authorities not specifically reserved herein or in the future which are necessary to the discharge of the responsibilities as assigned below. This redelegation does not apply to the functions which are assigned to Divisions

and the Institute of Home Economics directly by action of a departmental staff officer, nor does it include authorities which are reserved by administrative regulation of the Department. No redelegation herein shall preclude the Administrator from exercising any of the powers or functions or from performing any of the duties herein and any such redelegation is subject at all times to withdrawal or amendment. Redelegations to others shall be made only with specific approval of the Administrator.

4. *Reservations.* There are hereby reserved to the Administrator or Acting Administrator the following authorities and/or responsibilities:

a. The coordination of all research activities identified in II A 1 above.

b. The initiation, change or discontinuance of major areas of research and control or regulatory activities conducted by ARS.

c. The issuance of regulations pursuant to law.

d. The transfer of functions, funds, property or personnel between divisions or between a division and the Institute of Home Economics.

e. All administrative functions on behalf of the Secretary relating to the acquisition and administration of patent rights.

f. The execution of research contracts, RMA contracts, cooperative agreements, Master Memoranda of Understanding; all agreements between ARS and another agency of the Department or with another agency of the Federal Government; and all agreements which would require signature by more than one Deputy Administrator.

g. The approval of all organization changes.

h. Authority to establish, consolidate, change the location, or abolish, or to recommend such action to the Department with respect to (1) any field office (except temporary offices), and (2) any regional or other administrative area that includes two or more States or that cuts across a State line.

i. The assignment of personnel to positions in grade GS–14 and above.

j. Approval of attendance at national meetings.

k. Authorization and recommendation to the Department for approval of attendance at international and foreign meetings and foreign travel.

l. Approval of budget estimates.

m. Approval of certain restricted categories of purchases as required by Department regulations.

n. Approval of work projects and recommendation of financial projects to the Department.

B. *General responsibilities of Deputy Administrators; Executive Assistant Administrator; Director, Institute of Home Economics; and Division Directors.* The Deputy Administrators; the Executive Assistant Administrator; and the Director, Institute of Home Economics, and through them the Division Directors have the following general responsibilities:

1. *Responsibility to the Administrator.* Keeping the Administrator advised with respect to major problems and developments and consulting with him or, in his absence, the Acting Administrator before taking actions which involve policy questions or major questions involving relationships with other Federal agencies, other agencies of this Department or State agencies.

2. *Responsibility for coordination of policies and operations.* Consulting and cooperating with appropriate officials when their activities relate to, affect or are affected by the work of other organizational units of the Service, and assuring the coordination of such activities with such other organizational units in order to achieve maximum unity and effectiveness of ARS operations.

3. *Responsibility for efficient operation.* Assuring the efficient administration of work assigned to them and the fullest possible benefit to the public for the funds expended. To this end, they shall provide for the periodic review of programs and operations as required by Executive Order 10072 and 5 U. S. C. 1151.

C. *Specific responsibilities of Deputy Administrators and the Executive Assistant Administrator*—1. *The Deputy Administrator, Utilization Research and Development,* is responsible for:

a. Assisting and acting for and as the Administrator in the overall planning and administration of all programs and activities of ARS.

b. Directing and coordinating all utilization research and development programs and activities of ARS.

2. *The Deputy Administrator, Production Research,* is responsible for:

a. Assisting and acting for and as the Administrator in the overall planning and administration of all programs and activities of ARS.

b. Directing and coordinating the administration of all production research programs and activities of ARS.

3. *The Deputy Administrator, Regulatory Programs,* is responsible for:

a. Assisting and acting for and as the Administrator in the overall planning and administration of all programs and activities of ARS.

b. Directing and coordinating the administration of all control and regulatory programs of ARS.

4. *The Deputy Administrator for Experiment Stations* is responsible for:

a. Assisting and acting for and as the Administrator in the overall planning and administration of all programs and activities of ARS.

b. Directing and coordinating the administration of all programs and activities pertaining to State and Territorial Experiment Stations.

5. *The Executive Assistant Administrator* is responsible for:

a. Participating with the Administrator, Deputy Administrators, and other key staff members in the overall planning and administration of all programs and activities of ARS.

b. Formulating, directing, coordinating and integrating overall management, budget, fiscal, personnel and administrative services activities to meet the requirements of ARS programs. Acting for and as the Administrator in the execution of research contracts, cooperative agreements and Master Memoranda of Understanding; all agreements between ARS and another agency of the Department or with another agency of the Federal Government; and all agreements which would require signature by more than one Deputy Administrator.

D. *Responsibility of the Director, Institute of Home Economics.* Under general supervision of the Administrator and within established policy, plans, organizes, formulates policies, provides leadership, coordinates and directs national programs of research relating to home economics and related functions.

All specific and special authorities that are presently delegated to chiefs of home economics research branches by the Administrator are rescinded and are hereby delegated to the Director of the Institute of Home Economics.

E. *Responsibility of the Director, Information Division.* Under general supervision of the Administrator and within established informational policy of the Department, plans, develops, and directs the conduct of ARS information activities.

F. *Responsibilities of Biometrical Services Staff.* The Biometrical Services Staff is responsible for a program of consultation and training on experimental design and related statistical problems connected with the conduct of research programs; the development of new and improved statistical techniques in agricultural research; and for providing, within available resources, limited computing services to members of the research staff.

G. *Responsibilities of Central Project Office.* The Central Project Office is responsible for the operation of the project system to meet the needs of research planning and coordination within the Department, and the development and maintenance of effective working relations with the States and the State Experiment Stations Division as a means of facilitating Federal-State coordination and cooperation in agricultural research.

H. *Responsibilities of Program Appraisal and Internal Audit staff.* The Program Appraisal and Internal Audit Staff is responsible for broad and comprehensive programs of internal audit and program inspection and evaluation to assist the Administrator in achieving an effective and efficient administration.

I. *Utilization research and development.* The Directors of the utilization research and development divisions report to the Deputy Administrator, Utilization Research and Development, and directly or in cooperation with federal, state, public, and private agencies as appropriate, have the following responsibilities:

1. *Director, Eastern Utilization Research and Development Division.* Plans, organizes, provides leadership, coordinates, and directs a national program of research and development to develop new, wider, and more effective uses for agricultural products and byproducts with primary emphasis on products of the Eastern producing area.

2. *Director, Northern Utilization Research and Development Division.* Plans, organizes, provides leadership, coordinates, and directs a national program of research and development to develop

new, wider, and more effective uses for agricultural products and byproducts with primary emphasis on products of the Northern producing area.

3. *Director, Southern Utilization Research and Development Division.* Plans, organizes, provides leadership, coordinates, and directs a national program of research and development to develop new, wider, and more effective uses for agricultural products and byproducts with primary emphasis on products of the Southern producing area.

4. *Director, Western Utilization Research and Development Division.* Plans, organizes, provides leadership, coordinates and directs a national program of research and development to develop new, wider, and more effective uses for agricultural products and byproducts with primary emphasis on products of the Western producing area.

5. *Delegations of authority.* All specific and special authorities that are presently delegated to chiefs of utilization research branches by the Administrator are rescinded and are hereby delegated to the Division Directors cited above.

J. *Production Research.* The Directors of Production Research Divisions report to the Deputy Administrator, Production Research, and directly or in cooperation with federal, state, public, and private agencies as appropriate, have the following responsibilities:

1. *Director, Soil and Water Conservation Research Division.* Plans, organizes, provides leadership, coordinates and directs national programs of research on soil and water conservation and related functions.

2. *Director, Crops Research Division.* Plans, organizes, provides leadership, coordinates, and directs a national program of research on field and horticultural crops and related functions.

3. *Director, Animal Husbandry Research Division.* Plans, organizes, provides leadership, coordinates, and directs a national program of research on animal husbandry and related functions.

4. *Director, Animal Disease and Parasite Research Division.* Plans, organizes, provides leadership, coordinates, and directs a national program of research on animal diseases and parasites and related functions.

5. *Director, Entomology Research Division.* Plans, organizes, provides leadership, coordinates, and directs a national program of research on entomology and related functions.

6. *Director, Agricultural Engineering Research Division.* Plans, organizes, provides leadership, coordinates, and directs a national program of research on agricultural engineering and related functions.

7. *Director, Farm Economics Research Division.* Plans, organizes, provides leadership, coordinates, and directs a national program of farm economics and related functions.

8. *Delegations of authority.* All specific and special authorities that are presently delegated to the chiefs of livestock, farm and land management, and crops research branches by the Administrator are rescinded and are hereby delegated to the Division Directors cited above.

K. *Regulatory Programs.* The Directors of Regulatory Divisions report to the Deputy Administrator, Regulatory Programs, and directly or in cooperation with Federal, State, public, and private agencies as appropriate, have the following responsibilities:

1. *Director, Meat Inspection Division.* Plans, organizes, provides leadership, coordinates, and directs a national program of meat inspection and related functions.

2. *Director, Animal Disease Eradication Division.* Plans, organizes, provides leadership, coordinates, and directs a national program of animal disease eradication and related functions.

3. *Director, Animal Inspection and Quarantine Division.* Plans, organizes, provides leadership, coordinates, and directs a national program of animal inspection and quarantine and related functions.

4. *Director, Plant Pest Control Division.* Plans, organizes, provides leadership, coordinates, and directs a national program of plant pest control and related functions.

5. *Director, Plant Quarantine Division.* Plans, organizes, provides leadership, coordinates, and directs a national program of plant quarantine and related functions.

6. *Delegations of authority.* All specific and special authorities that are presently delegated to the chiefs of the regulatory branches by the Administrator are rescinded and are hereby delegated to the Division Directors cited above.

L. *Experiment Station Programs.* The Directors of State and Territorial Experiment Stations Divisions report to the Deputy Administrator for Experiment Stations and have the following responsibilities:

1. *Director, State Experiment Stations Division.* Plans, organizes, provides leadership, coordinates, and carries out a program for the administration of Federal-grant funds for research made available to the State, Territorial, and Puerto Rican Agricultural Experiment Stations under the Hatch Act of 1887, as amended.

2. *Director, Territorial Experiment Stations Division.* Plans, organizes, provides leadership, coordinates, and carries out research programs under direct Federal appropriations in the Territories.

M. *Management Programs.* Under the general supervision of the Executive Assistant Administrator; the Directors of Administrative Services, Budget and Finance, and Personnel Division; the Managers of Regional Business Offices; and the Superintendent, Office of Operations, Agricultural Research Center; are responsible as follows:

1. *Administrative Services Division.* Plans and administers or provides technical direction to other organizational units as necessary to the conduct of procurement, real and personal property management, records and forms management, space and equipment management activities to meet requirements of ARS programs. Approves for administrative feasibility and for compliance with governing rules and regulations, contracts for research under the Research and Marketing Act, and documents providing for cooperation with federal, state, private and other public agencies. Incorporates proposed regulations into dockets and maintains means for the orderly issuance of appropriate ARS policies, instructions, and procedures.

2. *Budget and Finance Division.* Plans and administers or provides technical direction to other organizational units as necessary to the conduct of a budgetary and fiscal program to meet requirements of ARS activities.

3. *Personnel Division.* Plans and administers or provides technical direction to other organizational units as necessary to the conduct of classification and wage, employment and placement, employee relations, employee development and safety, and organization planning and program development phases of a personnel management program to meet requirements of ARS activities.

4. *Regional Business Offices.* Plans and administers administrative services, finance, and personnel activities and related responsibilities within the region.

5. *Office of Operations, Agricultural Research Center.* Plans and carries out maintenance and service responsibilities at the Agricultural Research Center, Beltsville, Maryland.

6. *Delegations of authority.* All specific and special authorities that are presently delegated by the Administrator to the Assistant Administrator for Management are rescinded and are hereby delegated to the Executive Assistant Administrator.

This document shall be effective February 21, 1957.

Done at Washington, D. C., this 11th day of April 1957.

[SEAL] B. T. SHAW,
Administrator,
Agricultural Research Service.

[F. R. Doc. 57-3084; Filed, Apr. 16, 1957; 8:53 a. m.]

ATOMIC ENERGY COMMISSION

[Docket No. F-8]

NORTH CAROLINA STATE COLLEGE

NOTICE OF PROPOSED AMENDMENT OF FACILITY LICENSE

Please take notice that the Atomic Energy Commission proposes to amend facility license No. R-1 issued to North Carolina State College on October 1, 1955, substantially in the form set forth in Appendix "A" unless within fifteen (15) days after filing of this notice in the FEDERAL REGISTER a request for a formal hearing is filed with the Commission in the manner prescribed by § 2.102 (b) of the Commission's rules of practice (10 CFR Part 2). There is included as Appendix "B" a memorandum submitted by the Division of Civilian Application which summarizes the basis for the proposed amendment. A construction permit authorizing North

Carolina State College to modify its research reactor was issued by the Commission on March 6, 1957. For further details see the application for license at the Commission's Public Document Room, 1717 H Street NW., Washington, D. C.

Dated at Washington, D. C., this 12th day of April 1957.

For the Atomic Energy Commission.

H. L. PRICE,
Director,
Division of Civilian Application.

[License No. R-1, as amended]

APPENDIX "A"

LICENSE

License No. R-1 is hereby amended to read as follows:

1. Subject to the conditions and requirements incorporated herein, the Atomic Energy Commission hereby licenses the North Carolina State College of Agriculture and Engineering of the University of North Carolina (hereinafter referred to as "the College"),

a. Pursuant to section 104c of the Atomic Energy Act of 1954 (hereinafter referred to as "the act"), and Title 10, C. F. R., Chapter I, Part 50, "Licensing of Production and Utilization Facilities," to possess and operate as a utilization facility the nuclear reactor (hereinafter referred to as "the facility") designated below;

b. Pursuant to the act and Title 10, C. F. R., Chapter I, Part 70, "Special Nuclear Materials Regulations," to receive, possess and use:

(1) 800 grams of contained uranium 235 as fuel for operation of the facility;

(2) 1 gram of contained uranium 235 in neutron measuring instruments incorporated in the facility.

c. Pursuant to the act and Title 10, C. F. R., Chapter I, Part 30, "Licensing of By-Product Material," to possess, but not to separate (except such separation from the fuel as may be incident to sampling tests required from time to time in the operation of the reactor), such by-product material as may be produced from operation of the reactor.

2. This license applies to the nuclear reactor which is owned by the College and located at Raleigh, North Carolina, and described in the College's application dated June 1, 1955, and amendments thereto dated December 6, 1956, January 18, 1957, March 7, 1957, and March 28, 1957 (hereinafter "the application").

3. This license shall be deemed to contain and be subject to the conditions specified in § 50.54 of Part 50 and § 70.32 of Part 70; is subject to all applicable provisions of the Atomic Energy Act of 1954 and rules, regulations and orders of the Atomic Energy Commission now or hereafter in effect.

4. The conditions and requirements contained in Appendix "A", attached hereto, are a part of this license.

5. This license supersedes the letter order issued by the Director, Division of Research and Medicine, U. S. Atomic Energy Commission, Oak Ridge Operations Office, dated September 2, 1953, to the College, and the telegram issued by the Director, Division of Research and Medicine, U. S. Atomic Energy Commission, Oak Ridge Operations Office, dated November 29, 1954, to the College.

6. This license is effective as of the date of issuance and shall expire at midnight, September 30, 1960, unless sooner terminated.

For the Atomic Energy Commission.

———— ————,
Director,
Division of Civilian Application.

APPENDIX "A"

I. *Operating restrictions.* a. The College shall operate the reactor in accordance with the procedures set forth in the application.

b. The College shall not by-pass any control mechanism during the operation of the facility.

c. The College shall not operate the reactor at power levels in excess of 500 watts without prior authorization from the Commission.

d. The College shall not operate the reactor until the reactor instrumentation has been modified so that the reactor shall be automatically scrammed if:

1. The hydrogen concentration by volume in the purge air system exceeds three (3) percent.

2. The air flow in the purge air system falls below that required to limit hydrogen concentration to four (4) percent.

II. *Records.* In addition to those otherwise required under this license, the College shall keep the following records:

a. Reactor operating records, including power levels.

b. Record of in-pile irradiations and experiments.

c. Records showing radioactivity released or discharged into the air or water beyond the effective control of the College as measured at the point of such release or discharge.

d. Records of emergency reactor scrams, including reasons for emergency shutdowns.

III. *Reports.* a. The College shall make a report on actual operating experience ninety (90) days after the date of issuance of this license.

b. The College shall make a prompt report to the Commission of any unusual operating incident of the reactor.

APPENDIX "B"

MEMORANDUM

The Memorandum included in the Notice of Proposed Issuance of Construction Permit to North Carolina State College, published in the FEDERAL REGISTER on February 20, 1957, 22 F. R. 1052, summarized the principal features of the proposed reactor modification and the principal factors considered in reviewing the College's application. The construction permit set forth in the notice was issued to the College on March 6, 1957.

Since issuance of the construction permit, the College has completed modification of its reactor and has amended its application to include additional technical information referred to in the previously published Memorandum. Based on a detailed review of this additional information and an inspection of the reactor, it appears that operation of the reactor in accordance with the requirements of the proposed license will not endanger the health and safety of the public.

Dated: April 12, 1957.

For the Division of Civilian Application.

H. L. PRICE,
Director,
Division of Civilian Application.

[F. R. Doc. 57-3111; Filed, Apr. 15, 1957; 4:18 p. m.]

CIVIL AERONAUTICS BOARD

[Docket No. 7762]

NORTHWEST AIRLINES, INC. AND CAPITAL AIRLINES, INC.

NOTICE OF FURTHER POSTPONEMENT OF HEARING

In the matter of the complaint filed by Anita Herman, Docket No. 7762.

In the matter of an investigation to determine whether General Rule 5 of the tariff rules of Northwest Airlines, Inc. and Capital Airlines, Inc. contained in Local and Joint Passenger Rules Tariff No. PR-1, C. A. B. No. 4, issued by M. F. Redfern, Agent, in effect on May 4, 1947, was unlawful.

Notice is hereby given that the hearing in the above-entitled proceeding, last assigned for April 11, 1957, has again been postponed and will be held on May 28, 1957, at 11:00 a. m., e. d. t., in Room E-210, Temporary Building No. 5, 16th Street and Constitution Avenue NW., Washington, D. C., before Examiner Barron Fredricks.

Dated at Washington, D. C., April 11, 1957.

[SEAL] FRANCIS W. BROWN,
Chief Examiner.

[F. R. Doc. 57-3079; Filed, Apr. 16, 1957; 8:52 a. m.]

FEDERAL POWER COMMISSION

[Docket No. G-11396]

LAKE SHORE PIPE LINE CO.

NOTICE OF APPLICATION AND DATE OF HEARING

APRIL 10, 1957.

Take notice that Lake Shore Pipe Line Co. (Applicant), an Ohio corporation, having its principal place of business at 4505 Main Avenue, Ashtabula, Ohio, filed on October 30, 1956 an application for an order amending the certificate of public convenience and necessity issued in Docket No. G-1236 so as to increase the general service allocations to two of Applicant's customers, i. e. The Lake Shore Gas Company and City of Painesville, Ohio. The increases requested and the total allocations requested are as follows (Mcf at 15.025 psia):

Customer	Present allocation	Increase requested	Proposed total allocation
	Mcf	*Mcf*	*Mcf*
The Lake Shore Gas Co	13,885	3,325	17,210
City of Painesville	2,300	460	2,760
Total increase	--------	3,785	--------

This matter is one that should be disposed of as promptly as possible under the applicable rules and regulations and to that end:

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by Sections 7 and 15 of the Natural Gas Act, and the Commission's Rules of Practice and Procedure, a hearing will be held on May 8, 1957, at 9:30 a. m., e. d. s. t., in a Hearing Room of the Federal Power Commission, 441 G Street NW., Washington, D. C., concerning the matters involved in and the issues presented by such application: *Provided, however,* That the Commission may, after a noncontested hearing, dispose of the proceedings pursuant to the provisions of § 1.30 (c) (1) of the Commission's Rules of Practice and Procedure. Under the procedure herein provided for, unless otherwise advised, it will be unnecessary

for Applicant to appear or be presented at the hearing.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington 25, D. C., in accordance with the Rules of Practice and Procedure (18 CFR 1.8 or 1.10) on or before April 26, 1957. Failure of any party to appear at and participate in the hearing shall be construed as waiver of and concurrence in omission herein of the intermediate decision procedure in cases where a request therefore is made.

[SEAL] JOSEPH H. GUTRIDE,
Secretary.

[F. R. Doc. 57-3045; Filed, Apr. 16, 1957; 8:46 a. m.]

FEDERAL COMMUNICATIONS COMMISSION

[Docket No. 7634 etc., FCC 57M-346]

ROBERT BURDETTE ET AL.

ORDER SCHEDULING HEARING

In re applications of Robert Burdette, San Fernando, California, Docket No. 7634, File No. BP-4799; Charles R. Bramlett, Torrance, California, Docket No. 11978, File No. BP-9833; A. A. Crawford, Beverly Hills, California, Docket No. 11979, File No. BP-10068; KCBQ, Inc. (KCBQ), San Diego, California, Docket No. 11980, File No. BP-10729; Latin-American Broadcasting Corporation, Monterey Park, California, Docket No. 11981, File No. BP-10811; for construction permits.

It is ordered, This 10th day of April 1957, that H. Gifford Irion will preside at the hearing in the above-entitled proceeding which is hereby scheduled to commence on June 10, 1957, in Washington, D. C.

Released: April 11, 1957.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Acting Secretary.

[F. R. Doc. 57-3062; Filed, Apr. 16, 1957; 8:49 a. m.]

[Docket Nos. 11763, 11764; FCC 57M-339]

J. E. WILLIS AND CRAWFORDSVILLE BROADCASTERS, INC.

NOTICE OF HEARING CONFERENCE

In re applications of J. E. Willis, Lafayette, Indiana, Docket No. 11763, File No. BP-10253; Crawfordsville Broadcasters, Inc., Crawfordsville, Indiana, Docket No. 11764, File No. BP-10460; for construction permits.

The hearing conference scheduled to convene at 2:00 p. m., April 18, 1957 will convene at 10:00 a. m., on that date.

Dated: April 10, 1957.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Acting Secretary.

[F. R. Doc. 57-3063; Filed, Apr. 16, 1957; 8:49 a. m.]

[Docket No. 11901; FCC 57M-340]

GILLESPIE BROADCASTING CO. (KNAF)

MEMORANDUM OF RULING CONTINUING HEARING

In re application of Gillespie Broadcasting Company (KNAF), Fredericksburg, Texas, Docket No. 11901, File No. BP-10598; for construction permit.

On April 4, 1957, counsel for Gillespie Broadcasting Company called the Hearing Examiner and informed him that he was that day filing a petition for extension of time for the submission of written testimony and exhibits and date for hearing. In support of the request, Gillespie's counsel asserted that revision of exhibits had been necessitated by dismissal of a mutually exclusive application formerly scheduled to be heard in consolidation with Gillespie and that both counsel for Red River Valley Broadcasting Corporation and counsel for the Chief of the Broadcast Bureau, the only other participants in this proceeding, had consented to grant of the petition and to its early consideration. The Examiner orally ruled that the request of Gillespie was granted;

In confirmation of this oral ruling, it is here formally ordered that the time for filing the written testimony and exhibits in the above-entitled matter is extended from April 5, 1957 to April 15, 1957, and the date for hearing is extended from April 24, 1957 to May 6, 1957.

Dated: April 8, 1957.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Acting Secretary.

[F. R. Doc. 57-3064; Filed, Apr. 16, 1957; 8:49 a. m.]

[Docket No. 11976; FCC 57M-348]

SUFFOLK BROADCASTING CORP. (WRIV)

ORDER SCHEDULING HEARING

In re application of Suffolk Broadcasting Corporation (WRIV), Riverhead, New York, Docket No. 11976, File No. BP-10765; for construction permit.

It is ordered, This 10th day of April 1957, that Annie Neal Huntting will preside at the hearing in the above-entitled proceeding which is hereby scheduled to commence on June 10, 1957, in Washington, D. C.

Released: April 11, 1957.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Acting Secretary.

[F. R. Doc. 57-3066; Filed, Apr. 16, 1957; 8:49 a. m.]

[Docket No. 11977; FCC 57M-344]

SOUTHERN BROADCASTING CO. (KCLH)

ORDER SCHEDULING HEARING

In re application of D. R. James, Jr., tr/as Southern Broadcasting Company (KCLH), Camden, Arkansas, Docket No. 11977, File No. BP-10376; for construction permit.

It is ordered, This 10th day of April 1957, that Charles J. Frederick will preside at the hearing in the above-entitled proceeding which is hereby scheduled to commence on May 8, 1957, in Washington, D. C.

Released: April 11, 1957.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Acting Secretary.

[F. R. Doc. 57-3067; Filed, Apr. 16, 1957; 8:49 a. m.]

[Docket No. 11973, 11974; FCC 57M-347]

PALM SPRINGS TRANSLATOR STATION, INC.

ORDER SCHEDULING HEARING

In re applications of Palm Springs Translator Station, Inc., Palm Springs, California, Docket No. 11973, File No. BPTT-12; Palm Springs Translator Station, Inc., Palm Springs, California, Docket No. 11974, File No. BPTT-13; for construction permits for new television broadcast translator stations.

It is ordered, This 10th day of April 1957, that Annie Neal Huntting will preside at the hearing in the above-entitled proceeding which is hereby scheduled to commence on May 15, 1957, in Washington, D. C.

Released: April 11, 1957.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Acting Secretary.

[F. R. Doc. 57-3065; Filed, Apr. 16, 1957; 8:49 a. m.]

[Docket Nos. 11982 etc.; FCC 57M-343]

ENTERPRISE BROADCASTING CO. ET AL.

ORDER SCHEDULING HEARING

In re applications of Enterprise Broadcasting Co., Fresno, California, Docket No. 11982, File No. BP-10319; Amelia Schuler, Lester Eugene Chenault and Bert Williamson, d/b as Radio KYNO, The Voice of Fresno (KONG), Visalia, California, Docket No. 11983, File No. BP-10432; Radio Dinuba Company (KRDU), Dinuba, California, Docket No. 11984, File No. BP-10735; for construction permits.

It is ordered, This 10th day of April 1957, that Charles J. Frederick will preside at the hearing in the above-entitled proceeding which is hereby scheduled to commence on June 13, 1957, in Washington, D. C.

Released: April 11, 1957.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Acting Secretary.

[F. R. Doc. 57-3068; Filed, Apr. 16, 1957; 8:50 a. m.]

[Docket No. 11997; FCC 57-365]

ALLOCATION OF CERTAIN FREQUENCIES IN RADIO SPECTRUM TO VARIOUS NON-GOVERNMENTAL SERVICES

ORDER OF INQUIRY

In the matter of statutory inquiry into the allocation of frequencies to the various non-governmental services in the radio spectrum between 25 mcs and 890 mcs; Docket No. 11997.

1. The Commission has determined that it is necessary to institute an inquiry, on its own motion, pursuant to section 403 of the Communications Act of 1934, as amended, for the purpose of obtaining the data necessary to carry out its statutory responsibilities, as set forth in section 303 of the act, in connection with the allocation of frequencies to non-governmental services in the radio spectrum between 25 mcs and 890 mcs.

2. The magnitude and importance of the use of radio communications has grown to the point where it has a profound impact upon the social, economic, and political activities of the Nation as a whole. In the short span of years since the end of World War II, the use of radio communications for industry, commerce, and the general public has expanded so rapidly that it has now achieved the status of a leading segment in our Nation's economy. Radio is vital to the furtherance of public safety and protection of life and property. Radio is making material contributions to the efficiency and modernization of operations in countless branches of commerce and industry. Equally significant in judging the importance to the public interest of the use of the radio spectrum is the fact that the broadcast stations authorized by the Commission, particularly in the comparatively new medium of television, are integral parts of our democracy in that they represent a most powerful form of mass media of communication directed to the informational, educational, entertainment and commercial activities of our communities. Moreover, the post-war expansion in scientific research and application of new techniques in electronics has brought with it the promise of unprecedented technical progress for the future.

3. However, the benefits from the almost amazing growth of radio communications have not been without their drawbacks. This expansion has brought with it a concomitant increase in the scope and complexity of the Commission's regulatory responsibilities. The mandate to the Commission from Congress in the Communications Act was clearly set forth in sections 1, 4 and 303, and authorized and required the Commission "to make available, so far as possible, to all the people of the United States a rapid, efficient, Nation-wide, and world-wide wire and radio communication service" and "to assign bands of frequencies to the various classes of stations". . ."to study new uses for radio . . . and generally encourage the larger and more effective use of radio in the public interest."

4. The recent growth of radio use by both Government and non-government users, the demands by both existing and potential users for more spectrum space, and the recent technical developments in electronics have created a situation which requires that the Commission reexamine and review its basic frequency allocation policies in the light of present and future needs and demands. In addition, the forthcoming International Radio Conference, scheduled to convene in Geneva, Switzerland in 1959, makes it imperative that the Commission commence the formulation of its position with regard to the proposals which will be advanced by the United States Delegation in the matter of allocation of spectrum space to the various services. This can be accomplished only by an overall review of the present allocations and the requirements for future adjustment and growth.

5. Such an over-all review of basic frequency allocation policies has not been conducted by the Commission since the institution in 1944 of the Commission's general allocation proceeding in Docket No. 6651. At that time, the Commission stated, in its Order instituting the proceeding, that it was recognized by the Commission, the other interested Government departments, and the radio industry that a complete review of allocations of bands of frequencies in the radio spectrum was necessary as a result of the important advances in the radio art which had been made during World War II and the greatly increased demands for the use of radio. It was also recognized that, in the interests of orderly planning for the future and for the preparation of proposals with respect to international conferences affecting the allocation of frequencies, the collaboration of the interested Government agencies and industry, represented chiefly by the Radio Technical Planning Board formed for that purpose, would be necessary. There is set forth below, as Appendix A, for the general information of the public, excerpts from the pertinent Commission orders in that proceeding which set forth the purposes of the hearing, in terms of the issues designated for hearing, as well as the type of information which the Commission requested that the persons appearing at the hearing present. These latter data covered subjects generally falling into the category of (a) evaluation of services from the standpoint of public need and benefit; and (b) technical data. In addition, there is included therein an excerpt from the Proposed Report of January 15, 1945, containing a statement of the general principles followed by the Commission in allocating frequency space. A close examination of Appendix A will reveal the scope of the general allocations proceeding held by the Commission in 1944 and the principles which were used as the basis for the present allocation of frequencies for non-governmental services in the radio spectrum from 10 kcs to 30,000 mcs.

6. In view of all of the foregoing considerations, the Commission has determined that the most expeditious method of carrying out its statutory responsibilities in this field would be to institute an inquiry, of a legislative fact-finding type, in order to obtain the necessary data and information upon which to make its determinations in connection with the allocation of frequencies to non-governmental services between 25 and 890 mcs. The authority for a proceeding of this type is found in Sections 1, 4, 303, and 403 of the Communications Act of 1934, as amended.

7. The objectives of this inquiry contemplate a review of the present allocation of frequencies in this portion of the spectrum, in the light of the technological progress which has been made since the last review, to determine whether a more efficient utilization thereof can be made; to evaluate the long range requirements of existing and potential users of this portion of the spectrum; to obtain data as to the feasibility of applying known and potential techniques and methods relating to efficient utilization of spectrum space; to evaluate what system or systems of frequency allocation for the future would best serve the public interest; to obtain data and information as to the requirements of non-governmental radio services; to evaluate the feasibility of making long range plans for the future use of the radio spectrum and, in particular, to determine the impact, economic and otherwise, upon users of the spectrum and the general public of implementing such future changes as may appear to be desirable and in the public interest; and, finally, to assist the Commission in formulating its position with regard to the preparation of the formal United States proposals to be advanced at the forthcoming International Radio Conference scheduled to convene in Geneva, Switzerland, in 1959.

There is set forth below, as Appendix B, a document entitled "Scope of Statutory Inquiry Affecting Over-All Allocation of Radio Spectrum between 25 and 890 Mcs." This document is intended to indicate, in outline form, the various areas of inquiry in which the Commission desires to have specific data and information. Subjects covered include matters of basic allocation policy approach, as well as technical and economic data regarding the present and future use of this entire portion of the spectrum. Persons responding to this order on behalf of a particular service should furnish the data and information called for in as specific a form as possible.

9. Notice is hereby given that, in addition, a fact-finding hearing will be held before the Commission en banc in Washington, D. C., at a time and place to be specifically stated in a subsequent order or notice, in the above-entitled matter, for the purpose of obtaining information concerning the subjects covered in Appendix B. The hearing itself will be limited to the reception of evidence and testimony which the Commission deems most helpful. Examination of witnesses will be conducted by the Commissioners and the Commission staff.

10. This proceeding is an initial step in considering the reallocation of certain bands of frequencies between 25 and 890 Mcs. It appears likely that it may also result in several rule making proceedings, not only with respect to frequency allocations but also with respect to other parts of the Commission's Rules governing the several services. This

proceeding is not intended to freeze or otherwise impede other proceedings which have been, or may be, instituted by the Commission with respect to specific services and allocations in these bands. Such cases will continue to be dealt with on an ad hoc basis.

11. Accordingly, *It is ordered*, This 5th day of April 1957 that there be instituted, pursuant to Sections 303 and 403 of the Communications Act of 1934, as amended, a statutory inquiry into the allocation of frequencies to the various non-governmental services in the radio spectrum between 25 Mcs and 890 Mcs. The subject matter of this inquiry is to be governed by Appendix B, set forth below.

12. *It is further ordered*, That persons responding to this order on behalf of particular services shall furnish the data and information called for in Appendix B on or before the 1st day of July 1957. Fifteen copies of each response should be filed as required by § 1.764 of the Commission's Rules and Regulations.

13. *It is further ordered*, That the further proceedings in this matter shall be governed by appropriate orders, as required in the circumstances, to be issued by the Commission from time to time.

Adopted: April 5, 1957.

Released: April 11, 1957.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Acting Secretary.

APPENDIX A—EXCERPTS FROM COMMISSION ORDERS AND PROPOSED REPORT IN DOCKET NO. 6651

(In Matter of Allocation of Frequencies to the Various Classes of Non-Governmental Services in the Radio Spectrum from 10 Kilocycles to 30,000,000 Kilocycles.)

I. Issues Designated for Hearing by Order dated August 15, 1944:

(1) Determining the present and future needs of the various classes of non-governmental services for frequencies in the radio spectrum from 10 kilocycles to 30,000,000 kilocycles with the view of ultimately assigning bands of frequencies to such services;

(2) Securing for the public and the Commission a clear understanding of the conflicting problems which confront the industry and the regulatory body in the application of frequencies to the service of the public;

(3) Encouraging experimentation along such lines as may be justified from the evidence presented at the hearing;

(4) Considering the allocation of frequencies to be proposed by the Radio Technical Planning Board;

(5) Considering the proposed allocation of the Interdepartment Radio Advisory Committee dated June 15, 1944, insofar as it pertains to allocations to non-governmental services; and to obtain full information as to what recommendations the Commission should make to the Interdepartment Radio Advisory Committee with respect to possible conflicts between the requirements of the non-governmental radio services and the proposed Interdepartment Radio Advisory Committee allocations to the Government radio services;

(6) Assisting the Government in its preparation for future International Conferences;

(7) Determining what recommendations, if any, the Commission should make to the Congress for the enactment of additional legislation on the matters covered by this order.

II. *Public Notice of August 17, 1944, Setting Forth Procedures and Scope of Testimony on Behalf of Various Services:*

5. Persons appearing before the Commission at the hearing in behalf of a particular service should be prepared to furnish information at least on the following subjects:

EVALUATION OF SERVICES FROM THE STANDPOINT OF PUBLIC NEED AND BENEFIT

(a) The dependence of the service on radio rather than wire lines.

(b) The probable number of people who will receive benefits from the service.

(c) The relative social and economic importance of the service, including safety of life and protection of property factors.

(d) The probability of practical establishment of the service and the degree of public support which it is likely to receive.

(e) The degree to which the service should be made available to the public, that is, whether on a limited scale or on an extended competitive scale.

(f) Areas in which service should be provided and, in general, the points to which communication must be maintained.

(g) When it is proposed to shift a service from its present location in the spectrum, data should be presented showing the feasibility and cost of the shift, particularly with respect to the technical, economic and other considerations involved, and the length of time and manner for completing the shift.

TECHNICAL

(a) The frequency bands required for a given service and the exact position thereof in the radio frequency spectrum; also the width of communication bands or channels within each portion required for station frequency assignments.

(b) Suitability and necessity for particular portions of the spectrum for the service involved. This includes propagation characteristics and reliable range data.

(c) Field intensity required for reliable service.

(d) The number of stations required to enable efficient service to be rendered.

(e) The distance over which communication must be maintained.

(f) The relative amount of radio and other electrical interference likely to be encountered.

(g) The relative amount of noise which may be tolerated in the rendering of service.

(h) Apparatus Limitations, both transmitter and receiver.

III. Excerpt from Proposed Report of January 15, 1945—Section 4. General Principles Followed by Commission in Making Proposed Allocations:

As appears from the preceding section, in most cases the request for frequencies by the various non-governmental radio services far exceeded the supply and in some of these cases the evidence showed little or no correlation between the number of channels requested and the number and locations of the units or stations proposed to be installed. Hence, the Commission could not in all cases propose an allocation based strictly upon the number of channels requested. Furthermore, the engineering standards or basis upon which channel widths were estimated appeared somewhat conflicting, thereby necessitating a detailed examination of all the engineering facts presented in order that a proper adjustment of these conflicts could be made. As has been pointed out, some of these requests were completely unsupported by adequate engineering studies or satisfactory technical data, and therefore had to be rigidly discounted. Even after this was done, the demand for frequencies still far exceeded the supply. This was true throughout the entire spectrum. It was therefore obvious that all of the requests based upon statements as to the number of channels required could not be met, and in most instances, the Commission has had to allocate fewer or narrower channels than were requested or assign the service to a different portion of the spectrum from that sought, or both.

There were six general principles that guided the Commission in making this determination. In the first place, the Commission examined each request to determine whether the service in question really required the use of radio or whether wire lines were a practicable substitute. Obviously, with the severe shortage of frequencies, it would not be in the public interest to assign a portion of the spectrum to a service which could utilize wire lines instead. The Commission's determination was not limited to technical considerations but also took into account economic and social factors and considerations of national policy. For example, while fixed point-to-point service between countries could be carried on by cable as well as by radio, the great disparity in costs between the two types of service and considerations of national policy clearly required the assignment at least at this time of frequencies for such fixed point-to-point service.

As a second principle, the Commission determined that not all radio services should be evaluated alike. Radio services which are necessary for safety of life and property obviously deserved more consideration than those services which are more in the nature of conveniences or luxuries.

Thirdly, the Commission was concerned with the total number of people who would probably receive benefits from the particular service. Where other factors were equal, the Commission attempted to meet the requests of those services which proposed to render benefits to large groups of the population rather than of those services which aid relatively small groups.

Fourth, and this applied particularly to proposed new services, the Commission undertook to determine whether such newer services met a substantial public need and what the likelihood was, if frequencies were granted, that the service could be established on a practical working basis. With the shortage of frequencies available, the Commission did not believe that it would be in the public interest to assign frequencies to a new service unless it could be shown that there would be public acceptability and use of the service.

The fifth principle related principally to consideration of the proper place in the spectrum for the service in question. There was much evidence introduced in the record—some of it available for the first time—concerning the radio wave propagation characteristics of the various portions of the spectrum. This evidence showed that operation on frequencies within certain regions of the radio spectrum was more suitable for some types of services than others. Certain frequencies could be more effectively used by those services where long range communication was necessary. Other frequencies were better suited for short range communication. In the case of some frequencies, the principal source of interference to a station on these frequencies would be from stations located nearby, while in the case of other frequencies the principal source of interference would be caused by distant stations. All of these factors had to be evaluated so that the service could be assigned to that portion of the spectrum where it could render its best service.

The sixth principle also pertained to assignment of each service to the proper place in the spectrum. In determining the competing requests of two or more services for the same portion of the spectrum, when one or more of the services was already operating in that portion of the spectrum, the Commission gave careful consideration to the

number of transmitters and receivers already in use, the investment of the industry and the public in equipment, and the cost and feasibility of converting the equipment for operation on different frequencies, as well as to the time required for an orderly change to the new frequencies.

The limited available spectrum space makes it mandatory that many services prepare to employ much stricter engineering standards in future operations, such as improved frequency tolerances, reduced harmonic and other spurious emissions, better receiving equipment, etc. Most efficient use of the available spectrum space can only be realized by each station in all services employing the most improved techniques for the conservation of frequency space and by complete cooperation among the various services. Improvement in receiver performance is particularly important. For example, if the advantages of frequency modulation are to be obtained such as to warrant the required spectrum space, it is essential that well-designed frequency modulation receivers be provided. Such receivers must have proper selectivity, limiter and discriminator characteristics. Further, it is urged that no receivers for any service be manufactured which radiate an appreciable signal. A radiating receiver is in effect a low power transmitter often capable of causing serious interference to other receivers in the same or other services. The slight difference in cost between a well-designed receiver and one of poor design is more than offset by the gain to all services. It is expected that post-war receivers will be designed and manufactured so as to minimize the effects of image frequency response, radiation from beat frequency oscillators and other effects that may be directly attributed to equipments of inferior design and performance.

The allocations which the Commission is proposing, and which are set out in section 5 of this Part for frequencies above 25,000 kilocycles, were arrived at by the application of the foregoing general principles.

APPENDIX B—SCOPE OF STATUTORY INQUIRY AFFECTING OVER-ALL ALLOCATION OF RADIO SPECTRUM BETWEEN 25 AND 890 MCS

I. To obtain specific data as to the utilization of the present allocations and assignments in the radio spectrum between 25–890 mcs for the various radio services as follows:

(a) Broadcast and auxiliary Broadcast Services.
(b) International Fixed Public Radiocommunication Services.
(c) Maritime Radio Services on Land and Shipboard.
(d) Aeronautical Radio Services.
(e) Public Safety Radio Services.
(f) Industrial Radio Services.
(g) Amateur Radio Service.
(h) Radio Stations in Alaska.
(i) Restricted Radiation Devices (TV Receiver I. F. Frequencies, etc.).
(j) Land Transportation Radio Services.
(k) Industrial, Scientific and Medical.
(l) Citizens Radio Service.
(m) Disaster Communications Services.
(n) Domestic Public Radiocommunication Services.
(o) Non-word Communication Uses of Radio.
(1) Control of Devices.
(2) Telemetering.
(3) Signalling, etc.
(4) Radar.
(5) Radiolocation.
(6) Radionavigation.
(7) Others.

II. To evaluate the long range requirements of existing and potential users of the radio spectrum between 25–890 mcs, in terms of:

(a) Present and future needs of existing users in the above-described services.
(b) Needs of potential users of the radio spectrum in terms of class of service.

III. To obtain specific data with respect to the following, as it pertains to existing and potential users of the radio spectrum between 25–890 Mcs.

(a) Justification for the use of radio.
(b) Location in Radio Spectrum.
(c) Minimum amount of spectrum space required.
(1) Number of channels based on maximum channel loading (including consideration of maximum holding time per message), channel width and projected rate of growth, and also based upon use of spectrum conservation techniques; see IV *infra*.
(d) Feasibility of sharing frequencies with other classes of service.
(e) Possibility of transferring certain types of services or links of communication systems to frequencies above 890 mc.

IV. The feasibility of applying newly developed and potential future techniques and methods relating to efficient utilization of spectrum space, including, but not limited to:

(a) Most efficient type of modulation for the service involved.
(1) Type of emissions. (AM, FM, Pulse, Single Side Band, Multiplexing, New Methods.)
(2) Necessary Bandwidth.
(3) Occupied Bandwidth.
(4) Allocated Bandwidth.
(b) Frequency tolerance.
(c) Minimum power requirements.
(d) Maximum geographical and time sharing.
(e) Allocation of frequencies to services on the basis of achieving maximum benefits and minimum adverse effects of the propagation characteristics of frequencies.
(f) Maximum feasible suppression of spurious emissions from transmitters.
(g) Use of antenna system directivity to obtain as narrow a beam as feasible consistent with rendering the needed service and to obtain greater geographical sharing.
(h) Improved receiver design techniques.
(i) New propagation modes and techniques.
(j) System devices. E. g. Selective signalling.
(k) The desirability of adopting certain minimum engineering standards of allocations in those services which have no standards in order to limit the radiation of facilities to values necessary to render the desired service, and also to minimize interference. If so, in what services, in what portions of the spectrum, and to what extent.
(l) A reduction in the width and number of guard bands.
(m) Others.

V. The potentialities of a broad band common carrier system in terms of:

(a) Whether a system of this type can be more effectively exploited to conserve spectrum space through the rendition of service to a greater number of users than could a system consisting of a number of private users, utilizing the same amount of spectrum space. (In the evaluation of this question, consideration should be given to spectrum conservation techniques; see IV, *supra*.)
(b) Areas, geographical or otherwise characterized, where this type of system would be feasible.
(c) The classes of persons and types of service whose needs could or could not be substantially met by this type of system.
(d) The minimum amount of spectrum space needed and the location in the spectrum which would provide a feasible broad band common carrier system evaluated in terms of maximum channel loading (including consideration of maximum holding time per message), channel width, and projected rate of growth.

VI. To evaluate the impact, economic and otherwise, upon existing users of the factors covered in Sections II and IV above, in terms of:

(a) The implementation of presently available and potential future techniques in spectrum conservation.
(b) The possible reallocation of existing services to other portions of the spectrum in order to obtain more efficient utilization of the radio spectrum.
(c) What considerations, including a suitable amortization period, should be given to the effectuation of (a) and/or (b).

VII. To evaluate what system of allocations would best serve the public interest, such as:

(a) The present block system.
(b) A general pool system in which frequencies would not be reserved for specific services, but would be available generally for assignment to various types of services.
(c) A combination of the above.
(d) Some other system.

VIII. In addition to the above comment is also requested on the following specific points of inquiry:

1. Should the Commission continue its basic policy of not licensing domestic fixed circuits below 890 Mc with the exception of those placed in bands now available for fixed service and those used as integral parts of mobile systems now operating secondarily in the mobile service bands?

2. To what extent should the VHF maritime mobile allocation in the 152–162 Mc band conform to international maritime mobile allocations? Under what conditions, if any, can the frequencies in such an allocation be shared by the land mobile service?

3. Should the maritime mobile allocations in the 30–50 Mc band be deleted in favor of a standardized VHF maritime mobile allocation in the 152 Mc band?

4. Should frequencies allocated to ISM be shared with communications services? If so, what should be the conditions of such sharing?

5. Would better frequency utilization be achieved and the public interest be served by permitting the bands of frequencies between 25–890 Mc allocated for private mobile systems to be used by communications cooperatives, specialized or general communications common carriers for the purpose of permitting the latter, as licensees, to use such frequencies solely for the purpose of rendering service to persons eligible to use such frequencies?

6. What changes in the International Table of Frequency Allocations (Atlantic City Radio Regulations, 1947) are required? National frequency problems soluble within the framework of the present international allocations are not included in this inquiry.

[F. R. Doc. 57-3069; Filed, Apr. 16, 1957; 8:50 a. m.]

SECURITIES AND EXCHANGE COMMISSION

[File No. 24W-1817]

COASTAL FINANCE CORP.

ORDER PERMANENTLY SUSPENDING EXEMPTION

APRIL 10, 1957.

Coastal Finance Corporation having obtained, following the filing with the Commission on July 21, 1955, of a notification on Form 1-A, an exemption from the registration provisions of the Securities Act of 1933, as amended, pursuant to Section 3 (b) thereof and Regulation A thereunder, with respect to an offering of 5,669 shares of its Class A Common Stock at $28.50 a share;

The Commission having by order dated February 8, 1956, pursuant to Rule 223 of

Regulation A temporarily suspended the aforesaid exemption and ordered a hearing on the question of whether the suspension should be vacated or made permanent;

Hearings have been held after appropriate notice and the hearing examiner having filed a recommended decision;

The Commission having this day issued its Findings and Opinion, on the basis of said Findings and Opinion

It is ordered, Pursuant to Rule 223 of Regulation A under the Securities Act of 1933, that the exemption from registration with respect to the above described offering of securities of Coastal Finance Corporation be, and it hereby is, permanently suspended.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 57-3046; Filed, Apr. 16, 1957; 8:46 a. m.]

[File No. 811-745]

THEATRICAL INTERESTS PLAN, INC.

NOTICE OF FILING OF APPLICATION FOR ORDER DECLARING THAT COMPANY HAS CEASED TO BE AN INVESTMENT COMPANY

APRIL 11, 1957.

Notice is hereby given that Theatrical Interests Plan, Inc. ("TIP"), a corporation which was organized under the laws of the State of New York on April 12, 1956, and which is registered under the Investment Company Act of 1940 ("Act") as a closed-end, non-diversified investment company, has filed an application and amendments thereto, pursuant to Section 8 (f) of the act for an order of the Commission declaring that TIP has ceased to be an investment company.

TIP's application represents that it has not engaged in any business activities to date. TIP originally planned to be an investment company and filed its Notification of Registration on Form N-8A on October 24, 1956, and its Registration Statement on Form N-8B-1 on October 30, 1956. Subsequently TIP proposed to change the nature of its business so as to be primarily an operating and producing company rather than an investment company. By resolutions of the Board of Directors made on January 14, 1956, and February 25, 1957, and by the vote of a majority of the outstanding voting securities taken at a special meeting of the stockholders held on February 25, 1957, TIP has changed the nature of its business so as to cease to be an investment company within the purview of the act.

TIP'S application further states that TIP is not and does not hold itself out as being engaged primarily or propose to engage primarily in the business of investing, reinvesting, or trading in securities, and TIP's application and amended prospectus state that TIP's proposed business will be to operate, exploit, manage and produce ventures of all types in the theatrical and entertainment field. These ventures, which will be undertaken by TIP as principal, may include, but will not be limited to, legitimate plays (both dramatic and musical), motion pictures, television and radio activities, operettas, operas, road companies, revivals, concerts, adaptation of novels or foreign plays, theatrical real estate, etc. For the purpose of continuing or establishing relationships and creating oportunities for operating activities, TIP may also make limited investments in various theatrical and entertainment ventures. However, TIP will not engage in the business of investing in securities, and will conduct its total business so as not to become an investment company within the purview of the Investment Company Act of 1940.

TIP further states that it has two classes of stock, both with a par value of 5¢ per share, with the outstanding stock consisting of 11,200 Class A shares issued for $10 per share and 6,030 Class B shares for 5¢ per share. The total capital of TIP is at present $113,147.35, including a paid-in surplus of $111,440. There are 23 stockholders. TIP contemplates issuing 78,000 more shares of the Class A stock to the public at $10 per share, as soon as possible after the granting of the order requested in the above application.

Section 8 (f) of the act provides, in part, that whenever the Commission, upon application, finds that a registered investment company has ceased to be an investment company, it shall so declare by order and that upon the taking effect of such order the registration of such company shall cease to be in effect.

Notice is further given that any interested person may, not later than April 22, at 5:30 p. m., submit to the Commission in writing any facts bearing upon the desirability of a hearing on the matter and may request that a hearing be held, such request stating the nature of his interest, the reasons for such request and the issues, if any, of fact or law proposed to be controverted, or he may request that he be notified if the Commission should order a hearing thereon. Any such communication or request should be addressed: Secretary, Securities and Exchange Commission, Washington 25, D. C. At any time after said date, the application may be granted as provided in Rule N-5 of the rules and regulations promulgated under the act.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 57-3047; Filed, Apr. 16, 1957; 8:46 a. m.]

[File No. 811-723]

LONE STAR FUND

NOTICE OF FILING OF APPLICATION FOR ORDER DECLARING THAT COMPANY HAS CEASED TO BE AN INVESTMENT COMPANY

APRIL 11, 1957.

Notice is hereby given that Lone Star Fund ("Lone Star"), a common-law trust registered as an open-end investment company, has filed an application pursuant to Section 8 (f) of the Investment Company Act of 1940 ("act") for an order declaring that the applicant has ceased to be an investment company under the act.

It is represented in the application that on February 19, 1957, Lone Star was dissolved and all of its assets were distributed to the holders of beneficial interests in Lone Star in complete liquidation, and the trust agreement between All States Management Company, applicant's sponsor, and Mercantile National Bank at Dallas, Texas, creating Lone Star, was terminated.

Section 8 (f) of the act provides, in pertinent part, that whenever the Commission upon application finds that a registered investment company has ceased to be an investment company it shall so declare by order and upon the taking effect of such order the registration of such company shall cease to be in effect.

Notice is further given that any interested person may, not later than April 22, 1957, at 5:30 p. m., submit to the Commission in writing any facts bearing upon the desirability of a hearing on the matter and may request that a hearing be held, such request stating the nature of his interest, the reasons for such request and the issues, if any, of fact or law proposed to be controverted, or he may request that he be notified if the Commission should order a hearing thereon. Any such communication or request should be addressed: Secretary, Securities and Exchange Commission, Washington 25, D. C. At any time after said date, the application may be granted as provided in Rule N-5 of the rules and regulations promulgated under the act.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 57-3048; Filed, Apr. 16, 1957; 8:46 a. m.]

INTERSTATE COMMERCE COMMISSION

[Notice No. 160]

MOTOR CARRIER APPLICATIONS

APRIL 12, 1957.

The following applications are governed by the Interstate Commerce Commission's special rules governing notice of filing of applications by motor carriers of property or passengers and by brokers under sections 206, 209, and 211 of the Interstate Commerce Act and certain other procedural matters with respect thereto. (FEDERAL REGISTER, Volume 21, pages 7339, 7340, § 1.241, September 26, 1956.)

All hearings will be called at 9:30 o'clock a. m., United States Standard Time (or 9:30 o'clock a. m., local daylight saving time, if that time is observed), unless otherwise specified.

APPLICATIONS ASSIGNED FOR ORAL HEARING OR PRE-HEARING CONFERENCE

MOTOR CARRIERS OF PROPERTY

No. MC 703 (Sub No. 10), filed April 5, 1957, HINCHCLIFF MOTOR SERVICE, INC., 3400 South Pulaski Road, Chicago, Ill. Applicant's attorney:

Howell Ellis, 520 Illinois Building, Indianapolis, Ind. For authority to operate as a *common carrier*, transporting: *General commodities*, except those of unusual value, Class A and B explosives, livestock, sand, stone, and coal, household goods as defined by the Commission, commodities in bulk, and those requiring special equipment, serving the site of the Ford Motor Company Lorain Assembly Plant, located directly west of the incorporated City of Lorain, Ohio, at the intersection of U. S. Highway 6 (Ohio Highway 2) and Baumhardt Road, Brownhelm Township, Lorain County, Ohio, as an off-route point in connection with applicant's authorized regular route operations in Certificate No. MC 703, dated July 20, 1950, (1) between Chicago, Ill., and Cleveland, Ohio and (2) between Bryan, Ohio and Cleveland, Ohio. Applicant is authorized to conduct operations in Illinois, Indiana, and Ohio.

HEARING: April 26, 1957, in Room 255, New Post Office Building, Columbus, Ohio, before Joint Board No. 117, or, if the Joint Board waives its right to participate, before Examiner Reece Harrison.

No. MC 1051 (Sub No. 3), filed March 21, 1957, FANNIE BASS, EXECUTRIX—ESTATE OF SAMUEL BASS, doing business as SAM BASS TRUCKING, P. O. Box 391, Flemington, N. J. Applicant's representative: Bert Collins, 140 Cedar Street, New York 6, N. Y. For authority to operate as a *contract carrier*, over irregular routes, transporting: *Cast iron castings*, loose, uncrated, from Flemington, N. J., to points in Delaware, Maryland, and Pennsylvania, and *patterns*, from the above-described destination territory to Flemington, N. J. Applicant is authorized to transport similar commodities in New Jersey, New York, and Pennsylvania.

HEARING: May 17, 1957, at 346 Broadway, New York, N. Y., before Examiner John McCarthy.

No. MC 2202 (Sub No. 159), filed March 27, 1957, ROADWAY EXPRESS, INC., 147 Park Street, P. O. Box 471, Akron, Ohio. Applicant's attorney: William O. Turney, 2001 Massachusetts Avenue NW., Washington 6, D. C. For authority to operate as a *common carrier*, over a regular route, transporting: *General commodities*, except those of unusual value, Class A and B explosives, livestock, household goods as defined by the Commission, commodities in bulk, and those requiring special equipment, between Massillon, Ohio and Wooster, Ohio, from Massillon over U. S. Highway 30 to Wooster, and return over the same route, serving no intermediate points, and as an alternate route for operating convenience only, in connection with applicant's authorized regular route operations between Akron, Ohio and Massillon, Ohio over Ohio Highway 241, and between Akron, Ohio and Wooster, Ohio, over Ohio Highway 5 as a segment of the route between Youngstown and Wooster, Ohio. Applicant is authorized to transport similar commodities in Ohio, Texas, Oklahoma, Michigan, Missouri, Kansas, Indiana, Pennsylvania, Illinois, Tennessee, Kentucky, Alabama, Georgia, South Carolina, North Carolina, New Jersey, New York, Virginia, Delaware, West Virginia, Maryland, and the District of Columbia.

HEARING: May 27, 1957, in Room 255, New Post Office Building, Columbus, Ohio, before Joint Board No. 117.

No. MC 2428 (Sub No .12), filed March 26, 1957, HAROLD PRANG, doing business as H. PRANG TRUCKING, 112 New Brunswick Avenue (Hopelawn), Perth Amboy, N. J. Applicant's representative: Bert Collins, 140 Cedar Street, New York 6, N. Y. For authority to operate as a *contract carrier*, over irregular routes, transporting: *Silver bullion*, from Carteret, N. J., to Attleboro, Mass., and *empty containers or other such incidental facilities* (not specified) used in transporting silver bullion on return. Applicant is authorized to transport similar commodities in New Jersey, New York, Pennsylvania, and Rhode Island.

NOTE: Applicant is authorized to conduct common carrier operations in Certificate No. MC 113100. Dual operations (Section 210) may be involved.

HEARING: May 23, 1957, at 346 Broadway, New York, N. Y., before Examiner John McCarthy.

No. MC 3619 (Sub No. 1), filed April 4, 1957, BOUMA CARTAGE COMPANY, 35 Wealthy Street SW., Grand Rapids, Mich. For authority to operate as a *common carrier*, over irregular routes, transporting: *New furniture*, between Grand Rapids, Mich., on the one hand, and, on the other, points in Michigan. Applicant is authorized to transport similar commodities in Illinois, Indiana, and Ohio.

HEARING: May 22, 1957, at the Olds Hotel, Lansing, Mich., before Joint Board No. 76.

No. MC 4966 (Sub No. 7), filed March 20, 1957, JONES TRANSFER COMPANY, 927 Washington Street, Monroe, Mich. Applicant's attorney: Walter N. Bieneman, Guardian Building, Detroit 26, Mich. For authority to operate as a *common carrier*, transporting: *General commodities*, except those of unusual value, Class A and B explosives, household goods as defined by the Commission, commodities in bulk, and commodities requiring special equipment, serving the site of the Enrico Fermi Atomic Energy Plant located in Frenchtown Township, Monroe County, Mich. as an off-route point in connection with applicant's authorized regular route operations to and from Monroe, Mich. over U. S. Highways 24 and 25 and Michigan Highway 50. Applicant is authorized to conduct operations in Michigan and Ohio.

HEARING: May 21, 1957, at the Olds Hotel, Lansing, Mich., before Joint Board No. 76.

No. MC 5470 (Sub No. 9), filed March 12, 1957, ERSKINE & SONS, INC., R. F. D. No. 2, (U. S. 224), Lowellsville, Ohio. Applicant's attorney: Herbert Baker, 50 West Broad Street, Columbus 15, Ohio. For authority to operate as a *common carrier*, over irregular routes, transporting: *Such bulk commodities as are usually transported in dump trucks*, between Mason County, W. Va., on the one hand, and, on the other, points in Michigan. Applicant is authorized to conduct similar operations in Ohio, Pennsylvania, West Virginia, New York, and Kentucky.

HEARING: May 31, 1957, in Room 255, New Post Office Building, Columbus, Ohio, before Joint Board No. 193.

No. MC 13569 (Sub No. 5), filed April 5, 1957, THE LAKE SHORE MOTOR FREIGHT COMPANY, a corporation, 1200 South State Street, Girard, Ohio. Applicant's attorney: Herbert Baker, 50 West Broad Street, Columbus 15, Ohio. For authority to operate as a *common carrier*, transporting: *General commodities*, except those of unusual value, Class A and B explosives, livestock, household goods as defined by the Commission, commodities in bulk, and those requiring special equipment, serving the site of the New Euclid Division Plant of General Motors Corporation, located near Darrowville, Summit County, Ohio, as an off-route point in connection with applicant's authorized regular route operations to and from Akron, Ohio. Applicant is authorized to conduct similar regular route operations in Ohio and Pennsylvania, and irregular route operations in New York, Ohio, Pennsylvania, and West Virginia.

HEARING: April 24, 1957, in Room 255, New Post Office Building, Columbus, Ohio, before Joint Board No. 117, or, if the Joint Board waives its right to participate, before Examiner Reece Harrison.

No. MC 15214 (Sub No. 29), filed April 5, 1957, MERCURY MOTORWAYS, INC., P. O. Box 689, South Bend, Ind. Applicant's representative: G. H. Dilla, 3350 Superior Avenue, Cleveland 14, Ohio. For authority to operate as a *common carrier*, transporting: *General commodities*, except those of unusual value, Class A and B explosives, livestock, commodities in bulk, and those requiring special equipment, serving the site of the new plant of Chrysler Corporation at Twinsburg, Ohio as an off-route point in connection with applicant's authorized regular route operations between Chicago, Ill., and Cleveland, Ohio, in Certificate No. MC 15214.

HEARING: May 28, 1957, in Room 255, New Post Office Building, Columbus, Ohio, before Joint Board No. 117.

No. MC 15214 (Sub No. 30), filed April 5, 1957, MERCURY MOTORWAYS, INC., P. O. Box 689, South Bend, Ind. Applicant's representative: G. H. Dilla, 3350 Superior Avenue, Cleveland 14, Ohio. For authority to operate as a *common carrier*, transporting: *General commodities*, except those of unusual value, Class A and B explosives, livestock, commodities in bulk, and those requiring special equipment, serving the site of the new plant of Euclid Division of General Motors Corporation, located at or near Hudson, Ohio, as an off-route point in connection with applicant's authorized regular route operations between Chicago, Ill., and Cleveland, Ohio, in Certificate No. MC 15214.

HEARING: April 24, 1957, in Room 255, New Post Office Building, Columbus, Ohio, before Joint Board No. 117, or, if the Joint Board waives its right to participate, before Examiner Reece Harrison.

No. MC 16513 (Sub No. 1), filed March 6, 1957, REISCH TRUCKING & TRANS-

PORTATION CO., INC., Route 17, Lodi, N. J. Applicant's attorney: A. David Millner, 1060 Broad Street, Newark 2, N. J. For authority to operate as a *common carrier*, over irregular routes, transporting: *Paper boxes*, other than corrugated, from Piermont, N. Y., to points in Albany, Herkimer, Montgomery, Rensselaer, Saratoga and Schenectady Counties, N. Y. RESTRICTION: Applied-for authority to be performed via Lodi, N. J., for operating convenience only. Applicant is authorized to transport similar commodities in Delaware, Maryland, New Jersey, New York, and Pennsylvania.

HEARING: May 20, 1957, at 346 Broadway, New York, N. Y., before Examiner John McCarthy.

No. MC 19013 (Sub No. 8), filed March 22, 1957, GEORGE HILLMAN TRUCKING CO., INC., 7305 River Road, North Bergen, N. J. Applicant's representative: A. David Millner, 1060 Broad Street, Newark 2, N. J. For authority to operate as a *contract carrier*, over irregular routes, transporting: *Electrical cable*, in winch trucks, from North Brunswick, N. J., to points in New York, Connecticut, Rhode Island, Massachusetts, Pennsylvania, Maryland and Delaware within 175 miles of Paterson, N. J. *Empty reels*, from the destination points above specified, to North Brunswick, Passaic and Paterson, N. J. Applicant is authorized to transport similar commodities in New Jersey, New York, Connecticut, Rhode Island, Massachusetts, Pennsylvania, Maryland, and Delaware.

HEARING: May 20, 1957, at 346 Broadway, New York, N. Y., before Examiner John McCarthy.

No. MC 19201 (Sub No. 96), filed April 3, 1957, PENNSYLVANIA TRUCK LINES, INC., 110 South Main Street, Pittsburgh 20, Pa. Applicant's attorney: Robert H. Griswold, Commerce Building, P. O. Box 432, Harrisburg, Pa. For authority to operate as a *common carrier*, over regular routes, transporting: *General commodities, including commodities of unusual value, commodities in bulk and those requiring special equipment*, but excluding Class A and B explosives and household goods as defined by the Commission, in service auxiliary to, or supplemental of, rail service of the Pennsylvania Railroad Company, (1) between Wilkinsburg, Pa., and New Alexandria, Pa., serving intermediate points which are stations on the rail line of The Pennsylvania Railroad Company, and serving junction U. S. Highway 22 and Pennsylvania Highway 66 for purposes of joinder only, from Wilkinsburg over U. S. Highway 22 to New Alexandria, and return over the same route; (2) between junction U. S. Highway 22 and unnumbered highway (formerly U. S. Highway 22) east of Murrysville, Pa., and junction unnumbered highway (formerly U. S. Highway 22) and U. S. Highway 22 west of Five Points, Pa., serving intermediate points which are stations on the rail line of The Pennsylvania Railroad Company, and serving junction U. S. Highway 22 and nunumbered highway east of Murrysville, Pa., and junction unnumbered highway and U. S. Highway 22 west of Five Points, Pa. for purposes of joinder only, from junction U. S. Highway 22 and unnumbered highway to junction U. S. Highway 22, and return over the same route; (3) between Salina, Pa., and Five Points, Pa., serving intermediate points which are stations on the rail line of The Pennsylvania Railroad Company, and serving Five Points, Pa., and junction Pennsylvania Highways 819 and 80 north of Slickville, Pa., for purposes of joinder only, from Salina over Pennsylvania Highway 981 to junction Pennsylvania Highway 819, thence over Pennsylvania Highway 819 to Five Points, and return over the same route; AND OVER THE FOLLOWING ALTERNATE ROUTES FOR OPERATING CONVENIENCE ONLY: (1) between junction U. S. Highway 22 and Pennsylvania Highway 80 west of Murrysville, Pa., and junction Pennsylvania Highways 80 and 981 west of Saltsburg, Pa., serving no intermediate points but serving junction U. S. Highway 22 and Pennsylvania Highway 80 west of Murrysville, junction Pennsylvania Highways 80 and 380, junction Pennsylvania Highways 80 and 66, junction Pennsylvania Highways 80 and 819 north of Slickville, Pa., and junction Pennsylvania Highways 80 and 981 west of Saltsburg, Pa., for purposes of joinder only, from junction U. S. Highway 22 and Pennsylvania Highway 80 over Pennsylvania Highway 80 to junction Pennsylvania Highway 981, and return over the same route; (2) between Pittsburgh, Pa. and junction Pennsylvania Highways 380 and 819 west of Salina, Pa., serving no intermediate points, but serving junction Pennsylvania Highways 380 and 80, junction Pennsylvania Highways 380 and 66, and junction Pennsylvania Highways 380 and 819 west of Salina, for purposes of joinder only, from Pittsburgh over Pennsylvania Highway 380 to junction Pensylvania Highway 819, and return over the same route; (3) between Export, Pa. and junction unnumbered highway and U. S. Highway 22 south of Export, Pa., serving no intermediate points, but serving junction unnumbered highway and U. S. Highway 22 for purposes of joinder only, from Export over unnumbered highway to junction U. S. Highway 22, and return over the same route.

NOTE: Dual operations or common control may be involved. Applicant is authorized to conduct operations in Pennsylvania, Ohio, West Virginia, and Indiana.

HEARING: May 23, 1957, at the Offices of the Interstate Commerce Commission, Washington, D. C., before Examiner Reece Harrison.

No. MC 22182 (Sub No. 11), filed April April 1, 1957, UNIVERSITY OVERLAND EXPRESS, INC., 852 McGrath Highway, Somerville 45, Mass. Applicant's attorneys: George S. Dixon, 2150 Guardian Building, Detroit 26, Mich., and Harry C. Ames, Jr., Transportation Building, Washington, D. C. For authority to operate as a *common carrier*, over irregular routes, transporting: *New passenger automobiles* and *new passenger automobile chassis*, in initial movements, in truckaway and driveaway service, from Somerville, Mass., to points in Alabama, Florida, Georgia, Illinois, Indiana, Kentucky, Delaware, Louisiana, Maryland, Michigan, Mississippi, North Carolina, Ohio, Pennsylvania, South Carolina, Tennessee, Virginia, West Virginia, Wisconsin, and the District of Columbia. Applicant is authorized to conduct similar operations in Connecticut, Delaware, Maine, Maryland, Massachusetts, New Hampshire, New Jersey, New York, North Carolina, Ohio, Pennsylvania, Rhode Island, South Carolina, Tennessee, Vermont, Virginia, West Virginia, and the District of Columbia.

NOTE: Applicant states that the filing of the instant application was prompted by the receipt of a written request from the Ford Motor Company, who is converting the assembly plant at Somerville, Mass., from the production of Ford automobiles to the assembly of the "Edsel" automobile, requiring distribution in a more extensive area than the present distribution area served by the Somerville plant in the marketing of the Ford automobile.

HEARING: May 24, 1957, at the Offices of the Interstate Commerce Commission, Washington, D. C., before Examiner Alfred B. Hurley.

No. MC 28132 (Sub No. 45), filed March 28, 1957, HVIDSTEN TRANSPORT, INC., 2801 Main Avenue, Fargo, N. Dak. Applicant's attorney: Alan Foss, First Nat'l. Bank Building, Fargo, N. Dak. For authority to operate as a *common carrier*, over irregular routes, transporting: *Petroleum* and *petroleum products*, in bulk, in tank vehicles, from Williston, N. Dak. and points within ten miles of Williston, to points in Minnesota. Applicant is authorized to conduct operations in North Dakota, Minnesota, and Wisconsin.

HEARING: May 27, 1957, at the North Dakota Public Service Commission, Bismarck, N. Dak., before Joint Board No. 24.

No. MC 29660 (Sub No. 8), filed March 18, 1957, HERMAN LOZOWICK, KENNETH LOZOWICK, FRANK LOZOWICK and JACK LOZOWICK, a partnership, doing business as HERMAN LOZOWICK TRUCKING CO., 320 Myrtle Street, Elizabeth, N. J. Applicant's representative: Bert Collins, 140 Cedar Street, New York 6, N. Y. For authority to operate as a *contract carrier*, over irregular routes, transporting: *Bronze, brass, copper and nickel products*, and in connection therewith, *materials* and *supplies* used in the manufacture of such products, (a) between points in South Brunswick Township, Middlesex County, N. J., and New York, N. Y.; and (b) from points in South Brunswick Township, Middlesex County, N. J., to points in Nassau, Suffolk, Westchester, Dutchess, Ulster, Sullivan, Rockland and Orange Counties, N. Y., and to Philadelphia, Pa., and points in Pennsylvania within 15 miles of Philadelphia, and to Bridgeport, New Haven and Waterbury, Conn.; and *salvaged, damaged and returned shipments of bronze, brass, copper, and nickel products*, and *materials* and *supplies* used in the manufacture of such products, from points in Nassau, Suffolk, Westchester, Dutchess, Ulster, Sullivan, Rockland, and Orange Counties, N. Y., and Philadelphia, Pa., and points in Pennsylvania within 15

miles of Philadelphia, and Bridgeport, New Haven and Waterbury, Conn., to South Brunswick Township, Middlesex County, N. J. Applicant is authorized to transport similar commodities in Connecticut, New Jersey, New York, and Pennsylvania.

HEARING: May 21, 1957, at 346 Broadway, New York, N. Y., before Examiner John McCarthy.

No. MC 30837 (Sub No. 219), filed March 26, 1957, KENOSHA AUTO TRANSPORT CORPORATION, 4519 76th Street, Kenosha, Wis. Applicant's attorney: Paul F. Sullivan, Sundial House, 1821 Jefferson Place, Washington 6, D. C. For authority to operate as a *common carrier*, over irregular routes, transporting: *Utility rental trailers*, in initial and secondary movements, by the truckaway method, between all points in the United States. Applicant is authorized to transport similar commodities throughout the United States.

HEARING: May 22, 1957, at the Offices of the Interstate Commerce Commission, Washington, D. C., before Examiner Mack Myers.

No. MC 41706 (Sub No. 2), filed February 14, 1957, TOSE, INC., 25 West Fourth Street, Bridgeport, Pa. Applicant's attorney: Desmond J. McTighe, 11 East Airy Street, Norristown, Pa. For authority to operate as a *common carrier*, over regular routes, transporting: *General commodities*, except those of unusual value, livestock, Class A and B explosives, household goods as defined by the Commission, commodities in bulk, and those requiring special equipment, (1) between Pottstown, Pa., and junction U. S. Highways 422 and 202, over U. S. Highway 422, serving no intermediate points. NOTE: Applicant states it reserves the right to serve intermediate and off-route points now permitted to it under Certificate No. MC 41706, dated March 21, 1950; and (2) between Newark, N. J., (at junction U. S. Highway 1 and New Jersey Highway 21) and Mahwah, N. J., from Newark over New Jersey Highway 21 to junction unnumbered highway (near Belleville, N. J.), thence over unnumbered highway to junction New Jersey Highway 3, thence over New Jersey Highway 3 to junction New Jersey Highway 17, thence over New Jersey Highway 17 to junction unnumbered highway (near Mahwah), thence over unnumbered highway to Mahwah, and return over the same route, serving no intermediate points. NOTE: Applicant states it reserves the right to serve intermediate and off-route points now permitted to it under Certificate No. MC 41706, dated March 21, 1950. Applicant is authorized to conduct similar operations in New York and Pennsylvania.

NOTE: Applicant states that the sole purpose of the instant application is to convert into regular route service applicant's present off-route service in this same area. Applicant is not seeking to serve any additional points. Applicant further states that it intends to serve the intermediate and off-route points now permitted to it under Certificate No. MC 41706, dated March 21, 1950, but does not propose to serve any additional or off-route points.

HEARING: May 20, 1957, at the Offices of the Interstate Commerce Commission, Washington, D. C., before Examiner Mack Myers.

No. MC 50175 (Sub No. 3), filed March 18, 1957, EARL CODINGTON, R. D. No. 1, Unadilla, N. Y. Applicant's attorney: Joseph A. Mogavero, Jr., Unadilla, N. Y. For authority to operate as a *common carrier*, over irregular routes, transporting: *Wood poles and other materials* used in the construction and maintenance of electric transmission, telephone and telegraph lines, from Sidney, N. Y., to points in Delaware, Otsego, Oneida, Madison, Herkimer, Shenango, Broome, Cortland, Tompkins, Tioga and Sullivan Counties, N. Y. served by the New York State Electric & Gas Corporation. Applicant has similar authority from and to specified points in New York.

HEARING: May 24, 1957, at the U. S. Court Rooms, Binghamton, N. Y., before Examiner John McCarty.

No. MC 52458 (Sub No. 142), filed April 4, 1957, T. I. McCORMACK TRUCKING COMPANY, INC., U. S. Route 9 at Green Street, Woodbridge, N. J. Applicant's attorney: John R. Sims, Jr., Munsey Building, Washington 4, D. C. For authority to operate as a *common carrier*, over irregular routes, transporting: *Commodities in bulk*, except liquids, in bulk, between points in New Jersey, on the one hand, and, on the other, points in Indiana, Illinois, and Michigan. Applicant is authorized to transport specified liquid commodities in Connecticut, Delaware, Maine, Maryland, Massachusetts, New Hampshire, New Jersey, New York, North Carolina, Ohio, Pennsylvania, Rhode Island, Vermont, Virginia, and West Virginia.

HEARING: May 24, 1957, at the Offices of the Interstate Commerce Commission, Washington, D. C., before Examiner Reece Harrison.

No. MC 59124 (Sub No. 4), filed February 14, 1957, GEORGE F. MAIERS and CLARE E. MAIERS, doing business as MAIERS AND SONS MOTOR FREIGHT, P. O. Box 412, Mayville, Mich. Applicant's attorney: Walter N. Bieneman, Guardian Building, Detroit 26, Mich. For authority to operate as a *common carrier*, over regular routes, transporting: *General commodities, including commodities in bulk*, except liquid commodities in bulk, those of unusual value, Class A and B explosives, household goods as defined by the Commission, and those requiring special equipment, (1) between Bay City, Mich., and Detroit, Mich., from Bay City over Michigan Highway 15 to junction U. S. Highway 10, thence over U. S. Highway 10 to Detroit, and return over the same route, serving all intermediate points except those south of Millington, Mich.; (2) between Bay City, Mich., and Saginaw, Mich., from Bay City over U. S. Highway 23 to Saginaw, and return over the same route, serving all intermediate points; (3) between Saginaw, Mich., and junction Michigan Highways 81 and 58 near Cass City, Mich., from Saginaw over Michigan Highway 81 to junction Michigan Highway 53 near Cass City, and return over the same route, serving all intermediate points; (4) between Saginaw, Mich., and junction Michigan Highways 46 and 15 at Richville, Mich., from Saginaw over Michigan Highway 46 to junction Michigan Highway 15 at Richville, and return over the same route, serving all intermediate points; (5) between Saginaw, Mich., and junction Michigan Highways 38 and 15 at Vassar, Mich., from Saginaw over U. S. Highway 10 to junction Michigan Highway 38, thence over Michigan Highway 38 to junction Michigan Highway 15 at Vassar, and return over the same route, serving all intermediate points; (6) between junction Michigan Highways 83 and 15 near Gera, Mich., and junction Michigan Highways 83 and 38 at Frankenmuth, Mich., from junction Michigan Highways 83 and 15 near Gera, over Michigan Highway 83 to junction Michigan Highway 38 at Frankenmuth, and return over the same route, serving all intermediate points; (7) between junction Millington Road and Michigan Highway 15 at Millington, Mich., and junction Bray Road and Michigan Highway 38, from junction Millington Road and Michigan Highway 15 at Millington over Millington Road to Bray Road, thence over Bray Road to junction Michigan Highway 38, and return over the same route, serving all intermediate points; (8) between Richville, Mich., and junction Michigan Highways 46 and 53, from Richville over Michigan Highway 46 to junction Michigan Highway 53, and return over the same route, serving all intermediate points, except those east of Michigan Highway 24; (9) between Richville, Mich., and junction Van Buren Road and Michigan Highway 81 near Reese, Mich., from Richville over Van Buren Road to junction Michigan Highway 81 near Reese, and return over the same route, serving all intermediate points; (10) between Vassar, Mich., and junction Vassar Road and Michigan Highway 81, from Vassar over Vassar Road to junction Michigan Highway 81, and return over the same route, serving all intermediate points; (11) between junction Leix Road and Michigan Highway 38 near Mayville, Mich., and junction Leix Road and Michigan Highway 46, from junction Leix Road and Michigan Highway 38 near Mayville, over Leix Road to junction Michigan Highway 46, and return over the same route, serving all intermediate points; (12) between Vassar, Mich., and Marlette, Mich., from Vassar over Michigan Highway 38 to Marlette, and return over the same route, serving all intermediate points; (13) between Mayville, Mich., and Detroit, Mich., from Mayville over Michigan Highway 24 to junction U. S. Highway 10, thence over U. S. Highway 10 to Detroit, and return over the same route, serving only those intermediate points between Mayville and junction Michigan Highways 24 and 90; (14) between Caro, Mich., and Deford, Mich., from Caro over County Road to Deford, and return over the same route, serving all intermediate points; (15) between Wilmot, Mich., and Cass City, Mich., from Wilmot over County Road through Deford, Mich., to Cass City, and return over the same route, serving all intermediate points; (16) between Hemans, Mich., and Caro, Mich., from Hemans over County Road to Caro, and return over the same route, serving

all intermediate points; (17) between Caro, Mich., and Kings Mill, Mich., from Caro over Michigan Highway 24 to junction Michigan Highway 38, thence over Michigan Highway 38 to Clifford, Mich., thence over County Road to Kings Mill, and return over the same route, serving all intermediate points; (18) between junction Michigan Highway 38 and County Road west of Clifford Mich., and North Branch, Mich., from junction Michigan Highway 38 and County Road west of Clifford, over County Road to North Branch, and return over the same route, serving all intermediate points; (19) between junction County Road and Michigan Highway 38 at Mayville, Mich., and Detroit, Mich., from junction County Road and Michigan Highway 38 at Mayville, over County Road through Fostoria, Mich., to junction Michigan Highway 90, thence over Michigan Highway 90 to junction Michigan Highway 19, thence over Michigan Highway 19 to junction U. S. Highway 25 near Richmond, Mich., thence over U. S. Highway 25 to Detroit, and return over the same route, serving all intermediate points, and the off-route point of Bodyville, Mich.; (20) between Millington, Mich., and Fostoria, Mich., from Millington over County Road 541 to junction County Road 403, thence over County Road 403 to Fostoria, and return over the same route, serving all intermediate points; (21) between New Greenleaf, Mich., and Detroit, Mich., from New Greenleaf over unnumbered County Road to junction Michigan Highway 53, thence over Michigan Highway 53 to Detroit, and return over the same route, serving all intermediate points except those north of Imlay City, Mich.; (22) between Imlay City, Mich., and junction Michigan Highways 21 and 19 at Emmett, Mich., from Imlay City over Michigan Highway 21 to junction Michigan Highway 19 at Emmett, and return over the same route, serving all intermediate points; (23) between Capac, Mich., and junction County Road and U. S. Highway 25, from Capac over County Road through Berville, Armada, and New Haven, Mich., to junction U. S. Highway 25, and return over the same route, serving all intermediate points; (24) between Yale, Mich., and junction Michigan Highways 136 and 19 at Memphis, Mich., from Yale over County Road through Fargo, Mich., to junction Michigan Highway 136, thence over Michigan Highway 136 through Avoca, Mich., to junction County Road, thence over County Road through Ruby and Lamb, Mich., to junction Michigan Highway 19 at Memphis, and return over the same route, serving all intermediate points; (25) between Armada, Mich., and junction County Road (North Avenue) and U. S. Highway 25 at Mt. Clemens, Mich., from Armada over County Road (North Avenue) to junction U. S. Highway 25 at Mt. Clemens, and return over the same route, serving all intermediate points; (26) between Detroit, Mich., and Willow Run, Mich., from Detroit over U. S. Highway 112 to Willow Run (also from Detroit over U. S. Highway 12 (the Detroit industrial expressway) to Willow Run, and return over the same route, serving all intermediate points; (27) between Detroit, Mich., and junction West Road and Allen Road at Trenton, Mich., from Detroit over Jefferson Avenue to junction West Road at Trenton, thence over West Road to junction Allen Road, and return over the same route, serving all intermediate points; and (28) serving off-route points in Warren Township and Sterling Township in Macomb County, Mich., Troy Township in Oakland County, Mich., and all commercial zones surrounding the points hereinabove described as more particularly defined by the Commission. Applicant is authorized to conduct similar operations in Michigan.

NOTE: Applicant holds Certificate No. MC 59124, and has registered with the Commission certain intrastate certificated authority under Docket No. MC 59124 (Sub No. 2). If the Certificate herein sought is granted, applicant is willing that all previously issued authority may be revoked.

HEARING: May 20, 1957, at the Olds Hotel, Lansing, Mich., before Joint Board No. 76.

No. MC 59365 (Sub No. 3), filed March 20, 1957, H. & G. CARTAGE COMPANY, a Corporation, 1531 Brooklyn Avenue, Detroit 26, Mich. Applicant's attorney: Walter N. Bieneman, Guardian Building, Detroit 26, Mich. For authority to operate as a *common carrier*, over a regular route, transporting: *General commodities*, except those of unusual value, Class A and B explosives, livestock, household goods as defined by the Commission, commodities in bulk, and those requiring special equipment, between junction U. S. Highway 25 and Alternate U. S. Highway 24, near Allen Road, Mich., and Toledo, Ohio: from junction U. S. Highway 25 and Alternate U. S. Highway 24 (near Allen Road), over Alternate U. S. Highway 24 to Toledo, and return over the same route, serving all intermediate points and the off-route point of the Detroit Edison Atomic Energy Reactor Plant near Newport, Mich. Applicant is authorized to transport similar commodities between Detroit, Mich. and Toledo, Ohio.

HEARING: May 21, 1957, at the Olds Hotel, Lansing, Mich., before Joint Board No. 57.

No. MC 59925 (Sub No. 4), filed March 29, 1957, JOHN PETER GARRISON, doing business as GARRISON, Branchville, N. J. Applicant's representative: Bert Collins, 140 Cedar Street, New York 6, N. Y. For authority to operate as a *common carrier*, over irregular routes, transporting: *Lime, limestone* and *mixtures of lime and limestone*, from points in Sussex and Warren Counties, N. J., except Lime Crest, N. J., to points on Long Island, N. Y., points in Sullivan, Ulster, Westchester, Rockland and Orange Counties, N. Y., Wayne, Pike, Monroe, Carbon, Lackawanna, Luzerne, Northampton, Bucks, Montgomery and Philadelphia Counties, Pa., and points in the New York, N. Y., Commercial Zone as defined by the Commission; and *empty containers or other such incidental facilities* (not specified) used in transporting the commodities specified, and *returned, refused and rejected shipments* of the commodities specified from the above-designated destination points to points in Sussex and Warren Counties, N. J., except Lime Crest, N. J. Applicant is authorized to transport similar commodities in New Jersey, New York, and Pennsylvania.

HEARING: May 23, 1957, at 346 Broadway, New York, N. Y., before Examiner John McCarthy.

No. MC 60191 (Sub No. 1), filed April 9, 1957, CLEVELAND & BUFFALO TRANSIT COMPANY, INC., 3621 Lakeside Avenue, Cleveland 14, Ohio. Applicant's attorney: Walter E. Shaeffer, 44 East Broad Street, Columbus 15, Ohio. For authority to operate as a *common carrier*, transporting: *General commodities*, except those of unusual value, Class A and B explosives, household goods as defined by the Commission, commodities in bulk, and those requiring special equipment, serving the site of the Ford Motor Company plant to be known as the Lorain Assembly Plant located in Brownhelm Township, Lorain County, Ohio, at or near the intersection of U. S. Highway 6 and Baumhart Road, as an off-route point in connection with applicant's authorized regular route operations between Cleveland, Ohio and Buffalo, N. Y., over U. S. Highway 20. Applicant is authorized to transport similar commodities in New York and Ohio.

HEARING: April 26, 1957, in Room 255, New Post Office Building, Columbus, Ohio, before Joint Board No. 117, or, if the Joint Board waives its right to participate, before Examiner Reece Harrison.

No. MC 60191 (Sub No. 2), filed April 9, 1957, CLEVELAND & BUFFALO TRANSIT COMPANY, INC., 3621 Lakeside Avenue, Cleveland 14, Ohio. Applicant's attorney: Walter E. Shaeffer, 44 East Broad Street, Columbus 15, Ohio. For authority to operate as a *common carrier*, transporting: *General commodities*, except those of unusual value, Class A and B explosives, household goods as defined by the Commission, commodities in bulk, and those requiring special equipment, serving the site of the Euclid Division, General Motors Corporation, located about one and one-half (1½) miles south of Hudson, Ohio, on Ohio Highway 91, in connection with applicant's authorized regular route operations between Cleveland, Ohio and Buffalo, N. Y., over U. S. Highway 20. Applicant is authorized to transport similar commodities in New York and Ohio.

HEARING: April 24, 1957, in Room 255, New Post Office Building, Columbus, Ohio, before Joint Board No. 117, or, if the Joint Board waives its right to participate, before Examiner Reece Harrison.

No. MC 60751 (Sub No. 4), filed April 8, 1957, CLEVELAND-PITTSBURGH FREIGHT LINE, INC., 3515 Lakeside Avenue, Cleveland, Ohio. Applicant's attorney: Edwin C. Reminger, Standard Building, Cleveland 13, Ohio. For authority to operate as a *common carrier*, transporting: *General commodities*, except those of unusual value, Class A and B explosives, household goods as defined by the Commission, commodities in bulk, and those requiring special

equipment, serving the site of the General Motors Euclid Division Plant, located near Darrowville, Summit County, Ohio, as an off-route point in connection with applicant's authorized regular route operations between Cleveland, Ohio and Pittsburgh, Pa., over Ohio Highway 14. Applicant is authorized to transport similar commodities in Ohio, Pennsylvania, and West Virginia.

HEARING: April 24, 1957, in Room 255, New Post Office Building, Columbus, Ohio, before Joint Board No. 117, or, if the Joint Board waives its right to participate, before Examiner Reece Harrison.

No. MC 61709 (Sub No. 7), filed March 25, 1957, MEINHARDT CARTAGE CO., 409 Broadway, Quincy, Ill. Applicant's attorney: Mack Stephenson, 208 East Adams Street, Springfield, Ill. For authority to operate as a *common carrier*, transporting: *General commodities*, except those of unusual value, Class A and B explosives, household goods as defined by the Commission, commodities in bulk, and commodities requiring special equipment, between Quincy, Ill. and the intersection of U. S. Highways 24 and 66 at Chenoa, Ill., from Quincy over U. S. Highway 24 to the junction Illinois Highway 103, thence over Illinois Highway 103 to junction U. S. Highway 67, thence over U. S. Highway 67 to Frederick, thence over Illinois Highway 100 to junction U. S. Highway 136, thence over U. S. Highway 136 to junction U. S. Highway 66, and thence over U. S. Highway 66 to junction U. S. Highway 24 at Chenoa, as an alternate route for operating convenience only, serving no intermediate points and serving Chenoa, Ill. for purpose of joinder only, in connection with applicant's authorized regular route operations between Chicago, Ill. and Quincy, Ill. over U. S. Highways 66 and 24. Applicant is authorized to conduct operations in Illinois and Iowa.

HEARING: May 31, 1957, in Room 852, U. S. Custom House, South Canal Street, Chicago, Ill., before Joint Board No. 149.

No. MC 71096 (Sub No. 29), filed March 20, 1957, NORWALK TRUCK LINES, INC., 36 Woodlawn Avenue, Norwalk, Ohio. Applicant's attorney: Edwin C. Reminger, 1016 Standard Building, Cleveland 13, Ohio. For authority to operate as a *common carrier*, transporting: *General commodities*, except those of unusual value, Class A and B explosives, livestock, automobiles, household goods as defined by the Commission, commodities in bulk, and those requiring special equipment, serving the site of the Brush Beryllium Plant, located near the intersection of Ohio Highways 105 and 590 (Post Office, Elmore, Ottawa County, Ohio), as an off-route point in connection with applicant's authorized regular route operations between Akron, Ohio, and Flint, Mich., over Ohio Highway 18 and 120 and U. S. Highway 20. Applicant is authorized to transport similar commodities in Illinois, Indiana, Michigan, Ohio, and Pennsylvania.

HEARING: May 27, 1957, in Room 255, New Post Office Building, Columbus, Ohio, before Joint Board No. 117.

No. MC 72444 (Sub No. 10), filed March 14, 1957, THE AKRON-CHICAGO TRANSPORTATION COMPANY, INC., 347 West Thornton Street, Akron, Ohio. Applicant's attorney: Charles R. Iden, 2200 First National Tower, Akron 8, Ohio. For authority to operate as a *common carrier*, transporting: *General commodities*, except those of unusual value, Class A and B explosives, household goods as defined by the Commission, commodities in bulk, and those requiring special equipment, to and from the site of the Chrysler Company plant located on Ohio Highway 82 approximately one mile west of Twinsburg, Ohio and 2½ miles east of Ohio Highway 8 between Akron and Cleveland, Ohio, on the one hand, and, on the other, points served by applicant in its authorized regular route operations. Applicant is authorized to conduct similar operations in Illinois, Indiana, Ohio and New York and the off-route points of New Castle and Sharon in Pennsylvania.

HEARING: May 28, 1957, in Room 255, New Post Office Building, Columbus, Ohio, before Joint Board No. 117.

No. MC 80428 (Sub No. 23), filed March 14, 1957, H. LEON McBRIDE, FRANK McBRIDE, and H. LEON McBRIDE, JR., doing business as H. L. & F. McBRIDE, Main Street, Goshen, N. Y. Applicant's representative: Samuel V. Gianniny, 25 Exchange Street, Rochester 14, N. Y. For authority to operate as a *common carrier*, over irregular routes, transporting: *Feed, fertilizer* and *lime*, in bulk, in tank vehicles, equipped for mechanically unloading, from Buffalo, N. Y., to points in Erie, Crawford, Warren, McKean, Potter, and Tioga Counties, Pa.

HEARING: May 28, 1957, at the Seneca Hotel, Rochester, N. Y., before Examiner John McCarthy.

No. MC 84605 (Sub No. 4), filed March 27, 1957, ANCHOR VAN LINES, INC., 226 Great Mills Road, Lexington Park, Md. Applicant's attorney: James E. Wilson, Continental Building, 14th at K NW., Washington 5, D. C. For authority to operate as a *common carrier*, over irregular routes, transporting: *Household goods*, as defined by the Commission, between Washington, D. C., and points within 20 miles of Washington, on the one hand, and, on the other, points in North Carolina, South Carolina, Georgia, Florida, and Tennessee. Applicant is authorized to transport similar commodities in Delaware, Maryland, New Jersey, New York, Pennsylvania, Virginia, West Virginia, and the District of Columbia.

HEARING: May 17, 1957, at the Offices of the Interstate Commerce Commission, Washington, D. C., before Examiner Leo A. Riegel.

No. MC 92983 (Sub No. 215), filed March 25, 1957, ELDON MILLER, INC., 330 East Washington Street, Iowa City, Iowa. For authority to operate as a *common carrier*, over irregular routes, transporting: *Acids and chemicals*, in bulk, in tank vehicles, from points in Kanawha County, W. Va., to points in Kansas, Nebraska, Oklahoma, Texas and Wyoming. Applicant is authorized to transport similar commodities in Alabama, Arkansas, Colorado, Georgia, Illinois, Indiana, Iowa, Kansas, Kentucky, Louisiana, Minnesota, Mississippi, Missouri, Nebraska, North Carolina, North Dakota, Ohio, Oklahoma, South Carolina, South Dakota, Tennessee, Texas, West Virginia, and Wisconsin.

HEARING: May 21, 1957, at the Offices of the Interstate Commerce Commission, Washington, D. C., before Examiner Richard H. Roberts.

No. MC 95212 (Sub No. 26), filed March 15, 1957, HELEN R. HENDERSON, doing business as H. R. HENDERSON, Box 327, Seneca, Ill. Applicant's attorney: Joseph M. Scanlan, 111 West Washington Street, Chicago 2, Ill. For authority to operate as a *contract carrier*, over irregular routes, transporting: *Electrical appliances, including but not limited to electric broilers, cookers, roasters, fryers, heaters, pads, stoves, griddles, grills, corn poppers, fans, food mixers, hot plates, pads, sheets, blankets, irons, bottle warmers, juice extractors, percolators, toasters, waffle irons, hair dryers, and ironing machines, parts of and for the aforespecified electrical appliances*, and *glassware*, in boxes, barrels, and containers, when shipped in conjunction with any of the aforedescribed appliances, and *empty boxes, barrels and containers*, on return, between Algonquin and Elgin, Ill., on the one hand, and, on the other, Boonville, Macon, Moberly, Jefferson City, and Kirksville, Mo.

HEARING: May 31, 1957, in Room 852, U. S. Custom House, 610 South Canal Street, Chicago, Ill., before Joint Board No. 135.

No. MC 101075 (Sub No. 41), filed March 13, 1957, TRANSPORT, INC., 1215 Center Avenue, Moorhead, Minn. Applicant's attorney: Donald A. Morken, 1100 First National-Soo Line Building, Minneapolis 2, Minn. For authority to operate as a *common carrier*, over irregular routes, transporting: *Sulphur*, dry or liquid, in bulk, in tank or hopper vehicles, between points in Wisconsin, Minnesota, and North Dakota.

HEARING: May 24, 1957, at the U. S. Court Rooms, Fargo, N. Dak., before Joint Board No. 219.

No. MC 101476 (Sub No. 8), filed March 18, 1957, HOWARD N. DAHLSTEN, doing business as DAHLSTEN TRUCK LINE, Clay Center, Nebr. Applicant's representative: C. A. Ross, 1004–1005 Trust Building, Lincoln 8, Nebr. For authority to operate as a *contract carrier*, over irregular routes, transporting: *Salt* and *salt compounds*, from Hutchinson, South Hutchinson, Kanopolis and Lyons, Kans., and points within two miles of each, to points in Illinois; and empty containers or other such incidental facilities (not specified) used in transporting the commodities specified, on return. Applicant is authorized to transport salt in Colorado, Iowa, Kansas, Minnesota, Nebraska, South Dakota, and Wyoming.

HEARING: May 29, 1957, at the Hotel Kansan, Topeka, Kans., before Joint Board No. 195.

No. MC 102876 (Sub No. 2), filed March 25, 1957, HARVEY NELSON, Veblen, S. Dak. Applicant's attorney: Alan Foss, First National Bank Building, Fargo, N. Dak. For authority to operate as a *common carrier*, over irregular routes, transporting: *Steel products*, from

Duluth, Minn., to points in that portion of North Dakota south of U. S. Highway 10 and east of the Missouri River, and points in that portion of South Dakota east of the Missouri River and north of U. S. Highway 212, except Enderlin, Leonard, and Kindred, N. Dak., and excluding points on U. S. Highway 10 in North Dakota and points on U. S. Highway 212 in South Dakota.

HEARING: May 24, 1957, at the U. S. Court Rooms, Fargo, N. Dak., before Joint Board No. 143.

No. MC 106398 (Sub No. 78), filed February 4, 1957, NATIONAL TRAILER CONVOY, INC., 1916 North Sheridan Road, Tulsa 15, Okla. Mailing address: Box 8096, Dawson Station, Tulsa 15, Okla. Applicant's attorney: John E. Lesow, 3737 North Meridian Street, Indianapolis 8, Ind. For authority to operate as a *common carrier*, over irregular routes, transporting: *Trailers*, designed to be drawn by passenger automobiles, in initial movements, in truckaway service, from points in Oklahoma, except the plant of the Spartan Aircraft Company in Tulsa, Okla., and except the site of the plant of El Reno Trailers, Inc. located approximately eight (8) miles south of El Reno, Okla., to all points in the United States, except Mt. Clemens, Detroit and Flint, Mich. Applicant is authorized to transport trailers throughout the United States.

HEARING: May 29, 1957, at the Federal Building, Oklahoma City, Okla., before Examiner Walter R. Lee.

No. MC 107162 (Sub No. 6), filed March 28, 1957, BERNHART G. JOHNSON, 529 Harding Street, Iron Mountain, Mich. Applicant's attorney: John T. Porter, 708 First National Bank Building, Madison 3, Wis. For authority to operate as a *common carrier*, over irregular routes, transporting: *Agricultural lime* and *lime products*, in bags, from Mayville and Rockwood, Manitowoc County, Wis., to points in the Upper Peninsula of Michigan; *Quarried stone*, from points within 5 miles of Fond du Lac, Wis., to points in the Upper Peninsula of Michigan. Applicant is authorized to conduct operations in Wisconsin and the Upper Peninsula of Michigan.

NOTE: Applicant has pending application in MC 116183 to conduct operations as a contract carrier; therefore, dual operations under Section 210 may be involved.

HEARING: May 21, 1957, at the Wisconsin Public Service Commission, Madison, Wis., before Joint Board No. 95.

No. MC 107162 (Sub No. 7), filed March 28, 1957, BERNHART G. JOHNSON, 529 Harding Street, Iron Mountain, Mich. Applicant's attorney: John T. Porter, 708 First National Bank Building, Madison 3, Wis. For authority to operate as a *common carrier*, over irregular routes, transporting: *Fertilizer* and *fertilizer ingredients*, from Antigo, Cameron, Green Bay, Prairie du Chien and Whitewater, Wis., to points in the Upper Peninsula of Michigan. Applicant is authorized to conduct operations in Wisconsin and the Upper Peninsula of Michigan.

NOTE: Applicant has pending application in MC 116183 to conduct operations as a contract carrier; therefore, dual operations under Section 210 may be involved.

HEARING: May 21, 1957, at the Wisconsin Public Service Commission, Madison, Wis., before Joint Board No. 95.

No. MC 107162 (Sub No. 8), filed March 28, 1957, BERNHART G. JOHNSON, 529 Harding Street, Iron Mountain, Mich. Applicant's attorney: John T. Porter, 708 First National Bank Building, Madison 3, Wis. For authority to operate as a *common carrier*, over irregular routes, transporting: *Treated wood products*, consisting of railroad ties, posts, poles, piling, timbers and rough lumber treated with creosote and other preservatives, from Superior, Wis., to points in Minnesota, and from Superior and Plain, Wis., to points in the Upper Peninsula of Michigan. Applicant is authorized to conduct operations in Wisconsin and the Upper Peninsula of Michigan.

NOTE: Applicant has pending application in MC 116183 to conduct operations as a contract carrier; therefore, dual operations under section 210 may be involved.

HEARING: May 22, 1957, at the Wisconsin Public Service Commission, Madison, Wis., before Joint Board No. 282.

No. MC 107815 (Sub No. 4), filed March 18, 1957, IOWA COACHES, INCORPORATED, 442 Eighth Avenue, Dubuque, Iowa. For authority to operate as a *common carrier*, over a regular route, transporting: *Passengers*, and *express, mail, newspapers* and/or *baggage* of passengers in the same vehicle with passengers, between Cedar Rapids, Iowa, and Prairie du Chien, Wis.: from Cedar Rapids over Iowa Highway 64 to junction with Iowa Highway 13, thence over Iowa Highway 13 to junction with U. S. Highway 18, and thence over U. S. Highway 18 to Prairie du Chien, and return over the same route, serving all intermediate points. Applicant is authorized to conduct similar operations in Iowa.

HEARING: May 20, 1957, at the Wisconsin Public Service Commission, Madison, Wis., before Joint Board No. 202.

No. MC 108880 (Sub No. 3), filed March 27, 1957, ALLMEN TRANSFER & MOVING COMPANY, a Corporation, 17822 Lake Avenue, Cleveland, Ohio. Applicant's representative: J. J. Kuhner, The Society for Savings Building, Cleveland 14, Ohio. For authority to operate as a *contract carrier*, over irregular routes, transporting: *Portland cements*, from Middlebranch, Ohio, to points in that part of West Virginia on and west of U. S. Highway 19 from the West Virginia-Pennsylvania State line to Weston, W. Va., and on, west and north of U. S. Highway 33 from Weston to the West Virginia-Ohio State line, except points in Brooke, Hancock, Marshall and Ohio Counties, and *empty containers or other such incidental facilities* (not specified) used in transporting Portland cements from points in the above-described destination territory to Middlebranch, Ohio. Applicant is authorized to transport similar commodities in Kentucky, Ohio, Pennsylvania, and West Virginia.

NOTE: Applicant is authorized common carrier operations in Certificate No. MC 34825 (Sub No. 1). Section 210 dual operations may be involved.

HEARING: May 31, 1957, in Room 255, New Post Office Building, Columbus, Ohio, before Joint Board No. 59.

No. MC 109084 (Sub No. 8), filed April 1, 1957, STANLEY A. WESTGOR, Wittenberg, Wis. Applicant's attorney: Edward A. Solie, 715 First National Bank Building, Madison 3, Wis. For authority to operate as a *contract carrier*, over irregular routes, transporting: *Charcoal*, in bulk, from points in Wisconsin on and west of U. S. Highway 51, to Iron Mountain, Mich. Applicant is authorized to conduct similar operations in Michigan and Wisconsin.

NOTE: Applicant states he agrees to elimination of all duplicating authority.

HEARING: May 20, 1957, at the Wisconsin Public Service Commission, Madison, Wis., before Joint Board No. 95.

No. MC 109835 (Sub No. 6), filed April 4, 1957, BURKS MOTOR FREIGHT LINE, INCORPORATED, 218 Miller Street, P. O. Box 1028, Little Rock, Ark. Applicant's attorneys: John Paul Jones, 1012 Edway Building, Memphis 3, Tenn. Thomas L. Robinson, Columbian Mutual Tower Bldg., Memphis, Tenn. and A. E. Townsend, Jr., Commercial Nat'l Bank Bldg., Little Rock, Ark. For authority to operate as a *common carrier*, over regular routes, transporting: *General commodities, including Class A and B explosives, commodities of unusual value, commodities in bulk, and commodities requiring special equipment*, but excluding household goods as defined by the Commission, (1) between Little Rock, Ark., and Pine Bluff, Ark., from Little Rock over U. S. Highway 65 to Pine Bluff, and return over the same route; (2) between Hazen, Ark., and Pine Bluff, Ark., from Hazen over U. S. Highway 70 to the junction of U. S. Highway 70 and Arkansas Highway 11, thence over Arkansas Highway 11 to Stuttgart, thence over U. S. Highway 79 to Pine Bluff, and return over the same route. Service from Hazen, Ark., over U. S. Highway 70 to the junction of U. S. Highway 70 and Arkansas Highway 11 is for operating convenience only; (3) between Pine Bluff, Ark., and Grand Lake, Ark. (unincorporated), from Pine Bluff, over U. S. Highway 65 to Grand Lake, and reutrn over the same route; (4) between Pine Bluff, Ark., and Warren, Ark., from Pine Bluff over Arkansas Highway 15 to Warren, and return over the same route; (5) between Warren, Ark., and Monticello, Ark., from Warren over Arkansas Highway 4 to Monticello, and return over the same route; (6) between Pine Bluff, Ark., and West Monroe, La., from Pine Bluff over U. S. Highway 65 to junction of U. S. Highway 65 and Arkansas Highway 81, thence over Arkansas Highway 81 to the junction of Arkansas Highway 81 and the Arkansas-Louisiana State line, thence over Louisiana Highway 139 to the junction of Louisiana Highway 139 and U. S. Highway 80, thence over U. S. Highway 80 to West Monroe, and return over the same route. Service from Pine Bluff, Ark., over U. S. Highway 65 to junction of U. S. Highway 65 and Arkansas Highway 81 is for operating convenience only; (7) between Pine Bluff,

Ark., and the Pine Bluff Municipal Airport, Ark., from Pine Bluff over U. S. Highway 65 to junction unnumbered highway, thence over unnumbered highway to Pine Bluff Municipal Airport, and return over the same route; (8) between McGehee, Ark., and Monroe, La., from McGehee over Arkansas Highway 4 to junction of Arkansas Highway 4 and U. S. Highway 65, which is south of McGehee, thence over U. S. Highway 65 to junction of U. S. Highway 65 and U. S. Highway 165, thence over U. S. Highway 165 to Monroe, and return over the same route. Service over U. S. Highway 65 between the junction of Arkansas Highway 4 and U. S. Highway 65, and junction of U. S. Highway 65, and U. S. Highway 165, is for operating convenience only; (9) between Greenville, Miss., and Bastrop, La., from Greenville over U. S. Highway 82 to Lake Village, thence over U. S. Highway 82 to Crossett, thence over Arkansas Highway 133 to the junction of Arkansas Highway 133 and Arkansas-Louisiana State line, thence over Louisiana Highway 142 to junction of Louisiana Highway 142 and Louisiana Highway 139, thence over Louisiana Highway 139 to Bastrop, and return over the same route. Service over Arkansas Highway 81 between Hamburg, Arkansas and junction of Arkansas Highway 81 and U. S. Highway 82, and service over Louisiana Highway 139 from junction of Louisiana Highway 142 and Louisiana Highway 139 to Bastrop, La., is for operating convenience only; (10) between Sterlington, La., and junction of U. S. Highway 165 and Louisiana Highway 2, from Sterlington over Louisiana Highway 2 to junction Louisiana Highway 2 and U. S. Highway 165, and return over the same route; (11) between Sterlington, La., and junction U. S. Highway 165 and Louisiana Highway 134, for operating convenience only, from Sterlington, La., over Louisiana Highway 553 to junction of Louisiana Highway 553 and Louisiana Highway 134, thence over Louisiana Highway 134 to junction of Louisiana Highway 134 and U. S. Highway 165, and return over the same route. Service authorized here will be for operating convenience only; (12) between Sterlington, La., and junction of U. S. Highway 165 and Louisiana Highway 553, from Sterlington, over Louisiana Highway 553 to junction of U. S. Highway 165 and Louisiana Highway 553, and return over the same route; and (13) between Greenville, Miss., and Memphis, Tenn., from Greenville, over U. S. Highway 82 to Junction U. S. Highways 82 and 61, thence over U. S. Highway 61 to Memphis, and return over the same route. Service authorized here will be for operating convenience only, and will be restricted to delivery of freight with prior transportation over this particular route which does not originate at Greenville, Miss., or Memphis, Tenn. Service is to be authorized to and from all intermedite points on the above specified routes.

NOTE: Applicant states that the above operating authority substantially duplicates, with some exceptions, the authority which applicant has operated since on or about March 18, 1948 by lease from Strickland Transportation Co., Inc., lessor, pursuant to order of the Commission dated March 18, 1948 in Docket MC–FC 31502. Said operating authority is a portion of the service authorized in Certificate No. MC 59680, dated June 2, 1947 to Strickland Transportation Co., Inc. Applicant is authorized to transport similar commodities in the States of Arkansas, Louisiana, and Mississippi.

HEARING: June 3, 1957, at the Virginia Hotel, Monroe, La., before Examiner Richard Yardley.

No. MC 111401 (Sub No. 81), filed April 3, 1957, GROENDYKE TRANSPORT, INC., 2204 North Grand, P. O. Box 632, Enid, Okla. For authority to operate as a *common carrier*, over irregular routes, transporting: *Tetraethyl lead* and *motor fuel antiknock compounds*, in bulk, in specialized vehicles, between points in Arkansas, Colorado, Illinois, Indiana, Iowa, Kansas, Louisiana, Minnesota, Missouri, Montana, Nebraska, New Mexico, North Dakota, Oklahoma, South Dakota, Texas, Utah, Wisconsin and Wyoming; and from points in the above named states to points in Alabama, Arizona, California, Connecticut, Delaware, Florida, Georgia, Idaho, Kentucky, Maine, Maryland, Massachusetts, Michigan, Mississippi, Nevada, New Hampshire, New Jersey, New York, North Carolina, Ohio, Oregon, Pennsylvania, Rhode Island, South Carolina, Tennessee, Vermont, Virginia, Washington and West Virginia. Applicant is authorized to conduct operations in Oklahoma, Kansas, Colorado, Texas, New Mexico, Louisiana, Mississippi, Tennessee, Missouri, and California.

HEARING: May 21, 1957, at the Offices of the Interstate Commerce Commission, Washington, D. C., before Examiner Allan F. Borroughs.

No. MC 112223 (Sub No. 35), filed March 26, 1957, QUICKIE TRANSPORT COMPANY, a Corporation, 1121 South Seventh Street, Mineapolis, Minn. For authority to operate as a *common carrier*, over irregular routes, transporting: *Fat* and *tallow*, in bulk, in tank vehicles, from points in Hennepin, Ramsey and Dakota Counties, Minn., to New Richmond, Wis., and *rejected or damaged shipments* of fat and tallow on return.

HEARING: May 23, 1957, at the Federal Court Building, Marquette Avenue, South and Third Streets, Minneapolis, Minn., before Joint Board No. 142.

No. MC 112372 (Sub No. 5), filed March 27, 1957, CLARENCE G. JEWELL, Leesburg, Va. For authority to operate as a *common carrier*, over irregular routes, transporting: *Hog by-products*, such as grease, in drums; hog cracklings, in bulk; and hog dry blood, in burlap sacks, from Purcellville, Va., to Philadelphia, Lancaster, Hanover, and Greencastle. Pa., and *empty grease drums and burlap sacks, without compensation*, on return.

HEARING: May 23, 1957, at the Offices of the Interstate Commerce Commission, Washington, D. C. before Examiner Mack Myers.

No. MC 112613 (Sub No. 2), filed March 22, 1957, T. ACHENBERG TRANSPORTATION CO., a corporation, 208 Sheridan Street, Perth Amboy, N. J. Applicant's representative: Bert Collins, 140 Cedar Street, New York 6, N. Y. For authority to operate as a *contract carrier*, over irregular routes, transporting: *Medicines* and *toilet preparations*, in containers, and *empty containers* or *other such incidental facilities* (not specified) used in transporting the above-specified commodities and *empty pallets*, between Perth Amboy, N. J., and Clinton, Conn. Applicant is authorized to conduct similar operations in New Jersey and New York.

HEARING: May 22, 1957, at 346 Broadway, New York, N. Y., before Examiner John McCarthy.

No. MC 114456 (Sub No. 3), filed April 1, 1957, GORDON N. CAVES, doing business as CAVES TRUCKING CO., P. O. Box 56, Wild Rose, Wis. Applicant's attorney: Edward Solie, 715 First National Bank Building, Madison 3, Wis. For authority to operate as a *common carrier*, over irregular routes, transporting: *Lime*, from points in Fond Du Lac County, Wis., to Winona, Minn. Applicant is authorized to conduct operations in Minnesota, Wisconsin, Illinois, and Iowa.

HEARING: May 22, 1957, at the Wisconsin Public Service Commission, Madison, Wis., before Joint Board No. 142.

No. MC 114885 (Sub No. 7), filed March 29, 1957, TANK TRUCK TRANSPORT LIMITED, a corporation, P. O. Box 116, Point Edward, Ontario, Canada. Applicant's attorney: Robert H. Levy, 39 South La Salle Street, Chicago 3, Ill. For authority to operate as a *common carrier*, over irregular routes, transporting: *Hydrochloric acid*, in bulk, in tank vehicles, from Niagara Falls, N. Y., to the port of entry on the International Boundary line between the United States and Canada, at or near Niagara Falls, N. Y.

HEARING: May 22, 1957, at the Offices of the Interstate Commerce Commission, Washington, D. C., before Examiner Alvin H. Schutrumpf.

No. MC 116443, filed February 15, 1957, ASPHALT SERVICE, INC., Guilford, Ind. Applicant's attorney: Cecil C. Tague, Sr., Brookville, Ind. For authority to operate as a *contract carrier*, over irregular routes, transporting: *Asphalt* and *asphalt products*, in bulk, in tank vehicles, from the site of the American Bitumuls & Asphalt Company plant at Columbia Park, Ohio, or Finney, Ohio, to points in Indiana.

HEARING: May 23, 1957, at the U. S. Court Rooms, Indianapolis, Ind., before Joint Board No. 60.

No. MC 116476 (Correction), filed February 25, 1957, published in FEDERAL REGISTER of April 3, 1957, at page 2210, GEORGE C. HOGAN, 3d, 2123 Loney Street, Philadelphia, Pa. Applicant's attorney: Clarence M. Freedman, 1402–5 Commonwealth Building, 12th and Chestnut Streets, Philadelphia 7, Pa. For authority to operate as a *contract carrier*, over irregular routes, transporting: (1) *Clay pipe, concrete pipe, cement pipe* and *asbestos pipe* between the plant site of United States Concrete Pipe Co., at Croydon, Pa., and points within 150 miles thereof (as more fully described in the application); (2) *concrete construction forms*, used in the manufacture of concrete pipe, between Croydon, Pa., and Relay, Md.

HEARING: Remains as assigned May 23, 1957, at the Penn Sherwood Hotel,

3900 Chestnut Street, Philadelphia, Pa., before Examiner Herbert L. Hanback.

No. MC 116477, filed February 25, 1957, SYDNEY MILLER, 2760 Muscatine Street, Dubuque, Iowa. Applicant's attorney: Eugene D. Wright, 609 Bank and Insurance Building, Dubuque, Iowa. For authority to operate as a *contract carrier*, over irregular routes, transporting: *Malt beverages*, (1) Between Dubuque, Iowa and Chicago, Ill.; (2) Between Dubuque, Iowa and Minneapolis, Minn.; (3) Between Dubuque, Iowa and Milwaukee, Wis.; and (4) Between Dubuque, Iowa and St. Joseph, Mo.

NOTE: Applicant states he will leave Dubuque, Iowa, with self-owned tractor pulling various malt beverage distributors' trailers with empty shells, to Chicago, Ill., Minneapolis, Minn., Milwaukee, Wis., and St. Joseph, Mo., returning from one of these points with this trailer filled with malt beverages.

HEARING: May 20, 1957, at the Federal Office Building, Fifth and Court Avenues, Des Moines, Iowa, before Examiner James I. Carr.

No. MC 116516, filed March 11, 1957, THOMAS W. KEY, doing business as KEY TRUCKING, 528 Stout Street, Princeton, Ind. Applicant's attorney: William J. Guenther, 1511–14 Fletcher Trust Building, Indianapolis, Ind. For authority to operate as a *contract carrier*, over irregular routes, transporting: *Fertilizer*, from the site of National Stock Yards, St. Clair County, Ill., to points in Gibson and Knox Counties, Ind.

HEARING: May 24, 1957, at the U. S. Court Rooms, Indianapolis, Ind., before Joint Board No. 21.

No. MC 116530, filed March 20, 1957, HERMAN RUGE, 324 East Fourth Street, Davenport, Iowa. Applicant's attorney: Waldo M. Wissler, 629 Davenport Bank Building, Davenport, Iowa. For authority to operate as a *common carrier*, over irregular routes, transporting: *Wrecked motor vehicles*, by the truckaway method (tow truck), between Davenport, Iowa, and points in Scott, Muscatine, Louisa, Des Moines, Lee, Van Buren, Jefferson, Washington, Johnson, Keokuk, Iowa, Clinton, Jackson, Dubuque, Delaware, Buchanan, Jones, Linn, and Cedar Counties, Iowa, and points in Rock Island, Mercer, Henderson, Hancock, McDonough, Warren, Fulton, Knox, Henry, Peoria, Stark, Bureau, Woodford, Marshall, Putnam, La Salle, Whiteside, Carroll, Jo Daviess, Stephenson, Winnebago, Lee, and DeKalb Counties, Ill.

HEARING: May 29, 1957, at the Federal Office Building, 5th and Court Avenues, Des Moines, Iowa, before Joint Board No. 54.

No. MC 116537, filed March 22, 1957, ELLIS HENSLEY AND CHARLES HENSLEY, doing business as HENSLEY BROS., 305–08 Maple Street, West Harrison, Ind., (P. O. address: 105 Short Street, Harrison, Ohio). Applicant's attorney: Kirkwood Yockey, Morris Plan Bldg., Suite 806, 108 East Washington Street, Indianapolis 4, Ind. For authority to operate as a *common carrier*, over irregular routes, transporting: *Wrecked and disabled motor vehicles*, by the truckaway method, and *used motor vehicles* when being transported to the sites of wrecked or disabled motor vehicles by the truckaway method, between points in Dearborn, Ripley and Franklin Counties, Ind., on the one hand, and, on the other, points in Hamilton and Butler Counties, Ohio.

HEARING: May 23, 1957, at the U. S. Court Rooms, Indianapolis, Ind., before Joint Board No. 60.

No. MC 116538 (Sub No. 1), filed March 28, 1957, FRANCIS A. DUFLO, Croghan, N. Y. Applicant's representative: Raymond A. Richards, 13 Lapham Park, P. O. Box 25, Webster, N. Y. For authority to operate as a *common carrier*, over irregular routes, transporting: *Processed lumber, including sawed lumber and dry kiln lumber*, from points in Delaware, Herkimer, Jefferson, Lewis, Montgomery, Oneida and Schoharie Counties, N. Y., to points in Maine, New Hampshire, Pennsylvania, Vermont, and New York, including those points in New York on the International Boundary Line between the United States and Canada at Rouses Point, Thousand Island International Bridge and Trout River, N. Y.

HEARING: May 27, 1957, at the U. S. Court Rooms, Utica, N. Y., before Examiner John McCarthy.

No. MC 116546, filed March 27, 1957, PETER COLEINE AND ANGELO CORTAZZO, doing business as AMWILL TRUCKING COMPANY, 647 West 130th Street, New York 27, N. Y. Applicant's representative: Charles H. Trayford, 155 E. 40th Street, New York 16, N. Y. For authority to operate as a *contract carrier*, over irregular routes, transporting: *Meats and packing house products*, as defined by the Commission, from the New York Central Yards at West 130th St., New York, N. Y. to points in Westchester and Nassau Counties, N. Y.

HEARING: May 22, 1957, at 346 Broadway, New York, N. Y., before Examiner John McCarthy.

No. MC 116548, filed March 28, 1957, MEYER SMITH, 207 Burwell Road, Rochester, N. Y. Applicant's representative: Raymond A. Richards, 13 Lapham Park, P. O. Box 25, Webster, N. Y. For authority to operate as a *common carrier*, over irregular routes, transporting: *Fresh meat* in refrigerated equipment, suspended from hooks, from mover-head track rails, in carcasses or part carcasses, restricted to less than truckload shipments, from Rochester, N. Y., to New York, N. Y., points on Long Island, N. Y., and Philadelphia, Pa.

HEARING: May 28, 1957, at the Seneca Hotel, Rochester, N. Y., before Examiner John McCarthy.

No. MC 116551, filed March 29, 1957, JESSE BARO, INC., R. D. Douglasville, Pa. Applicant's attorney: William J. Wilcox, 512 Hamilton Street, Allentown, Pa. For authority to operate as a *common carrier*, over irregular routes, transporting: *Bituminous concrete* (also known as blacktop or amesite), *crushed stone, gravel, sand* and *stone* (unglazed and unmanufactured), from points in Robeson Township, Berks County, Pa., to points in Delaware, the District of Columbia, Maryland, New Jersey, New York, Ohio, Virginia and West Virginia; *sand*, from points in New Jersey to points in Robeson Township, Berks County, Pa.; and *empty containers or other such incidental facilities* (not specified), used in transporting the commodities specified, from above indicated destination territory to the above indicated points of origin.

HEARING: May 21, 1957, at the Offices of the Interstate Commerce Commission, Washington, D. C., before Examiner James C. Cheseldine.

No. MC 116564, filed April 3, 1957, LEWIS W. McCURDY and MARGARET J. McCURDY, a partnership, doing business as McCURDY'S TRUCKING CO., 571 Unity Street, Latrobe, Pa. Applicant's attorney: Edward B. Doran, Bank and Trust Building, Greensburg, Pa. For authority to operate as a *contract carrier*, over irregular routes, transporting: *Malt beverages*, in barrels, bottles and cases, from Latrobe, Pa., to Bridgeville and Wilmington, Del., and Baltimore, Aberdeen and Capitol Heights, Md. *Empty containers or other such incidental facilities* (not specified) used in transporting the commodities specified, on return.

HEARING: May 21, 1957, at the Offices of the Interstate Commerce Commission, Washington, D. C., before Joint Board No. 199.

MOTOR CARRIERS OF PASSENGERS

No. MC 3971 (Sub No. 7) filed March 27, 1957, CONRAD C. WILSON AND FRED A. WILSON, doing business as ZANE TRANSIT LINES, 1507 Augusta Street, Zanesville, Ohio. Applicant's attorney: James E. Wilson, Continental Building, 14th at K NW., Washington 6, D. C. For authority to operate as a *common carrier*, over a regular route, transporting: *Passengers and their baggage*, and *express, mail*, and *newspapers*, in the same vehicle with passengers, between Athens, Ohio, and Huntington, W. Va., from Athens over U. S. Highway 33 to Mason, W. Va., thence over West Virginia Highway 62 to Point Pleasant, W. Va., and thence over West Virginia Highway 2 to Huntington, and return over the same route, serving all intermediate points. Applicant is authorized to conduct operations in Ohio.

HEARING: June 3, 1957, in Room 255, New Post Office Building, Columbus, Ohio, before Joint Board No. 61.

No. MC 50959 (Sub No. 18), filed February 25, 1957, THE CINCINNATI, NEWPORT AND COVINGTON TRANSPORTATION COMPANY, Eleventh and Lowell Streets, Newport, Ky. Applicant's attorney: Blakely, Moore and Blakely, Lawyers Building, Covington, Ky. For authority to operate as a *common carrier*, over irregular routes, transporting: *Passengers and their baggage*, in the same vehicle with passengers, in round-trip special operations, during the racing season, beginning and ending at authorized points on the carrier's regular routes in Kenton, Campbell and Boone Counties, Ky., and Cincinnati, Ohio, and extending to and including Price Pike and O'Hara Road, the site of the Latonia Race Track.

NOTE: Applicant also requests the right to operate this service over the new Expressway U. S. 25–42 which is planned for construction beginning early in 1957. Applicant

is authorized to conduct operations in Kentucky and Ohio.

HEARING: May 29, 1957, in Room 255, New Post Office Building, Columbus, Ohio, before Joint Board No. 37.

APPLICATIONS IN WHICH HANDLING WITHOUT ORAL HEARING IS REQUESTED

MOTOR CARRIERS OF PROPERTY

No. MC 13079 (Sub No. 4), filed March 29, 1957, J. E. WARD, doing business as WARD TRANSFER, 2110 Second Avenue North, Anoka, Minn. Applicant's attorney: Donald A. Morken, 1100 First National-Soo Line Building, Minneapolis 2, Minn. For authority to operate as a *common carrier*, over regular routes, transporting: *General commodities, including Class A and B explosives*, but excepting commodities of unusual value, household goods (when transported as a separate and distinct service in connection with so-called "household movings"), commodities in bulk, and commodities requiring special equipment, (1) serving Coon Rapids and Brooklyn Park, Minn., as intermediate points in connection with applicant's authorized regular route operations between Minneapolis, St. Paul and Anoka, Minn.; and (2) between Anoka and Ogilvie, Minn., over Minnesota Highway 56, serving all intermediate points and the off-route points of Nowthen, Cedar and Bethel, Minn. RESTRICTION: Transportation of Class A and B explosives to be restricted to traffic originating at or destined to Anoka, Minn. Applicant is authorized to transport the commodities specified in Minnesota.

No. MC 22619 (Sub No. 7) filed March 28, 1957, PULLEY FREIGHT LINES, INC., 2410 Hubbell Avenue, Des Moines, Iowa. Applicant's representative: William A. Landau, 1307 East Walnut Street, Des Moines 16, Iowa. For authority to operate as a *contract carrier*, over irregular routes, transporting: *Meats and packing-house products*, as defined by the Commission, from Des Moines, Iowa, to Munster, Ind. Applicant is authorized to transport similar commodities between specified points in Iowa, Kansas, Missouri, Wisconsin, Nebraska, Minnesota and Illinois.

No. MC 52746 (Sub. No. 50), filed March 27, 1957, KNAUS TRUCK LINES, INC., 201 West 21st Street, Kansas City, Mo. Applicant's attorney: Walter V. Huston, 4105 Main Street, Kansas City 11, Mo. For authority to operate as a *common carrier*, over regular routes, transporting: *General commodities*, except those of unusual value, Class A and B explosives, household goods as defined by the Commission, commodities in bulk, and those requiring special equipment, (1) between Great Bend, Kans., and Scott City, Kans., over Kansas Highway 96, serving no intermediate points, as an alternate route for operating convenience only in connection with applicant's authorized regular route operations (a) between Kansas City, Mo., and Liberal, Hutchinson, and Wichita, Kans., and (b) between Liberal, Kans., and Colby, Kans.; and (2) between Scott City, Kans., and the Colorado-Kansas State line, over Kansas Highway 96, serving no intermediate points, as an alternate route for operating convenience only in connection with applicant's authorized regular route operations (a) between Sugar City, Colo., and the Colorado-Kansas State line, (b) between Eads, Colo., and Kit Carson, Colo., (c) between Denver, Colo., and Oakley, Kans., and (d) between Liberal, Kans., and Colby, Kans. Applicant is authorized to conduct operations in Colorado, Illinois, Indiana, Iowa, Kansas, and Missouri.

No. MC 63426 (Sub No. 3), filed April 8, 1957, WILLARD G. BROWN, 536 Summit Street, Hackensack, N. J. Applicant's representative: Edward F. Bowes, 1060 Broad Street, Newark 2, N. J. For authority to operate as a *contract carrier*, over irregular routes, transporting: *such commodities* as are usually dealt in by a retail department store, from Elizabeth, N. J. to New York, N. Y., points in New Jersey, and those in Nassau, Suffolk, Westchester, Orange, Rockland and Putnam Counties, N. Y., and *returned, used* and *repossessed merchandise* on return. Applicant is authorized to transport similar commodities in New York, New Jersey and Pennsylvania.

No. MC 66562 (Sub No. 1333), filed January 22, 1957, RAILWAY EXPRESS AGENCY, INCORPORATED, 219 East 42d Street, New York 17, N. Y. Applicant's representative: William H. Marx, 219 East 42d Street, New York 17, N. Y. For authority to operate as a *common carrier*, over a regular route, transporting: *General commodities*, including *Class A and B explosives*, moving in express service, between Exeter, N. H., and Epping, N. H., from Exeter over New Hampshire Highway 111–A to junction New Hampshire Highway 107, thence over New Hampshire Highway 107 to junction New Hampshire Highway 101, thence over New Hampshire Highway 101 to Exeter, and return over the same route, serving Fremont and Raymond, N. H., as intermediate points. RESTRICTION: The service authorized herein is subject to the following conditions: The service to be performed by applicant shall be limited to service which is auxiliary to, or supplemental of, express service. Shipments transported by applicant shall be limited to those moving on a through bill of lading or express receipt, covering, in addition to a motor carrier movement by applicant, an immediately prior or immediately subsequent movement by air or rail. Such further specific conditions as the Commission in the future may find it necessary to impose in order to restrict applicant's operations to service which is auxiliary to, or supplemental of, express service. Applicant is authorized to conduct operations throughout the United States.

No. MC 66562 (Sub No. 1354), filed April 2, 1957, RAILWAY EXPRESS AGENCY, INCORPORATED, 219 East 42d Street, New York 17, N. Y. Applicant's attorney: William H. Marx, 219 East 42d Street, New York 17, N. Y. For authority to operate as a *common carrier*, over regular routes, transporting: *General commodities, including Class A and B explosives, moving in express service*, from the junction of U. S. Highway 12 and Michigan Highway 99 over Michigan Highway 99 to Springport, Mich., and return over the same route, subject to the restrictions that the service to be performed by the carrier shall be limited to service which is auxiliary to, or supplemental of, rail or air express service, that shipments shall be limited to those moving on a through bill of lading or express receipt covering, in addition to a motor carrier movement by applicant, an immediately prior or immediately subsequent movement by air or rail, and any further specific restrictions which the Commission in the future may find it necessary to impose in order to restrict applicant's operation to service which is auxiliary to, or supplemental of, express service Applicant is authorized to conduct operations throughout the United States, and by this application seeks to extend operations authorized in Certificates No. MC 66562 Subs 829 and 900.

No. MC 66562 (Sub No. 1355), filed April 2, 1957, RAILWAY EXPRESS AGENCY, INCORPORATED, 219 East 42d Street, New York 17, N. Y. Applicant's attorney: William H. Marx, 219 East 42d Street, New York 17, N. Y. For authority to operate as a *common carrier*, over regular routes, transporting: *General commodities, including Class A and B explosives*, in express service, between the junction of Ohio Highways 8 and 82 and the junction of Ohio Highways 91 and 303, from the junction of Ohio Highways 8 and 82 over Ohio Highway 82 to Twinsburg, and thence over Ohio Highway 91 to the junction Ohio Highways 91 and 303 at Hudson, and return over the same routes, serving the intermediate point of Twinsburg, Ohio, subject to the restrictions that the service to be performed by the carrier shall be limited to service which is auxiliary to, or supplemental of, rail or air express service, that shipments shall be limited to those moving on a through bill of lading or express receipt covering, in addition to a motor carrier movement by applicant, an immediately prior or immediately subsequent movement by air or rail, and any further specific restrictions which the Commission in the future may find it necessary to impose in order to restrict applicant's operations to service which is auxiliary to, or supplemental of, express service. Applicant is authorized to conduct operations throughout the United States.

No. MC 109635 (Sub No. 1), filed April 5, 1957, LEROY E. WHITWORTH, JR., 1403 South Northern, Independence, Mo. Applicant's attorney: Edgar S. Carroll, Suite 508 Pickwick Building, 903 McGee Street, Kansas City 6, Mo. For authority to operate as a *contract carrier*, over irregular routes, transporting: *Concrete products*, from Kansas City, Mo., to points in Kansas within 150 miles of Kansas City, Mo. Applicant is authorized to transport concrete and cinder building blocks, in quantities of 19,000 pounds or more, over the same irregular route territorial area set forth above.

NOTE: Applicant hereby seeks added authority to transport all concrete products manufactured and sold by Carter-Waters Corporation.

No. MC 112846 (Sub No. 12), filed April 5, 1957, CLARE M. MARSHALL,

INC., P. O. Box 611, Rouseville Road, Oil City, Pa. Applicant's attorney: Paul F. Barnes, 811–819 Lewis Tower Building, 225 South 15th Street, Philadelphia 2, Pa. For authority to operate as a *common carrier*, over irregular routes, transporting: *Petroleum* and *petroleum products*, in bulk, in insulated tank vehicles, from Rouseville, Pa., to Huntington, Ind., and *empty tank trailers* on return. Applicant is authorized to transport similar commodities in Delaware, Michigan, New Jersey, New York, Ohio, Pennsylvania, and West Virginia.

No. MC 116190 (Sub No. 1), filed April 4, 1957, FRED GIBBS AND NEWELL KNIGHT, doing business as GIBBS & KNIGHT TRUCKING CO., P. O. Box 83, Murray, Ky. Applicant's representative: C. W. Craig, P. O. Box 1036, Paducah, Ky. For authority to operate as a *contract carrier*, over irregular routes, transporting: *Rough lumber*, not dressed or planed, *dimension stock* and *board measure*, in random widths and lengths, from Benton, Dickson, Henderson, Henry, Hickman, Houston, Humphrey, Lewis, Montgomery, Perry and Stewart Counties, Tenn., Caldwell, Calloway, Graves, Lyon, Marshall and Trigg Counties, Ky., to Berwin, Chicago, Effingham, Franklin Park, Joliet, Kankakee and Waukegan, Ill., and Gary, Ind.

No. MC 116474, filed February 25, 1957, P. J. LEAVITT, D. C. LEAVITT, D. J. LEAVITT and DEAN LEAVITT, a partnership, doing business as P. J. LEAVITT and SONS, 2110 North 19th Street, Springfield, Oreg. Applicant's representative: Wolf D. von Otterstedt, Washburne Bldg., 72 West Broadway, Eugene, Oreg. For authority to operate as a *contract carrier*, over irregular routes, transporting: *Pressure treated forest products, including poles, piling and heavy construction lumber*, from Eugene, Oreg., and points within five miles of Eugene, to points in Del Norte, Siskiyou, Modoc, Trinity, Tehama, Plumas, Sierra, Sutter, Nevada, Yuba, Butte, Lassen, Shasta, Placer and Humboldt Counties, Calif., Storey, Ormsby, Lyon, Douglas, Churchill, Pershing, Humboldt, Elko, Lander, Eureka, White Pine and Washoe Counties, Nevada.

No. MC 116555, filed April 1, 1957, H. J. MILLINGTON, doing business as HERB MILLINGTON SERVICE, 75th and Holmes, Kansas City, Mo. For authority to operate as a *common carrier*, over irregular routes, transporting: *Wrecked or disabled motor vehicles*, by wrecker tow service, and *replacement vehicles* for wrecked or disabled motor vehicles, in secondary movements, by the truckaway method, between Kansas City, Mo., on the one hand, and, on the other, points in Kansas.

No. MC 116566, filed April 3, 1957, LESTER FISHER, JR., doing business as LESTER FISHER, 2809 North Mississippi Street, Portland, Oreg. Applicant's attorney: John M. Hickson, Failing Building, Portland, Oreg. For authority to operate as a *contract carrier*, over irregular routes, transporting: *Shingles*, from the site of Arch Cape Shingle Company, Clatsop County, Oreg., to points in those counties in California south of the southern boundaries of Mendocino, Lake, Colusa, Placer and Eldorado Counties, Calif.

MOTOR CARRIERS OF PASSENGERS

No. MC 3600 (Sub No. 4), filed April 5, 1957. FRANK MARTZ COACH COMPANY, a Corporation, 239 Old River Road, Wilkes-Barre, Pa. Applicant's attorney: John J. Dempsey, Jr., Suite 1200, Miners National Bank Building, Wilkes-Barre, Pa. For authority to operate as a *common carrier*, over regular routes, transporting: *Passengers and their baggage*, and *express* and *newspapers* in the same vehicle with passengers, between Interchange No. 37 (Wyoming Valley Interchange), Northeastern Extension Pennsylvania Turnpike System, and Junction U. S. Highway 206 and U. S. Highway 30 near Hammonton, N. J.: *Route A*, in seasonal operations between May 15 and October 15, inclusive, of each year, from Interchange No. 37 (Wyoming Valley Interchange), Northeastern Extension Pennsylvania Turnpike, at Pennsylvania Highway 315 via the Northeastern Extension Pennsylvania Turnpike to junction with Pennsylvania Turnpike between Interchanges No. 25 (Norristown Interchange) and Interchange No. 26 (Fort Washington Interchange), thence via said Pennsylvania Turnpike and the Eastern Extension of Pennsylvania Turnpike to junction connecting segment of the New Jersey Turnpike at bridge over the Delaware River near Edgeley, Pa. and Florence, N. J., thence via said connecting segment of New Jersey Turnpike System to junction with New Jersey Turnpike at Interchange No. 6 thereof, thence via said New Jersey Turnpike to Interchange No. 4 (Camden-Philadelphia Interchange), thence via New Jersey Highway 73 to junction with U. S. Highway 30 near Berlin, N. J., and thence via U. S. Highway 30 to junction with U. S. Highway 206 near Hammonton, N. J., and return over the same route. *Route B*, in year-round operations from Interchange No. 37 (Wyoming Valley Interchange), Northeastern Extension Pennsylvania Turnpike at Pennsylvania Highway 315 via the Northeastern Extension Pennsylvania Turnpike to Interchange No. 33 (Lehigh Valley Interchange), and thence via U. S. Highway 22 to intersection with applicant's authorized routes at Easton, Pa., and return over the same route. Applicant states it will serve all intermediate points as need arises but none which it is not now serving.

NOTE: Applicant requests right of access to Routes A and B above from its authorized routes which intersect the Northeastern Extension Pennsylvania Turnpike at Interchange No. 36 (Wilkes-Barre) at U. S. Highway 115; also the right to operate over access routes to connect with its authorized routes from Interchange No. 35 (Pocono Interchange) via Pennsylvania Highway 940 through the Village of Blakeslee to the Village of Pocono Summit, and thence via Pennsylvania Highway 169 to intersection with U. S. Highway 611 in the Village of Mount Pocono, and return over the same routes.

APPLICATION FOR BROKERAGE LICENSE

No. MC 12659, filed March 26, 1957, JACK METSELAAR AND ALLEN N. RICH, a partnership, doing business as METRIC EDUCATIONAL TOURS, 2577 Young Avenue, New York 69, N. Y. Applicant's attorney: Milton A. Seymour, 120 Broadway, New York 5, N. Y. For a license (BMC 5) authorizing operations as a *broker* in the Borough of the Bronx, N. Y., in arranging for transportation in interstate or foreign commerce by motor vehicle of *Passengers and their baggage*, individually and in groups, for individual trips and for conducted all-expense tours by way of authorized bus lines in round-trip special and charter operations beginning and ending at points in the Borough of the Bronx, N. Y., and extending to points in the United States.

NOTE: Applicants state that their clients will be limited to children between the ages of 10 years and 16 years except for parents and relatives of clients who will accompany the children.

APPLICATION FOR CERTIFICATES OR PERMITS WHICH ARE TO BE PROCESSED CONCURRENTLY WITH APPLICATIONS UNDER SECTION 5, GOVERNED BY SPECIAL RULE 1.240 TO THE EXTENT APPLICABLE

No. MC 59680 (Sub No. 122), filed April 8, 1957, STRICKLAND TRANSPORTATION CO., INC., 2917 Gulden Lane, Box 5689, Dallas, Tex. Applicant's attorney: Ewell H. Muse, Jr., Suite 415 Perry Brooks Building, Austin, Tex. For authority to operate as a *common carrier*, over regular routes, transporting: *General commodities, including Class A and B explosives*, (1) between Fort Worth, Tex., and Wichita Falls, Tex., from Fort Worth over U. S. Highway 287 to Wichita Falls, and return over the same route, serving no intermediate points. (2) Between Henrietta, Tex., and Wichita Falls, Tex., from Henrietta over U. S. Highway 287 to Wichita Falls, and return over the same route, serving no intermediate points. RESTRICTION: Service is proposed at Henrietta solely for the purpose of combining or joining said route to routes otherwise authorized. Applicant is authorized to conduct similar operations in Arkansas, Illinois, Indiana, Louisiana, Mississippi, Missouri, New Jersey, New York, Ohio, Oklahoma, Tennessee and Texas. This application is directly related to MC–F 6558 published in this issue.

APPLICATIONS UNDER SECTIONS 5 AND 210a (b)

The following applications are governed by the Interstate Commerce Commission's Special Rules governing notice of filing of applications by motor carriers of property or passengers under sections 5 (2) and 210a (b) of the Interstate Commerce Act and certain other procedural matters with respect thereto. (FEDERAL REGISTER, Volume 21, page 7339, § 1.240, September 26, 1956.)

MOTOR CARRIERS OF PROPERTY

No. MC-F 6554. Authority sought for control by JOHN W. DAHLEN and EDNA A. DAHLEN, 875 North Prior Avenue, St. Paul, Minn., of DAHLEN TRANSPORT, INC., 875 North Prior Avenue, St. Paul, Minn. Applicants' attorneys: Gerald L. Phelps and John R. Sims, Jr., both of Munsey Building, Washington 4, D. C. Operating rights sought to be controlled: *Petroleum products*, in bulk, in tank vehicles, as a

common carrier over irregular routes, from Minneapolis and St. Paul, Minn., points within ten miles of Minneapolis and St. Paul, and Alexandria, Minn., to the port of entry on the boundary of the United States and Canada at or near International Falls, Minn. JOHN W. DAHLEN and EDNA A. DAHLEN hold no authority from this Commission, but JOHN W. DAHLEN, doing business as DAHLEN TRANSPORT COMPANY, is authorized to operate as a *common carrier* in Iowa and Minnesota. Application has not been filed for temporary authority under section 210a (b).

No. MC–F 6555. Authority sought for purchase by FOWLER & WILLIAMS, INC., 1300 Meylert Avenue, Scranton, Pa., of the operating rights and property of ANTHONY RYCHESKI, JR., doing business as WHITE LINE EXPRESS, 15 Walnut Street, Scranton, Pa., and for acquisition by HILTON G. FOWLER, also of Scranton, of control of such rights and property through the purchase. Applicants' attorney: Irving Klein, 280 Broadway, New York 7, N. Y. Operating rights sought to be transferred: *General commodities,* with certain exceptions including household goods and commodities in bulk, as a *common carrier* over regular routes between Scranton, Pa., and Hawley, Pa., and between Scranton, Pa., and Glen Lyon, Pa., serving all intermediate and certain off-route points; four alternate routes for operating convenience only; *packing-house products,* and *dairy products,* over irregular routes from Scranton, Pa., to points in Pennsylvania within 50 miles of Scranton. Vendee is authorized to operate as a *common carrier* in Pennsylvania, New Jersey, New York, Connecticut, Maryland, Virginia, Michigan, and the District of Columbia. Application has been filed for temporary authority under section 210a (b).

No. MC–F 6557. Authority sought for control and merger by WILSON TRUCK COMPANY, INC., 176 LaFayette Street, Nashville, Tenn., of the operating rights and property of SIMPSON TRUCKING COMPANY, INC., 730 Old Flat Shoals Road SE., Atlanta, Ga., and for acquisition by JOHN BRANSFORD, DUDLEY BRANSFORD, LOUIE M. PHILLIPS, ALFRED D. SHARP, VERNON SHARP, JR., VERNON SHARP, III, MRS. SARAH SHARP TAYLOR and MRS. SARAH R. SHARP, all of Nashville, of control of such rights and property through the transaction. Applicants' attorneys: Judson Harwood and Walter Harwood, both of 515 Nashville Trust Bldg., Nashville, Tenn. Operating rights sought to be controlled and merged: *General commodities,* with certain exceptions, including household goods and commodities in bulk, as a *common carrier* over regular routes between Atlanta, Ga., and Decatur, Ga., between Lawrenceville, Ga., and Greenville, S. C., between Athens, Ga., and Augusta, Ga., between junction U. S. Highway 29 and Georgia Highway 72 and Elberton, Ga., between Winder, Ga., and Braselton, Ga., and between Royston, Ga., and Washington, Ga., serving certain intermediate and off-route points; alternate routes for operating convenience only between Decatur, Ga., and Lawrenceville, Ga., between Washington, Ga., and Augusta, Ga., and between Winder, Ga., and Monroe, Ga.; *general commodities,* except uncrated household goods and used office furniture and fixtures, between Augusta, Ga., and Charleston, S. C., serving certain intermediate points and the off-route point of Graniteville, S. C.; *general commodities,* with certain exceptions excluding household goods and including commodities in bulk, between Decatur, Ga., and junction U. S. Highways 78 and 29, serving no intermediate points; *empty motor vehicle equipment,* between Greenville, S. C., and Augusta, Ga., serving no intermediate points; *compressed gases,* in specialty tube trailers owned by the U. S. Government, *empty tube trailers, classified and secret materials,* and *commodities* used by the Atomic Energy Commission, between the site of Savannah River project of the Atomic Energy Commission near Dunbarton, S. C., and the site of the Atomic Energy plant at Oak Ridge, Tenn., serving no intermediate points; *general commodities,* with certain exceptions including household goods and commodities in bulk, over irregular routes between certain points in South Carolina, on the one hand, and, on the other, Augusta, Ga., and Charlotte and Asheville, N. C. WILSON TRUCK COMPANY, INC., is authorized to operate as a *common carrier* in Illinois, Tennessee, Missouri, Georgia, Kentucky and Indiana. Application has not been filed for temporary authority under section 210a (b).

No. MC–F 6558. Authority sought for purchase by NAVAJO FREIGHT LINES, INC., 1205 South Platte River Drive, Denver 23, Colo., of a portion of the operating rights of STRICKLAND TRANSPORTATION CO., INC., P. O. Box 5689, Dallas 22, Texas, and for acquisition by LAURENCE COHEN, also of Denver, of control of such rights through the purchase. Applicants' attorney: Paul M. Hupp, 738 Majestic Building, Denver 2, Colo. Operating rights sought to be transferred: *General commodities,* without exception, as a *common carrier* over regular routes between Forth Worth, Tex., and Dallas, Tex., serving all intermediate points; *general commodities,* except those of unusual value, and except household goods, as defined by the Commission, commodities in bulk, and those requiring special equipment, between Fort Worth, Tex., and Amarillo, Tex., between Dallas, Tex., and Rhome, Tex., between Vernon, Tex., and Victory Field, Tex., between Wichita Falls, Tex., and Sheppard Field, Tex., between Fort Sill, Okla., and Wichita Falls, Tex., and between Wichita Falls, Tex., and Wichita Falls Airport, Tex., (Kelly Field), serving certain intermediate points; *general commodities,* with certain exceptions including dangerous explosives, household goods and commodities in bulk, between Vernon, Tex., and Vernon Airport, Tex., serving all intermediate points. Vendee is authorized to operate as a *common carrier* in California, New Mexico, Arizona, Texas, Colorado, Illinois, Nebraska, Missouri, Iowa, Nevada and Indiana. Application has not been filed for temporary authority under section 210a (b).

No. MC–F 6559. Authority sought for purchase by MIDDLE STATES MOTOR FREIGHT, INC., 2955 Central Parkway, Cincinnati 25, Ohio, of the operating rights of OWENTON MOTOR EXPRESS, INC., (J. K. SCOGGAN, TRUSTEE), c/o Louisville Credit Men's Association, 320 West Main Street, Louisville, Ky., and for acquisition by CHARLES L. PETERSON, also of Cincinnati, of control of such rights through the purchase. Applicants' attorney: Earl C. Frankenberger, 1104 Kentucky Home Life Building, Louisville 2, Ky. Operating rights sought to be transferred: *General commodities,* except those of unusual value, explosives, liquor, and commodities in bulk, as a *common carrier* over regular routes between Owenton, Ky., and Cincinnati, Ohio, serving certain intermediate and off-route points; *general commodities,* with certain exceptions including household goods and excluding commodities in bulk, between Owenton, Ky., and Louisville, Ky., serving certain intermediate and off-route points; *general commodities,* with certain exceptions including household goods and commodities in bulk, between Munk, Ky., and Cincinnati, Ohio and from Cincinnati, Ohio, to Glencoe, Ky., serving certain intermediate and off-route points; *general commodities,* without exception, between Louisville, Ky., and Owenton, Ky., serving all intermediate points and the off-route points of Campbellsburg and New Castle, Ky.; *livestock* and *agricultural commodities,* from Glencoe, Ky., to Cincinnati, Ohio, serving certain intermediate and off-route points; *general commodities,* with certain exceptions including household goods and excluding commodities in bulk, over irregular routes from Cincinnati, Ohio, to Owenton, Ky., and points within 10 miles of Owenton; *livestock* and *agricultural commodities,* from Owenton, Ky., and points within 10 miles of Owenton, to Cincinnati, Ohio; *commodities,* the transportation of which, because of size or weight, require the use of special equipment, and *parts thereof* when moving in connection therewith, and *machinery,* new and used, the transportation of which does not require the use of special equipment, from Jeffersonville and New Albany, Ind., and points in Indiana within five miles of Jeffersonville and New Albany, to points in Illinois, Kentucky, and Ohio; *construction materials and supplies, builders' and contractors' equipment, materials and supplies, clay and clay products,* and *wrecked or salvaged building materials,* from Jeffersonville and New Albany, Ind., and points in Indiana within five miles of Jeffersonville and New Albany, to points in Kentucky within 25 miles of Jeffersonville and New Albany; and *fertilizer compounds,* in bulk, in containers, from Jeffersonville, Ind., and points within five miles thereof, to points in Kentucky on and north of U. S. Highway 60. Vendee is authorized to operate as a *common carrier* in Ohio, Illinois, Indiana and Kentucky. Appli-

cation has been filed for temporary authority under section 210a (b).

By the Commission.

[SEAL] HAROLD D. McCOY, *Secretary.*

[F. R. Doc. 57-3056; Filed, Apr. 16, 1957; 8:48 a. m.]

[No. MC-C-2086]

SAFEWAY TRUCK LINES, INC.

COMMODITY RATES, SECOND SUPPLEMENTAL ORDER

At a session of the Interstate Commerce Commission, Board of Suspension, held at its office in Washington D,. C., on the 26th day of March A. D. 1957.

In the original and First Supplemental orders in this proceeding, the Commission, Board of Suspension, entered upon an investigation concerning the matter of rates and charges, and the rules, regulations and practices affecting such rates and charges, applicable on interstate or foreign commerce of various commodities, subject to various minimum weights, between points in Central Territory, on the one hand, and, on the other, points in Middle Atlantic and New England Territories, as set forth in schedules of Safeway Truck Lines, Inc., named therein;

It appearing that the following schedules contain rates which are similar to, or are in addition to, the rates covered by the original order in this proceeding:

Safeway Truck Lines, Inc.: MF-I. C. C. No. 40, on page 30, Item 850;

The Eastern Central Motor Carriers Association, Inc., Agent: On 2nd Revised Page No. 545-A to MF-I. C. C. No. A-114, in Item Number 6364-20, the 95-cent rate;

or as the same may be amended or reissued;

It further appearing that upon consideration of the tariff schedules shown in the foregoing, there is reason to institute an investigation to determine whether they result in rates and charges, rules or regulations and practices that are unjust and unreasonable in violation of the Interstate Commerce Act; and good cause appearing therefor:

It is ordered, That this investigation be, and it is hereby, broadened, upon the Commission's own motion, into and concerning the lawfulness of the rates, charges, rules, regulations and practices contained in schedules designated herein, or as the same may be amended or reissued, with a view to making such findings and orders in the premises as the facts and circumstances shall warrant.

It is ordered, That the investigation in this proceeding shall not be confined to the matters and issues hereinbefore stated as the reason for instituting this investigation, but shall include all matters and issues with respect to the lawfulness of the said rates, charges, rules, regulations and practices under the Interstate Commerce Act.

It is further ordered, That a copy of this order be served on the respondent's attorneys in fact, and the individual carriers, who filed the schedules containing the rates under investigation herein; and that further notice of this proceeding be given to the respondents, and that notice be given to the general public by posting a copy of this order in the office of the Secretary of the Commission at Washington, D. C., and by filing a copy with the Director, Division of the Federal Register.

And it is further ordered, That this matter be assigned for hearing at a time and place to be hereafter fixed.

By the Commission, Board of Suspension.

[SEAL] HAROLD D. McCOY, *Secretary.*

[F. R. Doc. 57-3055; Filed, Apr. 16, 1957; 8:47 a. m.]

[ICC Delegation TM-1]

ADMINISTRATOR, MARITIME ADMINISTRATION

DELEGATION OF CERTAIN DEFENSE MOBILIZATION RESPONSIBILITIES

Pursuant to the authority of the Defense Production Act of 1950, as amended (50 U. S. C. App. 2062, et seq.), Executive Order 10480, as amended (18 F. R. 4939, 6201, 19 F. R. 3807, 7249, and 21 F. R. 1673), DMO I-7, as amended (18 F. R. 5366, 6737, and 19 F. R. 7348), DMO I-15 (20 F. R. 921), DMO VI-2 (18 F. R. 8133), DMO VII-5, as amended (18 F. R. 6408 and 19 F. R. 7349), Organization Order DTA 1, as amended June 27, 1955 (20 F. R. 4550), and ICC Delegation of Authority of June 30, 1955 (20 F. R. 4780), and in order to facilitate the development of preparedness measures relating to port systems and facilities assigned to the Interstate Commerce Commission and to the Commissioner who is responsible for the supervision of the Bureau which administers the car service functions of the Commission by and pursuant to said orders, there is hereby delegated to the Administrator, Maritime Administration, Department of Commerce, the following defense mobilization functions and responsibilities:

1. To develop, assemble, and evaluate data with respect to the requirements to be imposed on port systems and facilities under partial and full mobilization conditions and with respect to the ability of such systems and facilities to satisfy such requirements.

2. To recommend establishment or modification of expansion goals and develop and recommend expansion programs with respect to port systems and facilities, including advice regarding probable financial incentives and aids for overcoming shortages of capacity or supply under partial or full mobilization conditions.

3. To analyze the problems involved in maintaining an adequate mobilization base in the port systems and facilities, and recommend necessary programs.

4. To develop, assemble, and evaluate data as to materials, equipment, supplies, manpower, and other requirements of the port systems and facilities under partial and full mobilization conditions; present supply and requirements information to the Office of Defense Mobilization.

5. To develop and maintain programs for the operation of port systems and facilities under partial and full mobilization conditions and to cooperate with the Office of Defense Mobilization and other appropriate agencies in planning other production and distribution controls related thereto.

6. To develop for the port systems plans for the security of communications, operating facilities, operating personnel, operating headquarters and essential operating records, and to provide guidance and leadership to the port industries in development of plans and programs to insure the continuity of essential operations in event of attack, and to cooperate with the Industry Evaluation Board, Department of Commerce, in the identification and rating of essential port facilities.

7. To develop plans and requirements for alternate ports and alternate port facilities and other measures to minimize the impact of attacks upon ports and port facilities.

8. To develop (a) a comprehensive plan of operation for port systems and facilities, including operating procedures and channels of communications under post-attack conditions, and (b) in coordination with the Federal Civil Defense Administration, a similar plan of operation under attack conditions which enables determination by the cognizant agency of priority to be accorded traffic and enables such priority to be carried out.

9. To develop plans for determining the amount and priority of restoration of port facilities in the post-attack phase in coordination with national post-attack controls and requirements, and for the concentration of materials, work equipment, and forces to accomplish such restoration. To this end, to develop plans for stockpiling of necessary restoration materials and the provision of work equipment.

Recommendations, plans, programs, requirements and other measures developed under this delegation of authority which fall within the purview of the functions of the Interagency Committee on Port Utilization, as set forth in the Memorandum of Agreement, dated May 25, 1951, executed by the Secretaries of Defense, Commerce and Interior and the Administrator, Defense Transport Administration, shall be submitted to the Interagency Committee for its consideration.

The authority herein delegated may be redelegated within the Maritime Administration in the discretion of the Maritime Administrator.

Reports on progress shall be submitted as requested by the Interstate Commerce Commission or the Office of Defense Mobilization.

This delegation shall become effective April 12, 1957.

Issued at Washington, D. C., this 12th day of April, 1957.

[SEAL] KENNETH H. TUGGLE, *Commissioner, Interstate Commerce Commission.*

[F. R. Doc. 57-3059; Filed, Apr. 16, 1957; 8:48 a. m.]

DEPARTMENT OF JUSTICE

Office of Alien Property

[Vesting Order SA–168]

PRAHOVA S. A. R. DE PETROL

In re: Debt owing to Prahova S. A. R. de Petrol, also known as Prahova, Societate Anonima Romana Pentru Industria Miniera; F–57–33.

Under the authority of Title II of the International Claims Settlement Act of 1949, as amended (69 Stat. 562), Executive Order 10644, November 7, 1955 (20 F. R. 8363), Department of Justice Order No. 106–55, November 23, 1955 (20 F. R. 8993), and pursuant to law, after investigation, it is hereby found and determined:

1. That the property described as follows: That certain debt or other obligation of The National Supply Company, Two Gateway Center, Pittsburgh, Pennsylvania, in the sum of $619.00, arising out of an account payable entitled, "Prahova S. A. R. de Petrol," maintained by the aforesaid company, together with any and all rights to demand, enforce and collect the same, is property within the United States which was blocked in accordance with Executive Order 8389, as amended, and remained blocked on August 9, 1955, and which is, and as of September 15, 1947, was, owned directly or indirectly by Prahova S. A. R. de Petrol, also known as Prahova, Societate Anonima Romana Pentru Industria Miniera, Bucharest, Rumania, a national of Rumania as defined in said Executive Order 8389, as amended.

2. That the property described herein is not owned directly by a natural person.

There is hereby vested in the Attorney General of the United States the property described above, to be administered, sold, or otherwise liquidated, in accordance with the provisions of Title II of the International Claims Settlement Act of 1949, as amended.

It is hereby required that the property described above be paid, conveyed, transferred, assigned and delivered to or for the account of the Attorney General of the United States in accordance with directions and instructions issued by or for the Assistant Attorney General, Director, Office of Alien Property, Department of Justice.

The foregoing requirement and any supplement thereto shall be deemed instructions or directions issued under Title II of the International Claims Settlement Act of 1949, as amended. Attention is directed to section 205 of said Title II (69 Stat. 562) which provides that:

> Any payment, conveyance, transfer, assignment, or delivery of property made to the President or his designee pursuant to this title, or any rule, regulation, instruction, or direction issued under this title, shall to the extent thereof be a full acquittance and discharge for all purposes of the obligation of the person making the same; and no person shall be held liable in any court for or in respect of any such payment, conveyance, transfer, assignment, or delivery made in good faith in pursuance of and in reliance on the provisions of this title, or of any rule, regulation, instruction, or direction issued thereunder.

Executed at Washington, D. C., on April 11, 1957.

For the Attorney General.

[SEAL] DALLAS S. TOWNSEND,
Assistant Attorney General,
Director, Office of Alien Property.

[F. R. Doc. 57–3061; Filed, Apr. 16, 1957; 8:49 a. m.]